

FR no 202737 / 2023

**IN THE HIGH COURT OF KARNATAKA KALABURAGI BENCH  
AT KALABURAGI**

## PRESENTATION FORM

WP No.: 202981/2023

Serial No. \_\_\_\_\_

Raichur District

## Between

Gundappa. f  
Others

And

# The State of Oklahoma

• O. CHAIRMAN  
 I. R. ...  
 S. ...  
 H. ...  
 Office ...  
 B. ...  
 W. K. ...

9113571662

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Date 15/10/2023 Kalaburagi

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**IN THE HIGH COURT OF KARNATAKA BENCH AT**  
**KALABURAGI**

W.P. No. \_\_\_\_\_/2023

**BETWEEN:**

**Gundappa & others**

**..Petitioners...**

**AND:**

**The State of Karnataka  
& Others.**

**...Respondents...**

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Place: Kalaburagi

Date: 11/10/2022

Advocate for Petitioners

(I. R. Bimadali)

**IN THE HIGH COURT OF KARNATAKA**  
**BENCH AT KALABURAGI**

W.P. No. \_\_\_\_\_/2023

**BETWEEN:**

**Gundappa & others**

**..Petitioners...**

**AND:**

**The State of Karnataka  
& Others.**

**...Respondents...**

**SYNOPSIS**

| <b>Sl.<br/>No</b> | <b>Date</b> | <b>Event</b>                                                                                                                                                                                                                                                           |
|-------------------|-------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1                 | 8.8.2012    | On which date the 3rd Respondent acquired the lands covered under LAC No.72/2015 c/w LAC No.69/2015 and other connected matters for the benefit of 2nd Respondent. The lands of the petitioners also acquired under similar notification issued u/Sec.4(1) of the Act. |
| 2                 | 10.9.2013   | On which date the 3rd respondent issued 6(1) notification in respect of lands covered under LAC No.72/2015 c/w LAC No.69/2015 and other connected matters and also the lands of the petitioners also covered under aforesaid 6(1)                                      |

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|   |            |                                                                                                                                                                                                                                                                  |
|---|------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|   |            | notification                                                                                                                                                                                                                                                     |
| 3 | 15.12.2013 | On which date the 3rd Respondent passed an award                                                                                                                                                                                                                 |
| 4 | 9.4.2021   | On which date the reference Court vide its judgement and award 9.4.2021 allowed the aforesaid reference petitions filed by the respective claimants.                                                                                                             |
| 5 | 17.6.2021  | On which date some of the petitioners filed an application u/Sec.28(A) of the Act seeking redetermination of market value in the light of the Judgment and Award passed by the reference Court in LAC No.72/2015, c/w LAC No.69/2015 and other connected matters |
| 6 | 18.6.2021  | On which date some of the petitioners filed an application u/Sec.28(A) of the Act seeking redetermination of market value in the light of the Judgment and Award passed by the reference Court in LAC No.72/2015, c/w LAC No.69/2015 and other connected matters |

|   |           |                                                                                                                                                                                                                                                                  |
|---|-----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 7 | 23.6.2021 | On which date some of the petitioners filed an application u/Sec.28(A) of the Act seeking redetermination of market value in the light of the Judgment and Award passed by the reference Court in LAC No.72/2015, c/w LAC No.69/2015 and other connected matters |
| 8 | 24.6.2021 | On which date some of the petitioners filed an application u/Sec.28(A) of the Act seeking redetermination of market value in the light of the Judgment and Award passed by the reference Court in LAC No.72/2015, c/w LAC No.69/2015 and other connected matters |
| 9 | 29.6.2021 | On which date some of the petitioners filed an application u/Sec.28(A) of the Act seeking redetermination of market value in the light of the Judgment and Award passed by the reference Court in LAC No.72/2015, c/w LAC No.69/2015 and other connected matters |

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|    |            |                                                                                                                                                                                                                       |
|----|------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 10 | 10.2.2022  | On which date this Hon'ble Court allowed MFA No.200193/2022 and other connected matters and remitted the matter back to the reference Court.                                                                          |
| 11 | 7.7.2022   | On which date the reference Court allowed the reference petition holding that the award passed by the spl.Land Acquisition Officer is modified.                                                                       |
|    |            | On which date the counsel appearing on behalf of the petitioner in the Courts below submitted an application to the 3rd Respondent praying to redetermine the market                                                  |
| 12 | 31.10.2022 | value of the acquired lands of the petitioners in the light of the judgment and award dated 7.7.2022 passed by Sr. Civil Judge and JMFC at Lingasugur in LAC No.21/2015 c/w LAC No.8/2015 and other connected matter. |
| 13 | 22.12.2022 | On which date petitioners also submitted an application praying to the 3rd respondent to redetermine the market value of the acquired lands in the light of the judgment                                              |

|    |           |                                                                                                                                                                                                                                                                                                                |
|----|-----------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |           | and award dated 7.7.2022 passed by Sr. Civil Judge and JMFC at Lingasugur in LAC No.21/2015 c/w LAC No.8/2015 and other connected matter.                                                                                                                                                                      |
|    |           | On which date the 3rd respondent issued a memorandum stating that on the similar issue MFA No.202357/2022 is pending consideration on the file of the Hon'ble High Court of Karnataka and after disposal of the said appeal respective applications filed under Sec.28(A) of the application will be consider. |
| 14 | 13.4.2023 | On which date the 3rd respondent issued a memorandum stating that on the similar issue MFA No.202357/2022 is pending consideration on the file of the Hon'ble High Court of Karnataka and after disposal of the said appeal respective applications filed under Sec.28(A) of the application will be consider. |
| 15 | 4.8.2023  | On which date the 3rd respondent issued a memorandum stating that on the similar issue MFA No.202357/2022 is pending consideration on the file of the Hon'ble High Court of Karnataka and after disposal of the said appeal respective applications filed under Sec.28(A) of the application will be consider. |



**BRIEF FACTS**

That the lands of the petitioners and other land lord have been acquired under 4(1) notification dated 8.8.2012. The 3rd Respondent passed an Award on 15.12.2013. Some of the owners under preliminary notification dated 8.8.2012 have filed a petition u/Sec.18(1) of the Land Acquisition Act before the 3rd Respondent requesting to refer the matter to Civil Court. The 3rd respondent referred the matter to the Civil Court in LAC No.72/2015 c/w LAC No.69/2015 and other connected matters. The reference Court vide its Judgment and Award dated 9.4.2021 allowed the reference petition filed by some of the owners under 4(1) notification dated 8.8.2012. The petitioners lands also acquired under 4(1) notification dated 8.8.2012, but have not filed a petition u/Sec.18(1) of the Act praying refer the matter to the Civil Court. The petitioners on the judgment and award dated 9.4.2021 passed by the reference Court in LAC No.72/2015 c/w LAC No.69/2015 and other connected matters the petitioners filed an application as required

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U/Sec.28A of the Act. The award dated 7.7.2022 passed in LAC No.21/2015 c/w LAC No.8/2015 and other connected matters has become final. The 3rd respondent having received the application filed by the petitioners herein u/Sec.28A of the Act, but failed to redetermine the market value of the acquired lands of the petitioners in the light of the judgment and award in LAC No.21/2015 c/w LAC No.8/2015 and other connected matters. Hence this Writ Petition.

Hence this Writ Petition.

Place: Kalaburagi

Date: 11/10/2023

Advocate For Petitioners

(T. R. Dimadur)

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**IN THE HIGH COURT OF KARNATAKA BENCH**  
**AT KALABURAGI**

[Original Jurisdiction]

F.R. No.                      /2023

W.P. No.                      /2023

**BETWEEN:**

**1. Gundappa**

S/o Basangouda Gurikar,  
Aged about 69 years,

Occ: Agriculture,  
R/o Hatti, Tq. Lingasugur,  
Dist. Raichur.

(Senior Citizenship not claimed)

**2. Kanakappa**

S/o Durgappa,  
Since deceased by his LRs  
Smt. Durgamma W/o Late Kanakappa  
Aged about : 75 years,  
Occ: H.H. & Agriculture,  
R/o Hatti, Tq. Lingasugur,  
Dist. Raichur

(Senior Citizenship not claimed)

**3. Amarappa**

S/o Yenappa Hunsgi,  
Aged about : 65 years, Occ: Agriculture,  
R/o Hatti, Tq. Lingasugur,  
Dist. Raichur

(Senior Citizenship not claimed)

**4. Shivalingappa**

S/o Amarappa Hunsgi,  
Aged about : 33 years, Occ: Agriculture,  
R/o Hatti, Tq. Lingasugur,  
Dist. Raichur

**5. Ningappa**

S/o Yekappa Hunsgi,  
Aged about : 53 years, Occ: Agriculture,  
R/o Hatti, Tq. Lingasugur,  
Dist. Raichur

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**6. Manjunath**

S/o Amarappa Hunsgi,  
Aged about : 31 years, Occ: Agriculture,  
R/o Hatti, Tq. Lingasugur,  
Dist. Raichur.

**7. Smt. Devamma**

W/o Sharnappa  
(D/o Devappa),  
Aged about : 60 years, Occ: H.Hold,  
& Agriculture, R/o Hatti,  
Tq. Lingasugur, Dist. Raichur.

(Senior Citizen Ship not claimed)

**8. Smt. Ambamma**

W/o Sharnappa,  
Aged about : 65 years, Occ: H.Hold,  
& Agriculture, R/o Hatti,  
Tq. Lingasugur, Dist. Raichur

(Senior Citizen Ship not claimed)

**9. Hasensab S/o Rajabkhan**

@ Rajabalikhan

Since deceased by his LRs  
Smt. Bakul Bee W/o Late Hasensab,  
Aged about : 52 years, Occ: H.H & Agriculture,  
R/o Kaka Nagar, Hatti, Tq. Lingasugur,  
Dist. Raichur.

..Petitioner

**AND:**

**1) The State of Karnataka**

By its Principal Secretary,  
Department of Revenue,  
MS Building, Bangalore-1.

**2) The Deputy General Manager,**

Hatti Gold Mines Co., Ltd., (HGMC),  
Hatti village, Tq. Lingasugur,  
Dist. Raichur. 585410/

**3) The Land Acquisition Officer,**

/ Asst. Commissioner,  
Lingasugur, Dist. Raichur. 585410/

...Respondents

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**MEMORANDUM OF WRIT PETITION UNDER**  
**ARTICLE 226 & 227 OF THE CONSTITUTION OF**  
**INDIA**

Petitioners above named most respectfully submits as follows:-

1) That the Petitioners have filed above common Writ Petition on similar set of facts and grounds and the relief claimed in the above Writ Petitions are one and the same as such filed, common Writ Petition by paying individual Court fee, as such common writ petition is maintainable.

2) That the Petitioners submits that the 3rd Respondent acquired lands covered under LAC No.72/2015 connected with LAC No.69/2015, 70/2015, 71/2015, 73/2015, 74/2015, 75/2015, 79/2015 and LAC No.83/2015 and other lands vide 4(1) Notification bearing No.LAQ/06:2012-13 dated 8.8.2012 and vide 6(1) notification No.20/LAQ/2013 dated 10.9.2013, 9(1) Notification dated 24.9.2013 for the benefit of 3rd Respondent and final award has been passed on 15.12.2013. The land owners in the aforesaid reference petitions received the award amount under protest and filed a reference petition

U/Sec. 18(1) Land Acquisition Act 1894 praying to refer the matter to the Civil Court for determination of reasonable compensation. The 3rd Respondent on the receipt of the petition U/Sec.18(1) of the Act referred the matter to the reference Court and numbered as stated supra. The reference Court vide Judgement and Award dated 9.4.2021 allowed the aforesaid reference petitions filed by the respective claimants as under:

1. *The market value of the respective acquired lands in these cases is fixed at the rate of Rs.80/- (Rupees Eighty Only) per sq.ft. sq.ft except Phot Kharab and deducted land @ of 40% for basic amunities*

2. *The respective claimant are entitled for 30% of solarium on the enhanced make value and 10% per annum enhanced market value from the date of publication of preliminary notification under Sec.4(1) of LAC Act dated 8.8.2012 till the date of award dated 15.12.2013. The respective*

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claimants are also entitled for interest @ 9% per annum on the enhanced market value for a period of 1 year from the date of dispossession and thereafter at the rate 15% per annum till payment.

4. If any compensation is received by the respective claimants from the respondents which shall be deducted at the time of payment.

A true copy of the Judgment ..... date 9.4.2021 is produced herewith and marked as **Annexure-A.**

3) That the 3rd Respondent also acquired the respective lands of the petitioners for the benefit of 3rd Respondent under similar 4(1) Notification dated 8.8.2012 and an award has been passed on 15.12.2013. The petitioners have received the compensation amount under protest but have not filed reference petition as required under Sec.18(1) of the Act. The petitioners on coming to know of the award passed by the Learned Senior Civil Judge and JMFC at

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Lingasugur in an identical matters vide Judgement and Award dated 9.4.2021. The lands of the petitioners also acquired for the benefit of 3rd Respondent under similar 4(1) notification dated 8.8.2012 as such have filed a petition as required U/Sec.28(A) of Land Acquisition Act 1984 for redetermination of market value of their respective acquired lands on 23.6.2021 i.e., within 90 days from the date of Award passed in identical matters. A true copies of the applications dated 23.6.2021, 24.6.2021, 17.6.2021, 18.6.2021 & 29.6.2021 are produced herewith and marked as **Annexure-B, B1 to B8** respectively.

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4) That the 3rd respondent herein filed MFAs u/Sec.54(1) of the Land Acquisition Act praying to allow the appeal by setting aside the Judgment and Award dated 9.4.2021 passed by the Learned Senior Civil Judge & JMFC at Lingasugur in LAC No.83/2015 and other connected matters on the file of the Hon'ble High Court of Karnataka bench at Kalaburagi. The Hon'ble High Court vide its judgment and award dated 10.2.2022 allowed all the appeals by setting aside the Judgement and Awards dated 9.4.2021 passed by the



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Senior Civil Judge and JMFC Lingasugur in LAC No. 34/2015 and other connected matter and the matters are remitted back to the reference Court for reconsideration afresh etc. In which this Hon'ble Court directed the appellant to deposit a sum of Rs.7,00,000/- per acre on or before 31.3.2022 in all the pending cases before the reference Court in relation to the preliminary notification dated 8.8.2012; it is made clear that this deposit which is directed to be made by the appellant before the reference Court would be without prejudice to the rights and contentions of the parties and would be subject to the final outcome of the proceedings before the reference Court; immediately upon such deposit being made the appellant, the reference Court shall direct the amount shall be invested in fixed deposit for an initial period of three months and renewed subsequently, if required as directed by the reference Court. A true copy of the Judgement dated 10.2.2022 in MFA No.200193/2022 and other connected matters is produced herewith and marked as **Annexure-C**.

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5) That after remand of the matter the Learned Senior Civil Judge and JMFC at Lingasugur vide its judgement and award allowed all the reference petitions with cost holding that the award passed by the Respondent No.1 Spl. Land Acquisition officer/Asst. Commissioner Lingasugur is modified in the following terms:-

*That market value of the respective acquired lands in these cases is fixed at the rate of 67/- (Rupees Sixty Seven only) per sq.ft. except pot kharab and deduct land at the rate of 33% for development charges.*

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*The claimants are entitled to get 30% of solatium on the enhanced market value and less the amount received from the respondent.*

*The claimants are also entitled for interest @ 9% p.a. from the date of 4(1) notification for the period of 1 year and 15% p.a. subsequent period till the date of realization of entire amount. The claimants are also entitled for interest on solatium.*

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Further, the petitioners are entitled for additional amount at rate of 12% p.a. on market value from the date of publication of 4(1) notification to the date of award or date of taking possession of land which events earlier.

A true copy of the Judgment passed by the Learned Senior Civil Judge & JMFC at Lingasugur dated 7.7.2022 in LAC No.21/2015 C/w LAC No.8/2015 and other connected matters is produced herewith and marked as **Annexure-D**.

6) That the Judgment and Award passed in LAC No.21/2015 C/w LAC No.8/2015 and other connected matters has become final no appeal is filed against the said Judgment and Award. Accordingly the counsel for the petitioners submitted an application to the 3rd Respondent land acquisition officer on 31.10.2022 for enhancement of compensation @ Rs.67/- per sq.ft., with all other statutory benefits. The petitioners also filed a representation u/Sec.28(A) of the Act for redetermination of the amount of compensation on the basis of the award passed by the Learned Senior Civil Judge and JMFC at Lingasugur in LAC No. 21/2015

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C/w LAC No.8/2015 and other connected matters on dated 22.12.2022. A true copies of the representation dated 31.10.2022 and 22.12.2022 are produced herewith and marked as **Annexure-E & E1** respectively.

7) That the 3rd respondent on the receipt of the aforesaid representations issued a memorandum dated 13.4.2023 and 4.8.2023 stating that on the similar issue MFA No.202357/2022 is pending consideration on the file of the Hon'ble High Court of Karnataka and after disposal of the said appeal your respective applications filed U/Sec.28(A) of the Act will be consider immediately after disposal of the said application. A true copies of the memorandum dated 13.4.2023 & 4.8.2023 are produced herewith and marked as **Annexure-F & F1**.

8) That the Petitioners filed the above Writ Petition challenging the memorandum dated 13.4.2023 & 4.8.2023 produced at Annexure-F & F1 and not taking any suitable decision on the applications filed U/Sec.28(A) of the Act vide Annexure-B, B1 to B8 in

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the light of the Judgment and Award passed by the reference Court in LAC No.21/2015 C/w LAC No.8/2015 and other connected matters, without there being any alternative or efficacious remedy except to approach this Hon'ble Court by invoking Writ Jurisdiction available under Article 226 & 227 of the Constitution of India, amongst other:

The Petitioners are hereby declares that in an earlier occasion have not filed any Writ, Suit etc., on the same cause of action and the present Writ Petition is not in the interest of public.

### **GROUND S**

9) That, the respondents not justified in law in not considering the applications filed by the petitioners U/Sec.28(A) of the Act seeking redetermination of the amount of compensation on the basis of the award passed by the reference Court in LAC No.21/2015 C/w LAC No.8/2015 and other connected matters, the act of the respondents calls for interference at the hands of this Hon'ble Court.

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10) That on the basis of the Award passed by the Learned Senior Civil Judge and JMFC at Lingasugur dated 9.4.2021 in LAC No.72/2015 C/w LAC No.69/2015 and other connected matters the petitioners lands also acquired under similar 4(1) notification dated 8.8.2012 filed applications as required U/Sec.28(A) of the Act for redetermination of the market value of the acquired lands in the light of the aforesaid judgment and award. Thereafter the respondent No.2 filed MFA No.200193/2022 on the file of this Hon'ble Court which came to be allowed and remanded back to the reference Court after remand the reference Court vide its judgment and award dated 7.7.2022 allowed the references with costs holding that award passed by the LAO is modified in terms of the order. The judgment and award dated 7.7.2022 passed by the reference Court in LAC No.21/2015 C/w LAC No.8/2015 has become final, since the 3rd respondent are anybody challenged the said award. Hence it is incumbent on the part of the respondents to redetermine the award as required U/Sec.28(A) of the Act, in the light of the aforesaid Judgment and Award

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failing which the action of the 3rd Respondent calls for interference at the hands of this Hon'ble Court.

11) That on the receipt of the representation dated 31.10.2022 and 22.12.2022 the 3rd respondent issued endorsement stating that already an appeal is filed against the judgment and award dated 7.7.2022 in LAC No.21/2015 c/w LAC No.8/2015 and other connected matters in MFA No.202357/2022 and immediately after of disposal of the said MFA necessary orders u/Sec.28(A) of the 1894 of LAC Act will be passed. Infact the said endorsement has been issued with an intention to escape from redetermination of market value, since the MFA relied upon by the 3rd Respondent is not in respect of acquisition on behalf of the 2nd respondent, but the MFA as stated above is in respect of acquisition of land for the Upper Krishna Project. Hence the impugned action of the 3rd Respondent in not considering the claim of the petitioners in the light of the Judgment and Award dated 7.7.2022 in LAC No.21/2015 c/w LAC No.8/2015 and other connected matters, calls for interference at the hands of this Hon'ble Court.

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12) That the provisions of Sec.28(A) is very much clear that the claimants are entitled for redetermination of market value of the acquired land in the light of the Judgement and Award passed in identical matter covered under identical 4(1) notification. Hence the 3rd Respondent ought to have redetermined the market value of the acquired land of the petitioners. The impugned action of the 3rd Respondent is not only illegal amounts violation of Article 14 & 16 of the Constitution of India.

13) That it is not in dispute that the petitioner have filed their respective applications as required U/Sec.28(A) of the Act as such and in view of Judgment and Award passed by the reference Court in LAC No.21/2015 c/w LAC No.8/2015 and other connected matters are entitled to get the compensation determined in the aforesaid cases. In not extending the similar benefit in the light of the provisions of Sec.28(A) of the Act is illegal, arbitrary.



22 **PRAYER**

WHEREFORE, under the facts and circumstance of the case, the Hon'ble Court be pleased to :-

- a) Issue a Writ, Order or direction in the nature of Mandamus, directing the Respondent No.3 to consider the Application filed by the Petitioners U/Sec.28(A) of the Act vide Annexures-B, B1 to B8 in the light of the Judgment passed in LAC No.21/2015 c/w LAC No.8/2015 and other connected matters dated 7.7.2022 and to fix the market value of the acquired lands @ Rs.67/- per sq.ft. with all other statutory benefits.
- b) Issue a writ of certiorari and to quash the endorsement dated 13.4.2023 in No. ಭೂಸ್ವಾಸಾಮಾನ್ಯ:01:2011-12/28(ಎ)/954 and 4.8.2023 in No. ಭೂಸ್ವಾಸಾಮಾನ್ಯ:01:2011-12/28(ಎ)/1451 issued by the 3rd Respondent vide Annexure-F, F1.
- c) Issue any other suitable Writ, Order or direction as this Hon'ble Court deems fit under the facts and circumstances of the case, including an Order of Cost, in the interest of justice and equity.

Date : 11/10/2023

Place : Kalaburagi

Advocate for Petitioner

**Address for Service:**

I.R. Biradar &

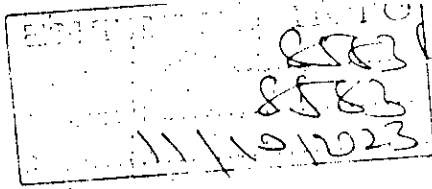
G.G. Chagashetti

Advocates

HIG 28, Shanti nagar,

Kalaburagi.

(I. R. Biradar)



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**IN THE HIGH COURT OF KARNATAKA BENCH AT  
KALABURAGI**

W.P. No. \_\_\_\_\_/2023

**BETWEEN:**

**Gundappa & others**

**..Petitioners..**

**AND:**

**The State of Karnataka  
& Others.**

**...Respondents...**

**AFFIDAVIT**

I, **Manjunath** S/o Amarappa Hunsgi, Aged about :  
years, Occ: Agriculture, R/o Hatti, Tq. Lingasugur, Dist.  
Raichur, today at Kalaburagi do hereby solemnly affirm  
and state on oath as follows :-

1. I am the Petitioner No.6 in the above Writ Petition and  
hence I know the facts of the case. Petitioner No.1 to 5 and  
7 to 9 have authorized me to swear the contents of this  
affidavit.

2. I state that, statements made in Paragraphs 1 to 13 of  
the Writ Petition accompanying to this Affidavit are true to  
the best of my knowledge, belief and information.

3. I state that, **Annexures-A to F & F1** are the true  
copies of the originals.

Place: Kalaburagi

Date: 11 OCT 2023

No. of Corrections (Nil)

Identified by me:

Deponent

**ADVOCATE**

BEFORE ME

KALABURAGI

11 OCT 2023

141. 010706/2  
24  
Annexure A  
IN THE COURT OF THE SENIOR CIVIL JUDGE & JMFC.,  
AT LINGASUGUR

Present :- SRI. LAKSHMIKANTH JANAKIRAM MISKIN, M.A., LL.M.  
Senior Civil Judge & J.M.F.C.  
Lingasugur.

: LAC NO : 72/2015 C/w LAC NO.69/2015,  
LAC NO.70/2015, LAC NO.71/2015, LAC NO.73/2015,  
LAC NO.74/2015, LAC NO.75/2015 LAC NO.79/2015,  
AND LAC NO.83/2015 :

Dated this the 09<sup>th</sup> day of April 2021

PETITIONER ————— Mehaboob S/o Khasimsab  
IN LAC NO.72/2015 Age: 39 years, Occ: Agri.,  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER Babu S//o Late Khajasab  
IN LAC NO.69/2015 Age: 52, Occ: Agri.,  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER Mehaboob Ali S/o Rajasab  
IN LAC NO.70/2015 Age:68 years, Occ: Agri.,  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER Rajmahammed S/o Hasansab  
IN LAC NO.71/2015 Age: 40 years, Occ: Agri.,  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER Abdul Rehamansab S/o Lalsab  
IN LAC NO.73/2015 Age: 35 years, Occ: Agri.  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER Ramjan Ali @ Ramjansab S/o Allisab  
IN LAC NO.74/2015 Age: 48 years, Occ: Agri.  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.

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PETITIONER 1) Mehaboobsab S/o Khasimsab  
 IN LAC NO.75/2015 Age: 39 years, Occ: Agri.

2) Shahirabegum W/o Mehaboobsab  
 Age: 34 years, Occ: Household & Agri.,  
 both R/o Hutti village, Tq.Lingasugur  
 Dist. Raichur.

PETITIONER Moulabee W/o Lalsab  
 IN LAC NO.79/2015 Age: 40 years, Occ: Agri.  
 R/o Hutti village, Tq.Lingasugur  
 Dist. Raichur.

PETITIONER— Hasanbee W/o Lalsab  
 IN LAC NO.83/2015 Age: 62 years, Occ: Agri.  
 R/o Hutti village, Tq.Lingasugur  
 Dist. Raichur.

(Represented by Sri. M.D.K. Advocate)

-V/s-

RESPONDENTS :- 1) The Special Land Acquisition  
 Officer/Asst. Commissioner,  
 Lingasugur.

2) The General Manager,  
 Hutti Gold Mines Company  
 Hutti village, Tq. Lingasugur  
 Dist. Raichur.

— (R1 By:-Addl. Govt. Pleader)

(R2 By:- Sri. Rajashekhar, Advocate)

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: COMMON JUDGMENT:

These petitioners are filed by the petitioners  
 against the respondents for the relief of  
 compensation.

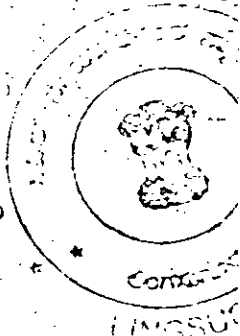
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2. This court passed an order dated 12-10-2017 holding that it has no jurisdiction to try the petition. But Hon'ble High Court of Karnataka at Kalaburgi Bench in WP No.203169-203238/2019 and W.P.No.205872-75/2019, C/w W.P.No.202271/2019 (LA-Res) dated 12-10-2017 remand the matter holding that this court jurisdiction.

3. The LAC NO.69/2015, LAC NO.70/2015, LAC NO.71/2015, LAC NO.73/2015, LAC NO.74/2015, LAC NO.75/2015 LAC NO.79/2015, AND LAC NO.83/2015 are clubbed in LAC No.72/2015 as per order dated 03-03-2016. The above these cases are clubbed in LAC No.21/2015 as per order dated 19-02-2021. Further more all the above said cases out of the same 4(1) notification No. LAQ:06:2012-13 dated: 08-08-2012, further more petitioner in LAC No.72/2015 has deposed in evidence on behalf of himself and on behalf other petitioners so, that all these cases are taken for common judgment.

4. The common brief of the facts of the above said cases are as follows: The respective



*[Signature]*  
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 petitioners in the above said cases are owners and  
 possessors of the below mentioned petition  
 properties as follows:-

SCHEDULE:

| Sl. No. | Case No. | Village/<br>block<br>nos. | Sy.No.   | Area<br>Acq.<br>A-G | Compensa<br>tion Rs.<br>PS | Award No. &<br>Date |
|---------|----------|---------------------------|----------|---------------------|----------------------------|---------------------|
| 01      | 72/2015  | Khota                     | 315/**/* | 01-08               | 56,500/-                   | 15-12-2013          |
| 02      | 69/2015  | Khota                     | 471/**/* | 04-11               | 56,500/-                   | 15-12-2013          |
| 03      | 70/2015  | Khota                     | 471/**/* | 04-12               | 56,500/-                   | 15-12-2013          |
| 04      | 71/2015  | Khota                     | 471/**/* | 04-06               | 56,500/-                   | 15-12-2013          |
| 05      | 73/2015  | Khota                     | 477/**/* | 03-20               | 56,500/-                   | 15-12-2013          |
| 06      | 74/2015  | Khota                     | 471/**/* | 04-12               | 56,500/-                   | 15-12-2013          |
| 07      | 75/2015  | Khota                     | 316/**/1 | 01-20               | 56,500/-                   | 15-12-2013          |
| 08      | 79/2015  | Khota                     | 471/**/* | 04-06               | 56,500/-                   | 15-12-2013          |
| 09      | 83/2015  | Khota                     | 471/**/* | 04-10               | 56,500/-                   | 15-12-2013          |

5. All the above mentioned matters are out of the  
 same 4(1) notification No. LAQ:06:2012-13 dated:  
 08-08-2012, 6(1) notification No.20:LAQ: 2013  
 dated :10-09-2013, 9(1) notification dated 24-09-  
 2013, final award is passed on 15-12-2013, facts  
 and evidence of all the cases are one and the same  
 and common evidence is recorded, hence all the  
 cases are taken for common judgment. Further this

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 court by its order 03-03-2016 clubbed LAC

NO.69/2015, LAC NO.70/2015, LAC No.71/2015, LAC

NO.73/2015, LAC NO.74/2015, LAC NO.75/2015 LAC

NO.79/2015, AND LAC NO.83/2015 are clubbed in LAC

No.72/2015.

6. As per case of the petitioners they are owners  
 of the said properties. The respondent No.1-

SLAO/A.C has acquired the above said lands for the  
 purpose Hutti Gold Mines company. Said lands are  
 within the vicinity of Pura Panchayat of Hutti  
 Gold Mines, said lands are NA potential  
 agricultural lands located within the thick  
~~business~~ Hutti industrial area. Further the said  
 lands are surrounded by Govt. Hospitals, Hutti  
 Gold Mines, various Kannada and English Medium  
 schools, colleges, banks, police station, petrol  
 bunk, Gas distribution center etc., Further very  
 lands are acquired for the purpose of Hutti Gold  
 Mines Industry, thereby said company will earn  
 crores of Rupees by way of digging the gold from  
 the said lands petition properties. The

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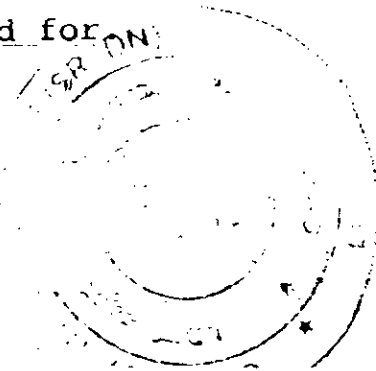
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compensation fixed and award passed by the respondent No.1 is very meager one, present market value of the said lands is not less than 40-50 lakhs per acre.

7. Petitioners are agriculturists, said lands are irrigated fertile-lands, wherein they are growing groundnut, hybrid cotton, jawar, sunflower, pappaya, Dalimbe thereby getting annual income of Rs.20,00,000/- per year. Except the agricultural income they are not having any other source of income and they have any other work for their livelihood, without issuing the notice under Sec.9

of the Act and ascertaining all these facts visiting the spot, SLAO has fixed the compensation, but it is not proper and correct.

Considering the said facts SLAO have submitted the protest petition filed by the petitioners to this court along with other relevant documents before this court. So petitioners requested this court to enhance the compensation as prayed for.

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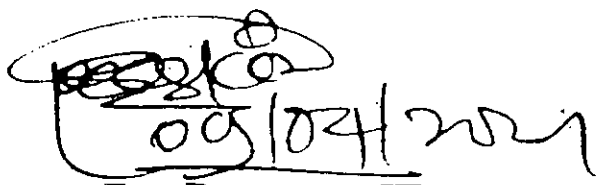




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8. On service of notice respondent No.1 has appeared through AGP, wherein he has filed objection opposing the case of the petitioners containing that by way of considering all the attending circumstances LAO has recommended the compensation which is proper and correct, market value is fixed on the basis of schedule fixed by the Govt at the time of 4(1) notification, further LAO has assigned the reasons for fixing the compensation, claim made by the claimants are exorbitant one, grounds taken by the claimants are not proper and correct they are not entitled for enhancement of compensation as prays for, accordingly prays to dismiss the petitions, respondent No.2 has appeared through Sri. Rajashekhar Advocate, but not filed any objections.

9. The claimant in petition No.72/2015 has deposed in his evidence as PW-1 marked 73

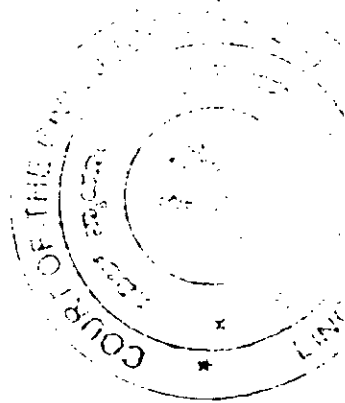
  
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documents as per Ex.P1 to Ex.P73 in support his  
claim and also in support claimant in claim  
petitions LAC NO.69/2015, LAC NO.70/2015, LAC  
NO.73/2015, LAC NO.74/2015, LAC NO.75/2015 LAC  
NO.79/2015, AND LAC NO.83/2015, On other hand  
respondents have not given any evidence and not  
produced any documents in support of their  
defense.

10. Heard the arguments submitted by the learned  
counsel for claimants and respondents, perused  
evidence available on records then the following  
points arose for my consideration.

1. Whether the claimants proves that,  
assessment made and award passed by  
the respondent No.1 with regard to  
the petition properties is not  
proper and correct?
2. Whether the claimants proves that,  
they are entitled for enhancement  
of compensation if so, What is the  
amount?
3. What order or award?

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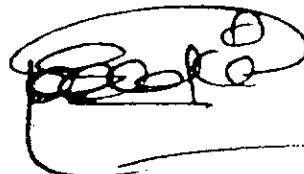
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11. My findings to the above points are as follows:-

POINT NO.1: Affirmative  
POINT NO.2: Partly affirmative  
POINT NO.3: As per the final order for the following reasons:

### REASONS

12. POINT NO.1 and 2:- The facts and evidence of the above point No.1 and 2 are interrelative to each other, hence in order to avoid the repetition of the facts and evidence I am taking the above point No.1 and 2 for my common discussion.

13. As per the records, 4(1) notification is passed on 08-08-2012 with regard to petition properties and final award is passed on 15-12-2013, after passing the award and receipt of the 12(2) notice, the petitioners have received award amount by filing protest petitions as provided under Sec.18(1) of the Land Acquisition Act, saying that assessment made and award passed by the respondent No.1 is much lower side, so that



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they are entitled for enhanced compensation, but

as per case of the respondents assessment made and award passed by the respondent No.1 is proper and correct, petitioners are not entitled for enhancement of compensation. Accordingly prays to dismiss the petitions.

14. In order to prove their case claimant in LAC Mahaboob Sab No.72/2015 by name N.Swamy has appeared and deposed his evidence as PW-1 on behalf of himself and also on behalf of other petitioners, In support of his oral evidence—relied upon 5873 documents marked at Ex.P1 to Ex.P73.

15. On perusal of the above said documents with reference to the Hutti village map marked at Ex.P31, it is noticed that petition properties are abutting to the above said schools and colleges and hospitals and within the vicinity of existing Hutti Gold Mines. Further it is noticed that said properties are by the side of the Lingasugur -

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J Raichur Highway. Further it is noticed that said lands are non irrigated lands, but soil of the land is with full of gold minerals. Hutti gold mines industries is running near by the lands referred above since many years.

16. Ex.P1 is 4(1) notification in all LAC cases,

Ex.P2 is 6(1) notification, Ex.P3 is Award, Ex.P4

is Award confirmation order, Ex.P5 is 18(1)

application in LAC No.72/2015, Ex.P6 is 12(2)

notice, Ex.P7 is 18(1) application in LAC

No.69/2015, Ex.P8 is 12(2) notice, Ex.P9 is 18(1)

application in LAC No.70/2015, ~~Ex.P10 is 12(2)~~

notice, Ex.P11 is 18(1) application in LAC

No.71/2015, Ex.P12 is 12(2) notice, Ex.P13 is

18(1) application in LAC No.73/2015, Ex.P14 is

12(2) notice, Ex.P15 is 18(1) application in LAC

No.74/2015, Ex.P16 is 12(2) notice, Ex.P17 is

18(1) application in LAC No.76/2015, Ex.P18 is

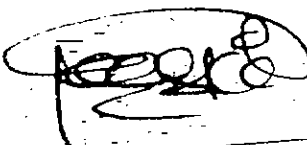
12(2) notice, Ex.P19 is 18(1) application in LAC

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~~Ex.P10~~

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No.79/2015, Ex.P20 is 12(2) notice, Ex.P21 is  
18(1) application in LAC No.83/2015, Ex.P22 is  
12(2) notice.

17. Ex.P23 is the ROR of land Sy.No.315/\*/\*,  
measuring 01 acres 08 guntas standing in the name  
of claimants in petition No.72/2015, Ex.P24 is  
Map, Ex.P25 is ROR of land Sy.No.316/\*/\* measuring  
01-20 guntas standing in the name of claimants in  
petition No.75/2015, Ex.P26 is map, Ex.P27 is ROR  
of land Sy.No.471/\*/\* measuring 04-12 guntas  
standing in the name of claimants in petition  
No.77/2015, Ex.P28 is map, Ex.P29 is ROR of land  
Sy.No.477/\*/\* measuring 03-20 guntas standing in  
the name of claimants in petition No.73/2015,  
Ex.P30 is map, Ex.P31 is village map, Ex.P32 is  
NA order dated 08-02-2005, Ex.P33 is NA order,  
Ex.P34 is Annexure-5 dated 08-12-2011, Ex.P35 is  
conversion order dated 02-02-2012 in LAC  
No.72/2015, Ex.P36 is Approval map, Ex.P37 is

  
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Annexure -5 dated 29-09-2011, Ex.P38 is conversion

order dated 01-12-2011, Ex.P39 is approval map,

Ex.P40 is Annexure-5 dated 23-01-2013, Ex.P41 is

conversion order dated 27-10-2000, Ex.P42 is

Annexure-5 dated 08-11-2011, Ex.P43 is conversion

order dated 03-02-2012, Ex.P44 is approval map,

Ex.P45 is conversion order dated 18-06-2014,

Ex.P46 is Map, Ex.P47 is Annexure-5 dated 08-12-

2011, Ex.P48 is Map, Ex.P49 is Annexure-5 dated

06-03-2013, Ex.P50 is conversion order dated 03-

02-2012, Ex.P51 is map, Ex.P52 is Annexure-5 dated

14-03-2012, Ex.P53 is conversion order dated 28-

09-2012, Ex.P54 is Annexure-5 dated 08-11-2011,

Ex.P55 is conversion order dated 15-03-2012,

Ex.P56 is map, Ex.P57 is Annexure-10 dated 25-06-

2007.

18. Ex.P58 is copy of registered sale deed dated

01-08-2011, pertains to open plot bearing No.53-

76/2, measuring East-west: 50 feet and north-



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south: 100 feet situated at Hutti Town sold out by one A. Raghavendra S/o A. Ramamurthi, R/o Hutti village in favour of Manjunathareddy S/o Bheemanagouda Patil Tavaga of Tavaga (Rodalabanda) village for Rs.4,35,000/-. On perusal of the same it is noticed that very open plot in NA land is 5000 sq.feet and sold out for Rs.4,35,000/- in the year 2011, i.e., prior to issuance of 4(1) notification in this case dated 16-08-2012. Ex.P59 is copy of registered sale deed dated 08-04-2011, pertains to open plot bearing No.53-76, measuring East-west: 100 feet and north-south: 100 feet towards middle East-west: 25 feet and north-south:

100 feet situated at Hutti Town in Raghavendra Layout sold out by one A. Raghavendra S/o Ramamurthi, R/o Hutti village in favour of Ningappa S/o Malleshappa Motagi of Hutti village for Rs.3,00,000/-. On perusal of the same it is noticed that very open plot in NA land is 2500 sq.feet and sold out for Rs.3,00,000/- in the year 2011, i.e., prior to issuance of 4(1) notification





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in this case dated 16-08-2012, Ex.P60 is copy of registered sale deed dated 20-04-2011, pertains to open plot bearing No.6-62/1, measuring East-west: 40 feet and north-south: 10 feet situated at Hutti Town at Nagayya Layout sold out by one Pakeeramma W/o Prakash, R/o Hutti village in favour of Ramesh S/o Yankappa of Hutti village for Rs.80,000/-.. On perusal of the same it is noticed that very open plot in NA land is 400 sq.feet and sold out for Rs.80,000/- in the year 2011, i.e., prior to issuance of 4(1) notification in this case dated 16-08-2012. Under such circumstances it goes to show that valuation of the above said land is Rs.200/- per sq. feet.,

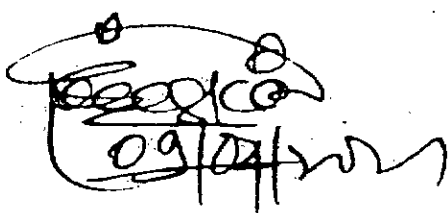
19. Ex.P61 is annexure issued by D.G Raichur, Ex.P62 is conversion order, Ex.P63 is map, Ex.P64 is Annexure-5, Ex.P65 is conversion order, Ex.P66 is map, Ex.P67 is Annexure-10, Ex.P68 is conversion order, Ex.P69 is map, Ex.P70 is

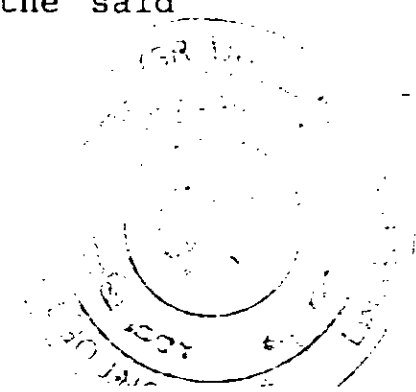
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Annexure-10, Ex.P71 is conversion order, Ex.P72 is map, Ex.P73 is Order passed by Asst. Commissioner, Lingasugur, Ex.P74 is map.

20. In cross-examination PW-1 admitted that Hutti Gold Mines will not come within the jurisdiction of Hutti village Panchayat and which is within the industrial area. Further it is admitted that panchayat area and industrial area are different in Hutti Revenue village, further residential houses pertains to the Hutti Gold Mines are within the schedule properties, further Kota is 2 kms away from the Hutti village, further ~~Hutti company~~ is 1 km away from the Medinapur village, further he do not know that there shall not be petrol bunk within radius of 3 kms. Further admits that petrol bunk  $\frac{1}{2}$  km away from his land, further admits that the time of acquisition and they have received compensation of Rs.56,500/- per acre, further denied that they have converted the said

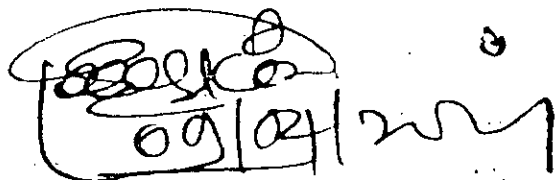




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lands after the acquisition, further denied that there is no relations specialty.

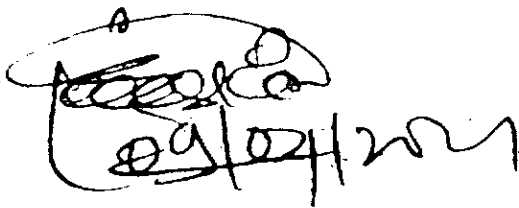
21. Further admits that govt. Hospital is on eastern side of the Hutti village and their lands are situated on western side of the Hutti village, sale deeds furnished by them are related to Hutti village, further deposed that petition properties are abating to Hutti village, further admits that he has not furnished the market value certificate issued by the Sub Registrar and their lands are agricultural lands, further admits that on western and northern side of the Hutti company, there are no buildings and there are converted lands, further denied that lands are not near by Hutti company, further admitted that documents furnished by them are related to eastern side lands, further admits that there are no converted lands surrounding the petition properties, petition properties are situated within the jurisdiction of Hutti and Kota villages, further deposed that

  
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sale' deeds furnished by them or not pertains to their property but they are pertains to neighboring properties.

22. On perusal of these documents it is noticed that petition properties are acquired for the purpose of Hutti Gold Mines industries, it goes to show that respondent No.1 has acquired the said lands for the benefits of respondent No.2, further it is noticed that in order to dig the said lands and acquired gold for the purpose of their business very lands are acquired, further it is

noticed that very lands are within the vicinity of Hutti Gold Mines and also by the side by Raichur - Lingasugur state highway, further it is noticed that very lands are surrounded with NA lands with thick population. Further it is noticed that very lands are surrounded with schools, colleges and hospitals, but it is noticed that crops are not mentioned under the record of rights. Further income proofs are not furnished. Under such



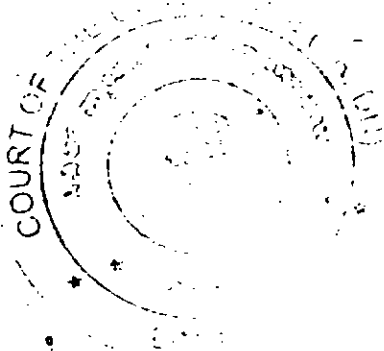


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circumstances this court come to conclusion that  
the petition properties are valuable lands and  
they are NA potential lands.

23. Looking to the sale deeds available on record  
as per Ex.P58, Ex.P59 NA land is sold out for  
Rs.200/- per sq.feet in the year 2011, Further as  
per Ex.P12 award is @ of Rs.18/- per sq.feet.  
Ex.P60 NA land is sold out for Rs.120 per sq.feet  
in the year 2011.

24. In the case of Digambar and others Vs. State  
of Maharashtra and others reorted in (2013) 14 SC  
406 Hon'ble Supreme Court of India held that while  
fixing the market value of the acquired land, the  
land Land Acquisition Officer is required to keep  
in mind the following points;

- (i) Existing geographical situation of the land
- (ii) Existing use of the land



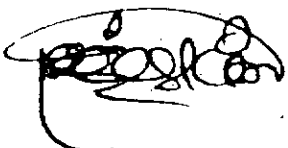
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(iii) Already available advantages, like proximity to nation or State Highway or road and or developed area.

(iv) market value of other land situated in the name of locality/village/area of adjacent or very near the acquired land.

25. Further in the case of Cement Corporation of India Ltd. Etc Vs. Purya and Other etc., reported in 2004 (8) SCC 270 wherein Hon'ble Supreme court of India held that court can consider the sale deeds furnished by the petitioner at the time of ascertaining to the compensation without examining

vendor or vendee. Further in the case of Sharadamma Vs SLAO and Another, reported in 2007(2) Kar LJ 595 (SC) Hon'ble High court of Karnataka held that, while determining the market value, on the basis of location of the petition property its market value can be assessed. Further in the case of Ashrafi and other Vs. State of Hariyana and Others reported in (2013) 5 SC 527



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Hon'ble Supreme Court of India held that while ascertaining the compensation pertains to the lands within the Municipal areas development charges shall be deducted @ 33%. Further in the case of K. Sharadarani Shrinivas Vs. SLAO and Another, reported in (2010) SC 524 Hon'ble Supreme Court of India held that enhancement of the 10% of the market value is proper and correct.

26. In support of their case counsel for petitioner relied upon the following citation;

(1) Mehrawal Khewaji Trust (regd) Vs. State of Punjab & Others reported in (2012) 5 SCC 432,

(2) Land acquisition officer and Mandal Revenue Officer Vs. V. Narasiah, reported in AIR 2001 SC 1117.

(3) Land acquisition officer Vs. Ashok reported in ILR 1985 Kar. 559

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(4) Murari B Aggarwal Vs. The LAO and AC

Jamakhandi and others in MFA NO.25482/2012 (LAC)

dated 25-11-2019.

27. MFA No.102086/2014 (LAC) C/w MFA

No.102087/2014 (LAC) dated 18-12-2020 in between

Ganappa S/o Virupaxappa Pujar Vs. The Land

Acquisition officer, Asst. Commissioner Gadag and

Another.

28. In the above said decisions it is held that

development charges shall be deducted @40%.

Further in the case of Special Land Acquisition

officer Vijayanagar Seet Plant Vs. Sanna Subbanna

reported 1976(2) Kar. LJ 345 it is held that for

the purpose of award average prices indicated by

the said transactions before the Sub Registrar are

to be taken in consideration, so that on the basis

of previous sale deeds produced before this court,

this court come to the conclusion that award

passed by the respondent No.1 is inadequate apart

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from their respondent No.1 and 2 have not stepped into the witness box with reference to the award, so that award fixed by the respondent and reasons assigned by him for fixing of such award is not accepted. Hence the said award requires to enhance for the compensation Rs.80/-per square feet after deducting 40% of acquired land for basis amunities as reasons stated supra.

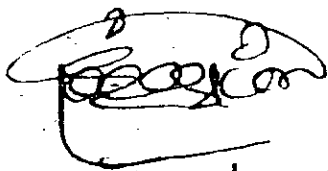
29. The respective claimants in these cases are entitled for solatium @ 30% on the enhanced market value since date of the possession.

30. No materials have been placed by either of the parties therein as to when the possession of the acquired lands has been obtained by the respondent No.1 and 2 and there is no recital in award about date of possession. In the absence of such recitals, the respective claimants are entitle for interest @ 9% per annum on the enhanced market value for the period of one year from the date of

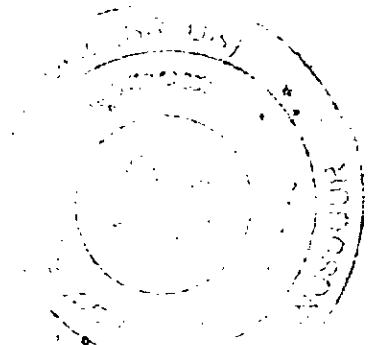
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dispossession, and thereafter they are entitle for  
interest @ 12% per annum till payment. Claimants  
have presented their petition before the LAO on  
05-05-2014 as provided under Sec.18(1) of the Act,  
further petitioners have not furnished any  
materials to show the existence of any crop in  
their respective acquired lands and income. In the  
absence of such material on record oral testimony  
of PW-1 in respect of the crops will not be  
accepted. And no compensation is awarded towards  
standing crops. With these views this court come  
to the conclusion that assessment made and  
compensation awarded by the respondent No.1 is not

proper and correct, they are entitle for  
compensation @ Rs.80/- per sq. feet, very  
properties located within the panchayat limits in  
industrial area so that petition properties  
deduction for the purpose of development shall be  
@ 40%. With these views I answered the point No.1  
in affirmative and point No.2 is partly in the  
affirmative.



09/04/2014



48

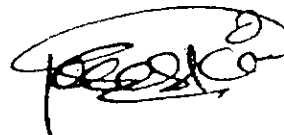
31. POINT NO.3 :-, For reasons assigned and findings given on points No.1 and 2 court proceed to pass the following order.

: O R D E R :

The reference petition LAC  
No.72/2015 C/w LAC NO.69/2015, LAC  
NO.70/2015, LAC NO.71/2015 LAC  
NO.73/2015, LAC NO.74/2015, LAC  
NO.75/2015 LAC NO.79/2015, AND LAC  
NO.83/2015 filed by the respective  
claimants are hereby allowed in part  
in the following terms:

1. The market value of the respective acquired lands in these cases is fixed at the rate of Rs.80/- (Rupees Eighty only) per square feet except pot kharab and deducted land at the rate of 40% for basic amunities.

2. The respective claimants are entitled for 30% of solatium on the enhanced market value @ 10% pa on the enhanced market value from the date of publication of preliminary notification under Sec.4(1) of L.A

  
09/04/2021

49  
Act dated 08-08-2012, till the date  
of award dated 15-12-2013.

3. The respective claimants are also  
entitled for interest @ 9% pa on the  
enhanced market value for period of  
one year from the date of  
dispossession and thereafter @ 15% pa  
till payment.

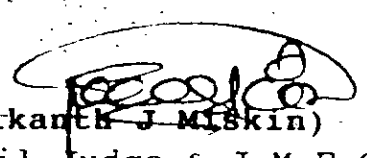
4. If any compensation is received by  
the respective claimants from the  
respondents which shall be deducted  
at the time of payment.

5. The advocate fee is fixed at  
Rs.500/-

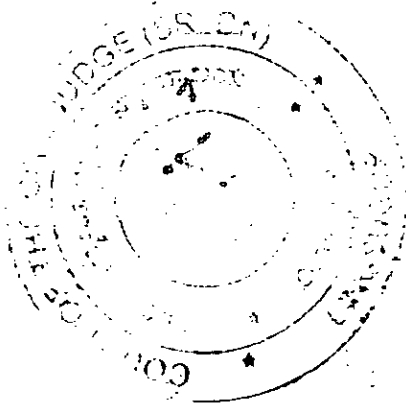
6. Draw decree/award accordingly,

7. The copy of this judgment is to be  
kept in LAC NO.69/2015, LAC  
NO.70/2015, LAC NO.71/2015, LAC  
NO.73/2015, LAC NO.74/2015, LAC  
NO.75/2015 LAC NO.79/2015, AND LAC  
NO.83/2015.

(Dictated to the Stenographer directly on computer, corrected and then  
pronounced by me in the open court on 09<sup>th</sup> day of April)

  
(Lakshmikanth J. Miskin)  
Senior Civil Judge & J.M.F.C.,  
Lingasugur.

09/04/2017



ANNEXURE

1. WITNESSES EXAMINED FOR THE CLAIMANT:

PW1 : Mehaboobsab S/o Khasimsab

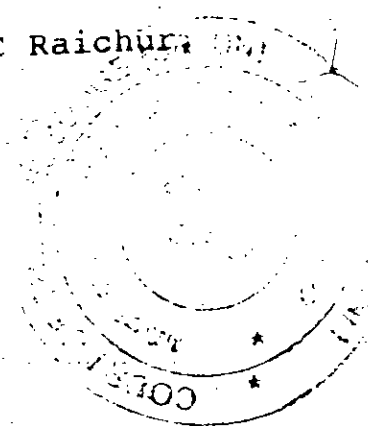
2. LIST OF DOCUMENTS MARKED FOR THE CLAIMANT:

Ex.P1 : 4(1) notification,  
 Ex.P2 : 6(1) notification,  
 Ex.P3 : Award,  
 Ex.P4 : Award confirmation order,  
~~Ex.P5~~ : ~~18(1) application in LAC No.72/2015,~~  
 Ex.P6 : 12(2) notice,  
 Ex.P7 : 18(1) application in LAC No.69/2015,  
 Ex.P8 : 12(2) notice,  
 Ex.P9 : 18(1) application in LAC No.70/2015,  
 Ex.P10 : 12(2) notice,  
 Ex.P11 : 18(1) application in LAC No.71/2015,  
 Ex.P12 : 12(2) notice,  
 Ex.P13 : 18(1) application in LAC No.73/2015,  
 Ex.P14 : 12(2) notice,  
~~Ex.P15~~ : ~~18(1) application in LAC No.74/2015,~~  
~~Ex.P16~~ : ~~12(2) notice,~~  
 Ex.P17 : 18(1) application in LAC No.75/2015,  
 Ex.P18 : 12(2) notice,  
 Ex.P19 : 18(1) application in LAC No.79/2015,  
 Ex.P20 : 12(2) notice,  
 Ex.P21 : 18(1) application in LAC No.83/2015,  
 Ex.P22 : 12(2) notice,  
 Ex.P23 : ROR,  
 Ex.P24 : Map,  
 Ex.P25 : ROR,  
 Ex.P26 : Map,  
 Ex.P27 : ROR,  
 Ex.P28 : Map,  
 Ex.P29 : ROR,  
 Ex.P30 : Map,  
 Ex.P31 : village map,  
 Ex.P32 : NA order dated 08-02-2005,

*[Signature]*  
 09/04/2011

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Ex.P33 : NA order,  
 Ex.P34 : Annexure-5 dated 08-12-2011,  
 Ex.P35 : Conversion order dated 02-02-2012 in  
 LAC No.72/2015,  
 Ex.P36 : Approval map,  
 Ex.P37 : Annexure -5 dated 29-09-2011,  
 Ex.P38 : Conversion order dated 01-12-2011,  
 Ex.P39 : Approval map,  
 Ex.P40 : Annexure-5 dated 23-01-2013,  
 Ex.P41 : Conversion order dated 27-10-2000,  
 Ex.P42 : Annexure-5 dated 08-11-2011,  
 Ex.P43 : Conversion order dated 08-02-2012,  
 Ex.P44 : Approval map,  
 Ex.P45 : Conversion order dated 18-06-2014,  
 Ex.P46 : Map,  
 Ex.P47 : Annexure-5 dated 08-12-2011,  
 Ex.P48 : Map,  
 Ex.P49 : Annexure-5 dated 06-03-2013,  
 Ex.P50 : Conversion order dated 03-02-2012,  
 Ex.P51 : Map,  
 Ex.P52 : Annexure-5 dated 14-03-2012,  
 Ex.P53 : Conversion order dated 28-09-2012,  
 Ex.P54 : Annexure-5 dated 08-11-2011,  
 Ex.P55 : Conversion order dated 15-03-2012,  
 Ex.P56 : Map,  
 Ex.P57 : Annexure-10 dated 25-06-2007,  
 Ex.P58 : Copy of registered sale deed  
 dated 01-08-2011,  
 Ex.P59 : Copy of registered sale deed  
 dated 08-04-2011,  
 Ex.P60 : Copy of registered sale deed  
 dated 20-04-2011,  
 Ex.P61 : Annexure issued by D.C Raichur,  
 Ex.P62 : Conversion order,  
 Ex.P63 : Map,  
 Ex.P64 : Annexure-5,  
 Ex.P65 : Conversion order,  
 Ex.P66 : Map,  
 Ex.P67 : Annexure-10,  
 Ex.P68 : Conversion order,  
 Ex.P69 : Map,



*[Handwritten signature]*  
 09/04/2011

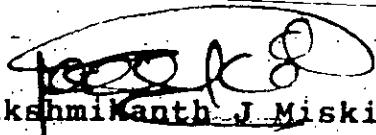
Ex.P70 : Annexure-10,  
Ex.P71 : Conversion order,  
Ex.P72 : Map,  
Ex.P73 : Order passed by Asst.  
Commissioner, Lingasugur,  
Ex.P74 : Map.

3. WITNESSES EXAMINED FOR THE RESPONDENT:

-NIL-

4. LIST OF DOCUMENTS MARKED FOR THE RESPONDENT

-NIL-

  
(LakshmiKanth J. Miskin)

Senior Civil Judge & J.M.F.C.,  
Lingasugur.

09/04/2017

CERTIFIED TRUE COPY

Copyist Examiner  
Civil Judge (S.D.) &  
J.M.F.C. Court, Lingasugur.

BEFORE THE LAND ACQUISITION OFFICER / ASSISTANT  
COMMISSIONER, LINGSUGUR

PETITIONER :- Gundappa S/o Basangouda Gurikar, R/o  
Hutti, Tq:- Lingsugur.

PETITION U/SEC. 28 (A) OF LAND ACQUISITION ACT 1984

The above named petitioner most respectfully submits as follows:-

1. I am the owner and possessor of the Land Sy.No.67\*/ of Hutti village, Tq:- Lingsugur out of which 02 Acres 03 Guntas has been acquired by the Hon'ble Officer under his Award No. LAQ/22/2013-14 Dated:- 15-12-2013 for the purpose of Hutti Gold Mines, Company Ltd., Hutti, Tq:- Lingsugur. The Notification U/Sec. 4(1) of the Land Acquisition Act was published in Karnataka Gazette on 08-08-2012 and U/Sec, 6 (1) of the L.A. Act got published in Karnataka Gazette Dated:- 12-09-2013.

2. That some of the Lands under the above Notification were referred to the Senior Civil Judge, Lingsugur U/Sec. 18 of the L.A. Act for enhancement of compensation. The Hon'ble Senior Civil Judge, Lingsugur was pleased to award the compensation amount @ Rs. 80/- per Square feet and deduction @ 40% for basic amenities (Rs. 20,90,880/- per Acre) together with 30% Solatium and Interest @ 9% and 15% on enhanced compensation amount to the similar and adjacent Lands Sy.Nos as shown in the Judgment of the Senior Civil Judge, Lingsugur in LAC No. 69/2015 Dated:-09-04-2021. The copy of the Judgment & award is enclosed herein for the kind perusal of the Hon'ble Officer

Hence under the above circumstances it is humbly prayed that the Hon'ble Officer my kindly be award the Market Value @ Rs.20,90,880/- per Acre to my above said Land with other following statutory benefits viz.,

- 30% Solatium on Market Value as per Section 23 (2) of L.A. Act.
- 9% and 15% Interest on compensation amount as per Section 34 and 28 of the L.A. Act and any other benefits for which the present petitioner/claimant is entitled to the said Land in the interest of justice.

Place:- Lingsugur

Date :- 18-06-2021

Through

K.K.Vishwanath Advocate,  
Lingsugur

ENCL:- C.C. of Judgment in LAC No. Dated:- 69/2015 Dated:- 09-04-2021 and Award Dated:- 16-04-2021.

PETITIONER/CLAIMANT/

(Gundappa)



BEFORE THE LAND ACQUISITION OFFICER / ASSISTANT  
COMMISSIONER, LINGSUGUR

54  
PETITIONER :- Kanakappa S/o Durgappa, dead by his LRS.  
Smt. Durgamma W/o Late Kanakappa, R/o  
Hutti, Tq:- Lingsugur.

PETITION U/SEC. 28 (A) OF LAND ACQUISITION ACT 1984

The above named petitioner most respectfully submits as follows:-

1. We are the owners and possessors of the Land Sy.No.67/\*/, measuring 09 Acres 38 guntas of Hutti village, Tq:- Lingsugur has been acquired by the Hon'ble Officer under his Award No. LAQ/22/2013-14 Dated:- 15-12-2013 for the purpose of Hutti Gold Mines Company Ltd., Hutti, Tq:- Lingsugur. The Notification U/Sec. 4(1) of the Land Acquisition Act was published in Karnataka Gazette on 08-08-2012 and U/Sec. 6 (1) of the L.A. Act got published in Karnataka Gazette Dated:- 12-09-2013.

2. That some of the Lands under the above Notification were referred to the Senior Civil Judge, Lingsugur U/Sec. 18 of the L.A. Act for enhancement of compensation. The Hon'ble Senior Civil Judge, Lingsugur was pleased to award the compensation amount @ Rs. 80/- per Square feet and deduction @ 40% for basic amenities (Rs. 20,90880/- per Acre) together with 30% Solatium and Interest @ 9% and 15% on enhanced compensation amount to the similar and adjacent Lands Sy.Nos as shown in the Judgment of the Senior Civil Judge, Lingsugur in LAC No. 69/2015 Dated:-09-04-2021. The copy of the Judgment & award is enclosed herein for the kind perusal of the Hon'ble Officer

Hence under the above circumstances it is humbly prayed that the Hon'ble Officer my kindly be award the Market Value @ Rs.20,90,880/- per Acre to my / our above said Land with other following statutory benefits viz.,

- 30% Solatium on Market Value as per Section 23 (2) of L.A. Act.
- 9% and 15% Interest on compensation amount as per Section 34 and 28 of the L.A. Act and any other benefits for which the present petitioner/claimant is entitled to the said Land in the interest of justice.

Place:- Lingsugur

Date :- 16/04/2021

Through

K.K.Vishwanath Advocate,  
Lingsugur

PETITIONER/CLAIMANT/

(Durgamma)

ENCL:- C.C. of Judgment in LAC No. Dated:- 69/2015 Dated:- 09-04-2021 and Award Dated:- 16-04-2021.

BEFORE THE LAND ACQUISITION OFFICER / ASSISTANT  
COMMISSIONER, LINGSUGUR

PETITIONER :- Amarappa S/o Yenkappa Hunasagi, R/o  
Hutti, Tq:- Lingsugur.

PETITION U/SEC. 28 (A) OF LAND ACQUISITION ACT 1984

The above named petitioner most respectfully submits as follows:-

1. I am the owner and possessor of the Land Sy.No.469/\*/\* of Kotha village, Tq:- Lingsugur out of which 4 Acres has been acquired by the Hon'ble Officer under his Award No.LAQ/22/2013-14 Dated:- 15-12-2013 for the purpose of Hutti Gold Mines, Company Ltd., Hutti, Tq:- Lingsugur. The Notification U/Sec. 4(1) of the Land Acquisition Act was published in Karnataka Gazette on 08-08-2012 and U/Sec, 6 (1) of the L.A. Act got published in Karnataka Gazette Dated:- 12-09-2013.

2. That some of the Lands under the above Notification were referred to the Senior Civil Judge, Lingsugur U/Sec: 18 of the L.A. Act for enhancement of compensation. The Hon'ble Senior Civil Judge, Lingsugur was pleased to award the compensation amount @ Rs. 80/- per Square feet and deduction @ 40% for basic amenities (Rs. 20,90,880/- per Acre) together with 30% Solatium and Interest @ 9% and 15% on enhanced compensation amount to the similar and adjacent Lands Sy.Nos as shown in the Judgment of the Senior Civil Judge, Lingsugur in LAC No. 69/2015 Dated:-09-04-2021. The copy of the Judgment & award is enclosed herein for the kind perusal of the Hon'ble Officer

Hence under the above circumstances it is humbly prayed that the Hon'ble Officer my kindly be award the Market Value @ Rs.20,90,880/- per Acre to my above said Land with other following statutory benefits viz.,

- 30% Solatium on Market Value as per Section 23 (2) of L.A. Act.
- 9% and 15% Interest on compensation amount as per Section 34 and 28 of the L.A. Act and any other benefits for which the present petitioner/claimant is entitled to the said Land in the interest of justice.

Place:- Lingsugur

Date :- 17-04-2021

Through

K.K.Vishwanath Advocate,  
Lingsugur

PETITIONER/CLAIMANT/

(Amarappa)

ENCL:- C.C. of Judgment in LAC No. Dated:- 69/2015 Dated:- 09-04-2021 and Award Dated:- 16-04-2021.

56  
COMMISSIONER, LINGSUGUR

PETITIONER :- Shivalingappa S/o Amarappa Hunasagi, R/o  
Hutti, Tq:- Lingsugur.

PETITION U/SEC. 28 (A) OF LAND ACQUISITION ACT 1984

The above named petitioner most respectfully submits as follows:-

1. I am the owner and possessor of the Land Sy.No.469/\*/\* of Kotha village, Tq:- Lingsugur out of which 4 Acres has been acquired by the Hon'ble Officer under his Award No. LAQ/22/2013-14 Dated:- 15-12-2013 for the purpose of Hutti Gold Mines, Company Ltd., Hutti, Tq:- Lingsugur. The Notification U/Sec. 4(1) of the Land Acquisition Act was published in Karnataka Gazette on 08-08-2012 and U/Sec. 6 (1) of the L.A. Act got published in Karnataka Gazette Dated:- 12-09-2013.

2. That some of the Lands under the above Notification were referred to the Senior Civil Judge, Lingsugur U/Sec. 18 of the L.A. Act for enhancement of compensation. The Hon'ble Senior Civil Judge, Lingsugur was pleased to award the compensation amount @ Rs. 80/- per Square feet and deduction @ 40% for basic amenities (Rs. 20,90,880/- per Acre) together with 30% Solatium and Interest @ 9% and 15% on enhanced compensation amount to the similar and adjacent Lands Sy.Nos as shown in the Judgment of the Senior Civil Judge, Lingsugur in LAC No. 69/2015 Dated:-09-04-2021. The copy of the Judgment & award is enclosed herein for the kind perusal of the Hon'ble Officer

Hence under the above circumstances it is humbly prayed that the Hon'ble Officer my kindly be award the Market Value @ Rs.20,90,880/- per Acre to my above said Land with other following statutory benefits viz.,

i) 30% Solatium on Market Value as per Section 23 (2) of L.A. Act.

ii) 9% and 15% Interest on compensation amount as per Section 34 and 28 of the L.A. Act and any other benefits for which the present petitioner/claimant is entitled to the said Land in the interest of justice.

Place:- Lingsugur

Date :- 23/06/21

Through

K.K.Vishwanath Advocate,  
Lingsugur

PETITIONER/CLAIMANT/

(Shivalingappa)

ENCL:- C.C. of Judgment in LAC No. Dated:- 69/2015 Dated:- 09-04-2021 and Award Dated:- 16-04-2021.

57  
COMMISSIONER, LINGSUGUR

PETITIONER :- Ningappa S/o Yenkappa Hunasagi, R/o  
Hutti, Tq:- Lingsugur.

PETITION U/SEC. 28 (A) OF LAND ACQUISITION ACT 1984

The above named petitioner most respectfully submits as follows:-

1. I am the owner and possessor of the Land Sy.No.469/\*/\* of Kotha village, Tq:- Lingsugur out of which 4 Acres has been acquired by the Hon'ble Officer under his Award No. LAQ/22/2013-14 Dated:- 15-12-2013 for the purpose of Hutti Gold Mines, Company Ltd., Hutti, Tq:- Lingsugur. The Notification U/Sec. 4(1) of the Land Acquisition Act was published in Karnataka Gazette on 08-08-2012 and U/Sec, 6 (1) of the L.A. Act got published in Karnataka Gazette Dated:- 12-09-2013.
2. That some of the Lands under the above Notification were referred to the Senior Civil Judge, Lingsugur U/Sec. 18 of the L.A. Act for enhancement of compensation. The Hon'ble Senior Civil Judge, Lingsugur was pleased to award the compensation amount @ Rs. 80/- per Square feet and deduction @ 40% for basic amenities (Rs. 20,90,880/- per Acre) together with 30% Solatium and Interest @ 9% and 15% on enhanced compensation amount to the similar and adjacent Lands Sy.Nos as shown in the Judgment of the Senior Civil Judge, Lingsugur in LAC No. 69/2015 Dated:-09-04-2021. The copy of the Judgment & award is enclosed herein for the kind perusal of the Hon'ble Officer.

Hence under the above circumstances it is humbly prayed that the Hon'ble Officer my kindly be award the Market Value @ Rs.20,90,880/- per Acre to my above said Land with other following statutory benefits viz.,

- i) 30% Solatium on Market Value as per Section 23 (2) of L.A. Act.
- ii) 9% and 15% Interest on compensation amount as per Section 34 and 28 of the L.A. Act and any other benefits for which the present petitioner/claimant is entitled to the said Land in the interest of justice.

Place:- Lingsugur

Date :- 14.06.2021

Through

K.K.Vishwanath Advocate,  
Lingsugur

PETITIONER/CLAIMANT/

(Ningappa)

ENCL:- C.C. of Judgment in LAC No. Dated:- 69/2015 Dated:- 09-04-2021 and Award Dated:- 16-04-2021.

BEFORE THE LAND ACQUISITION OFFICER / ASSISTANT  
COMMISSIONER, LINGSUGUR

PETITIONER :- Manjunath S/o Amarappa Hunasagi, R/o  
Hutti, Tq:- Lingsugur.

PETITION U/SEC. 28 (A) OF LAND ACQUISITION ACT 1984

The above named petitioner most respectfully submits as follows:-

1. I am the owner and possessor of the Land Sy.No.469/\*/\* of Kotha village, Tq:- Lingsugur out of which 4 Acres has been acquired by the Hon'ble Officer under his Award No. LAQ/22/2013-14 Dated:- 15-12-2013 for the purpose of Hutti Gold Mines, Company Ltd., Hutti, Tq:- Lingsugur. The Notification U/Sec. 4(1) of the Land Acquisition Act was published in Karnataka Gazette on 08-08-2012 and U/Sec. 6 (1) of the L.A. Act got published in Karnataka Gazette Dated:- 12-09-2013.

2. That some of the Lands under the above Notification were referred to the Senior Civil Judge, Lingsugur U/Sec. 18 of the L.A. Act for enhancement of compensation. The Hon'ble Senior Civil Judge, Lingsugur was pleased to award the compensation amount @ Rs. 80/- per Square feet and deduction @ 40% for basic amenities (Rs. 20,90,880/- per Acre) together with 30% Solatium and Interest @ 9% and 15% on enhanced compensation amount to the similar and adjacent Lands Sy.Nos as shown in the Judgment of the Senior Civil Judge, Lingsugur in LAC No. 69/2015 Dated:- 09-04-2021. The copy of the Judgment & award is enclosed herein for the kind perusal of the Hon'ble Officer

Hence under the above circumstances it is humbly prayed that the Hon'ble Officer my kindly be award the Market Value @ Rs.20,90,880/- per Acre to my above said Land with other following statutory benefits viz.,

- 30% Solatium on Market Value as per Section 23 (2) of L.A. Act.
- 9% and 15% Interest on compensation amount as per Section 34 and 28 of the L.A. Act and any other benefits for which the present petitioner/claimant is entitled to the said Land in the interest of justice.

Place:- Lingsugur

Date :- 16-04-2021

Through

K.K.Vishwanath Advocate,  
Lingsugur

PETITIONER/CLAIMANT/

(Manjunath)

ENCL:- C.C. of Judgment in LAC No. Dated:- 69/2015 Dated:- 09-04-2021 and Award Dated:- 16-04-2021.

BEFORE THE LAND ACQUISITION OFFICER / ASSISTANT  
COMMISSIONER, LINGSUGUR

PETITIONER :- Devamma W/o Sharanappa (D/o Devappa),  
R/o Hutti, Tq:- Lingsugur, *Amara B-6*

PETITION U/SEC. 28 (A) OF LAND ACQUISITION ACT 1984

The above named petitioner most respectfully submits as follows:-

1. I am the owner and possessor of the Land Sy.No.463\*/Ba of Kotha village, Tq:- Lingsugur out of which 2 Acres 33 Guntas has been acquired by the Hon'ble Officer under his Award No. LAQ/22/2013-14 Dated:- 15-12-2013 for the purpose of Hutti Gold Mines, Company Ltd., Hutti, Tq:- Lingsugur. The Notification U/Sec. 4(1) of the Land Acquisition Act was published in Karnataka Gazette on 08-08-2012 and U/Sec, 6 (1) of the L.A. Act got published in Karnataka Gazette Dated:- 12-09-2013.
2. That some of the Lands under the above Notification were referred to the Senior Civil Judge, Lingsugur U/Sec. 18 of the L.A. Act for enhancement of compensation. The Hon'ble Senior Civil Judge, Lingsugur was pleased to award the compensation amount @ Rs. 80/- per Square feet and deduction @ 40% for basic amenities (Rs. 20,90,880/- per Acre) together with 30% Solatium and Interest @ 9% and 15% on enhanced compensation amount to the similar and adjacent Lands Sy.Nos as shown in the Judgment of the Senior Civil Judge, Lingsugur in LAC No. 69/2015 Dated:-09-04-2021. The copy of the Judgment & award is enclosed herein for the kind perusal of the Hon'ble Officer.

Hence under the above circumstances it is humbly prayed that the Hon'ble Officer my kindly be award the Market Value @ Rs.20,90,880/- per Acre to my above said Land with other following statutory benefits viz.,

- i) 30% Solatium on Market Value as per Section 23 (2) of L.A. Act.
- ii) 9% and 15% Interest on compensation amount as per Section 34 and 28 of the L.A. Act and any other benefits for which the present petitioner/claimant is entitled to the said Land in the interest of justice.

Place:- Lingsugur

Date :- 17/06/2021

Through

K.K.Vishwanath Advocate,  
Lingsugur

PETITIONER/CLAIMANT/

(Devamma)

ENCL:- C.C. of Judgment in LAC No. 69/2015 Dated:- 09-04-2021 and Award Dated:- 16-04-2021.

BEFORE THE LAND ACQUISITION OFFICER / ASSISTANT  
COMMISSIONER, LINGSUGUR

PETITIONER :- Ambamma W/o Sharanappa, R/o Hutti,  
Tq:- Lingsugur.

PETITION U/SEC. 28 (A) OF LAND ACQUISITION ACT 1984

The above named petitioner most respectfully submits as follows:-

1. I am the owner and possessor of the Land Sy.No.463/\*/Ka of Kotha village, Tq:- Lingsugur out of which 2 Acres 33 Guntas has been acquired by the Hon'ble Officer under his Award No. LAQ/22/2013-14 Dated:- 15-12-2013 for the purpose of Hutti Gold Mines, Company Ltd., Hutti, Tq:- Lingsugur. The Notification U/Sec. 4(1) of the Land Acquisition Act was published in Karnataka Gazette on 08-08-2012 and U/Sec. 6 (1) of the L.A. Act got published in Karnataka Gazette Dated:- 12-09-2013.

2. That some of the Lands under the above Notification were referred to the Senior Civil Judge, Lingsugur U/Sec. 18 of the L.A. Act for enhancement of compensation. The Hon'ble Senior Civil Judge, Lingsugur was pleased to award the compensation amount @ Rs. 80/- per Square feet and deduction @ 40% for basic amenities (Rs. 20,90,880/- per Acre) together with 30% Solatium and Interest @ 9% and 15% on enhanced compensation amount to the similar and adjacent Lands Sy.Nos as shown in the Judgment of the Senior Civil Judge, Lingsugur in LAC No. 69/2015 Dated:- 09-04-2021. The copy of the Judgment & award is enclosed herein for the kind perusal of the Hon'ble Officer

Hence under the above circumstances it is humbly prayed that the Hon'ble Officer my kindly be award the Market Value @ Rs.20,90,880/- per Acre, to my above said Land with other following statutory benefits viz.,

- 30% Solatium on Market Value as per Section 23 (2) of L.A. Act.
- 9% and 15% Interest on compensation amount as per Section 34 and 28 of the L.A. Act and any other benefits for which the present petitioner/claimant is entitled to the said Land in the interest of justice.

Place:- Lingsugur

Date :- 15-06-2021

Through

K.K. Vishwanath Advocate,  
Lingsugur

ENCL:- C.C. of Judgment in LAC No. Dated:- 69/2015 Dated:- 09-04-2021 and Award Dated:- 16-04-2021.

PETITIONER/CLAIMANT/

(Ambamma)

13/06/2021  
ಸಾಕ್ಷಿಗಳ ಸಹಿ  
ಮುಖಾಂತರ

BEFORE THE LAND ACQUISITION OFFICER / ASSISTANT  
COMMISSIONER, LINGSUGUR

61  
PETITIONER :- Hasensab S/o Rajabkhan @ Rajabalikhan Dead  
by his L.R. Batulbee W/o Late Hasensab R/o  
Kaka Nagar, Hutti, Tq:- Lingsugur.

PETITION U/SEC. 28 (A) OF LAND ACQUISITION ACT 1984

The above named petitioner most respectfully submits as follows:-

1. I am the owner and possessor of the Land Sy.No.480/\* of Kotha village, Tq:- Lingsugur out of which 9 Acres 03 Guntas has been acquired by the Hon'ble Officer under his Award No. LAQ/22/2013-14 Dated:- 15-12-2013 for the purpose of Hutti Gold Mines, Company Ltd., Hutti, Tq:- Lingsugur. The Notification U/Sec. 4(1) of the Land Acquisition Act was published in Karnataka Gazette on 08-08-2012 and U/Sec, 6 (1) of the L.A. Act got published in Karnataka Gazette Dated:- 12-09-2013.
2. That some of the Lands under the above Notification were referred to the Senior Civil Judge, Lingsugur U/Sec. 18 of the L.A. Act for enhancement of compensation. The Hon'ble Senior Civil Judge, Lingsugur was pleased to award the compensation amount @ Rs. 80/- per Square feet and deduction @ 40% for basic amenities (Rs. 20,90,880/- per Acre) together with 30% Solatium and Interest @ 9% and 15% on enhanced compensation amount to the similar and adjacent Lands Sy.Nos as shown in the Judgment of the Senior Civil Judge, Lingsugur in LAC No. 69/2015 Dated:-09-04-2021. The copy of the Judgment & award is enclosed herein for the kind perusal of the Hon'ble Officer

Hence under the above circumstances it is humbly prayed that the Hon'ble Officer my kindly be award the Market Value @ Rs.20,90,880/- per Acre to my above said Land with other following statutory benefits viz.,

- i) 30% Solatium on Market Value as per Section 23 (2) of L.A. Act.
- ii) 9% and 15% Interest on compensation amount as per Section 34 and 28 of the L.A. Act and any other benefits for which the present petitioner/claimant is entitled to the said Land in the interest of justice.

Place:- Lingsugur

Date :- 22-06-2021

Through

K.K.Vishwanath Advocate,  
Lingsugur

PETITIONER/CLAIMANT/

(Batulbee)

ENCL:- C.C. of Judgment in LAC No. Dated:- 69/2015 Dated:- 09-04-2021 and Award Dated:- 16-04-2021.



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Annexure C

IN THE HIGH COURT OF KARNATAKA  
KALABURAGI BENCH

DATED THIS THE 10<sup>TH</sup> DAY OF FEBRUARY 2022

PRESENT

THE HON'BLE MR. JUSTICE S.R. KRISHNA KUMAR

AND

THE HON'BLE MRS. JUSTICE K.S. HEMALEKHA

M.F.A. NO.200098/2022 (LAC)

C/N

M.F.A. NO.200105/2022, M.F.A. NO.200106/2022

M.F.A. NO.200107/2022, M.F.A. NO.200108/2022

M.F.A. NO.200109/2022, M.F.A. NO.200110/2022

M.F.A. NO.200111/2022, M.F.A. NO.200152/2022

M.F.A. NO.200153/2022, M.F.A. NO.200154/2022

M.F.A. NO.200155/2022, M.F.A. NO.200156/2022

M.F.A. NO.200157/2022, M.F.A. NO.200158/2022

M.F.A. NO.200166/2022, M.F.A. NO.200167/2022

M.F.A. NO.200176/2022, M.F.A. NO.200177/2022

M.F.A. NO.200178/2022, M.F.A. NO.200179/2022

M.F.A. NO.200180/2022, M.F.A. NO.200181/2022

M.F.A. NO.200182/2022, M.F.A. NO.200183/2022

M.F.A. NO.200184/2022, M.F.A. NO.200185/2022

M.F.A. NO.200186/2022, M.F.A. NO.200187/2022

M.F.A. NO.200188/2022, M.F.A. NO.200189/2022

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**M.F.A. NO.200190/2022, M.F.A. NO.200191/2022**  
**M.F.A. NO.200192/2022, M.F.A. NO.200193/2022**  
**M.F.A. NO.200194/2022, M.F.A. NO.200195/2022**  
**& M.F.A. NO.200196/2022 (I.A.C)**

**IN M.F.A. NO.200098/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist.Raichur-584115.

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Narasimha Nayak S/o Shivalingappa Nayak,  
Age: 71 years, Occ: Agriculture;  
R/o Hutti village, Tq. Lingasugur  
Dist.Raichur-584115.

2. The Special Land Acquisition Officer/  
Assi. Commissioner, Lingasugur  
Dist. Raichur-584 112.

Respondents

(By Sri R.S. Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.34/2015 and etc.

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**IN M.F.A. NO.200105/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. N. Swamy-S/o-Bheemashappa  
Age: 56 years, Occ: Agriculture,  
R/o. Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.

2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584112.

Respondents

(By Sri R.S. Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.21/2015 and etc.

**IN M.F.A. NO 200106/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now, Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Hulugemma W/o Mallayya  
Age: 63 years, Occ: Agriculture,  
R/o: Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584112.

Respondents

(By Sri R.S. Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2)

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in I.A.C.No.58/2015 and etc.

**IN M.F.A. NO.200107/2022:****BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now, Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. B.Doddappa S/o Amarappa,  
Age: 61 years, Occ: Agriculture,  
R/o: Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.

2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist: Raichur-584 112.

Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No 35/2015 and etc.

IN M.F.A. NO.200108/2022:

BETWEEN:

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist.Raichur-584115.

Appellant

(By-Sri Veeranagouda Malipatil, Advocate)

AND:

1. Ramanna S/o Gundappa,  
Age: 65 years, Occ: Agriculture,  
R/o. Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist: Raichur-584 112.

Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

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This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.67/2015 and etc.

**IN M.F.A. NO.200109/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (I/c).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Kanakappa S/o Gangappa,  
Age: 62 years, Occ: Agriculture,  
R/o. Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584112.

Respondents

(By Sri R.S. Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2)

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.66/2015 and etc.

**IN M.F.A. NO.200110/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,

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Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Sanna Hanumanthappa S/c Bhiseemappa,  
Age: 61 years, Occ: Agriculture,  
R/o. Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.

2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584112.

Respondents.

(By Sri R.S. Sidhapurkar, Advocate for R1  
Sri Mallikarjun C. Basareddy, HCGP for R2)

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.31/2015 and etc.

**IN M.F.A. NO.200111/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Jyoti W/o Hobaleppa Nayak,  
Age: 31 years, Occ: Agriculture,  
R/o. Hutti village, Tq. Lingasugur.

Dist. Raichur-584115.

2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584 112.

Respondents

(By Sri R.S. Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCCP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No 65/2015 and etc.

**IN M.F.A. NO.200152/2022**

**BETWEEN:**

Hutti Gold Mines Company Ltd.  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND,**

Ilagaraj S/o Gundappa Dead By LRs:

1. Hanumamma W/o Gundappa,  
Age: Major, Occ: Agriculture,  
R/o: Kota village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584 112.

Respondents

(By Sri R.S. Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCCP for R2 )



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This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.33/2015 and etc.

**IN M.F.A. NO.200153/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

Gundappa Dead By LRS.

1. Honnamma W/o Gundappa  
Age: 57 years, Occ: Agriculture,  
R/o. Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584 112.

Respondents

(By Sri R.S. Sridhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.11/2015 and etc.

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**IN M.F.A. NO.200154/2022:****BETWEEN:**

Hutti Gold Mines Company Ltd.,  
 Represented by its General Manager,  
 Hutti Village, Tq. Lingasugur,  
 Dist. Raichur-584115.  
 Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Kotrayya S/o Shivalingayya,  
 Age: Major, Occ: Agriculture,  
 R/o. Kota village Tq. Lingasugur,  
 Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
 Asst. Commissioner, Lingasugur,  
 Dist. Raichur-584 112.

Respondents

(By Sri R.S. Sidhapurkar, Advocate for R1,  
 Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the  
 Land Acquisition Act, praying to allow the appeal by setting aside the  
 Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior  
 Civil Judge & JMFC at Lingasugur in L.A.C.No.36/2015 and etc.

**IN M.F.A. NO.200155/2022:****BETWEEN:**

Hutti Gold Mines Company Ltd.,  
 Represented by its General Manager,  
 Hutti Village, Tq. Lingasugur,  
 Dist. Raichur-584115.  
 Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

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**AND:**

1. Sharanabasava S/o Devappa,  
Age: 41 years, Occ: Agriculture,  
R/o. Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584 112.

Respondents.

(By Sri R.S. Sidhapurkar, Advocate for P1  
Sri Mallikarjun C. Basareddy, HCGP for R2)

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C. No. 12/2015 and etc.

**IN M.F.A. NO.200156/2022:****BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Kashibai W/o Eshwarayya Shastrimat,  
Age: Major, Occ: Agriculture,  
R/o. Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur

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Dist: Raichur-584 112.

Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.08/2015 and etc.

**IN M.F.A. NO.200157/2022**

**BETWEEN:**

Hutti Gold Mines Company Ltd.  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by /c Sr. Manager (HR)

Appellant

(By Sri Veeranagouda Malipatii, Advocate)

**AND:**

1. Veeresh S/c Amara/ya,  
Age: Major, Occ: Agriculture,  
R/o. Medinapur village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist: Raichur-584 112.

Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.51/2015 and etc

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**IN M.F.A. NO.200158/2022:****BETWEEN:**

Hutti Gold Mines Company Ltd.,  
 Represented by its General Manager,  
 Hutti Village, Tq. Lingasugur,  
 Dist. Raichur-584115.  
 Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Gouramma W/c Nagappa  
 Age: Major, Occ. Agriculture,  
 R/o-Medinapur village, Tq. Lingasugur,  
 Dist-Raichur-584115.
2. The Special Land Acquisition Officer/  
 Asst. Commissioner, Lingasugur,  
 Dist. Raichur-584112.

Respondents

(By Sri R.S.Sidrapurkar, Advocate for R1;  
 Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.42/2015 and etc.

**IN M.F.A. NO.200166/2022:****BETWEEN:**

Hutti Gold Mines Company Ltd.,  
 Represented by its General Manager,  
 Hutti Village, Tq. Lingasugur,  
 Dist. Raichur-584115.  
 Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

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**AND:**

1. Prashanth N. S/o Amarappa @ Ambayya,  
Age: Major, Occ: Agriculture,  
R/o. Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist: Raichur-584 112.

... Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.63/2015 and etc.

**IN M.F.A. NO.200167/2022.****BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.

Now Represented by I/c Sr. Manager (HR).

... Appellant

(By Sri Veeranagouda Malipatil, Advocate).

**AND:**

1. Anarayya S/o Rachayya,  
Age: Major, Occ: Agriculture,  
R/o. Kota village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist: Raichur-584 112.

... Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

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This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.28/2015 and etc.

**IN M.F.A. NO.200176/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti-Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranageude Malipati, Advocate)

**AND:**

1. Shantamma W/o Rachayya,  
Age: Major, Occ: Agriculture,  
R/o: Medinapur village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584 112.

Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.55/2015 and etc.

**IN M.F.A. NO.200177/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Sharanabasava S/o. Sasappa,  
Age: Major, Occ: Agriculture,  
R/o. Hutti village Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584 112

Respondents

(By Sri R.S. Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.46/2015 and etc.

**IN M.F.A. NO.200178/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)



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**AND:**

1. Raghavendra S/o Venkoba,  
Minor U/G of his Natural Father

Venkoba S/o Lalesab,  
Age: Major, Occ: Agriculture,  
R/o: Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.

2. The Special Land Acquisition Officer/  
Asst. Commissioner Lingasugur  
Dist. Raichur-584 112.

Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 5<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.23/2015 and etc.

**IN M.F.A. NO.200179/2022:****BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Shanthamma W/o Rachayya,  
Age: Major, Occ: Agriculture,  
R/o. Medinapur village, Tq. Lingasugur,  
Dist. Raichur-584115.

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2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist: Raichur-584 112.

... Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C. No 20/2015 and etc.

**IN M.F.A. NO.200169/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584 115.  
Now Represented by I/c Sr. Manager (HR).

... Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Ayyamma W/o Amarappa,  
Age: Major, Occ: Agriculture,  
R/o. Kota village, Tq. Lingasugur,  
Dist: Raichur-584115. &
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist: Raichur-584 112.

... Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the

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Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.48/2015 and etc.

**IN M.F.A. NO.200181/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipalli, Advocate).

**AND:**

1. Hasseinappa S/o Sagarappa,  
Age: Major, Occ: Agriculture,  
R/o. Kota village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584 112.

Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Malikarjuni C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.41/2015 and etc.

**IN M.F.A. NO-200182/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,

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Dist. Raichur-584115.

Now Represented by I/c Sr. Manager (HR).

... Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Rajmahammed S/o Hasansab.  
Age: 46 years, Occ: Agriculture,  
R/o: Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115

2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur: 584 112.

Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1  
Sri Mallikarjun G. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.71/2015 and etc.

**IN M.F.A. NO.200133/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

... Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Mehaboob Ali S/o Rajasab,  
Age: 74 years, Occ: Agriculture,  
R/o: Hutti village, Tq. Lingasugur,

Dist. Raichur-584115.

2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584 112.

Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCCP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No 70/2015 and etc.

IN M.F.A. NO.200184/2022:

BETWEEN:

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sri Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

AND:

1. Sharanabasava S/o Basappa,  
Age: Major, Occ: Agriculture,  
R/o. Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584 112.

Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCCP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.32/2015 and etc.

**IN M.F.A. NO.200185/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

... Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Ramjan Ali @ Ramjansab S/o Allisab,  
Age-54 years, Occ: Agriculture,  
R/o. Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584112.

... Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.74/2015 and etc.

**IN M.F.A. NO.200186/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,

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Represented by its General Manager,  
 Hutti Village, Tq. Lingasugur,  
 Dist. Raichur-584115.  
 Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Laxmi W/o Hobaleppa,  
 Age: Major, Occ: Agriculture,  
 R/o. Kota village, Tq. Lingasugur,  
 Dist. Raichur-584115.

2. The Special Land Acquisition Officer/  
 Asst. Commissioner, Lingasugur,  
 Dist. Raichur-584112.

Respondents

(By Sri R.S. Sidnapurkar, Advocate for R1;  
 Sri Mallikarjun C. Basareddy, HCGP for R2)

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.29/2015 and etc.

**IN M.F.A. NO.200187/2022:****BETWEEN:**

Hutti Gold Mines Company Ltd.,  
 Represented by its General Manager,  
 Hutti Village, Tq. Lingasugur,  
 Dist. Raichur-584115.  
 Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Mehaboobsab S/o Khasimsab,

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Age: 45 years, Occ: Agriculture.

2. Shahirabegum W/o Mehaboobsab  
Age: 40 years, Occ: Household & Agriculture

Both are R/o Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.

3. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584 112.

Respondents

(By Sri R.S. Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in I.A.C.No.75/2015 and etc.

**IN M.F.A. NO.200188/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Veeresh S/o Shivalingayya,  
Age: Major, Occ: Agriculture,  
R/o. Medinapur village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur



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Dist: Raichur-584 112.

Respondents

(By Sri R.S. Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.30/2015 and etc.

IN-M.F.A. NO.200189/2022:

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Maripati, Advocate)

**AND:**

1. Seethanna S/o Ranganath Nayak,  
Age. Major, Occ. Agriculture,  
R/o. Kota village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584 112.

... Respondents

(By Sri R.S. Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.64/2015 and etc.

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**IN M.F.A. NO.200190/2022:****BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

... Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Babu S/o Late Khajasau,  
Age: 57 years, Occ. Agriculture,  
R/o. Hutti village Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist. Raichur-584 112

... Respondents

(By Sri R. S. Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2.)

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.69/2015 and etc.

**IN M.F.A. NO.200191/2022:****BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

... Appellant

(By Sri Veeranagouda Malipatil, Advocate)

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**AND:**

1. Abdul Rehamansab S/o Lalsab,  
Age: 41 years, Occ: Agriculture,  
R/o. Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur,  
Dist. Raichur-584 112.

Respondents

(By Sri R.S.Sidhapurkar, Advocate for P1  
Sri Mallikarjun C. Basareddy, HOGP for R2 ;

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.73/2015 and etc.

**IN M.F.A. NO.200/92/2022:****BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by I/c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Rudrayya S/o Shivalingayya,  
Age: Major, Occ: Agriculture,  
R/o. Kota village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur

Dist: Raichur-584 112.

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Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.26/2015 and etc.

IN M.F.A. NO.200193/2022:

BETWEEN:

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.  
Now Represented by /c Sr. Manager (HR).

Appellant

(By Sri Veeranagouda Malipatii, Advocate)

AND:

1. Hasanbee W/o Talsab,  
Age: 68 years, Occ: Agriculture,  
R/o. Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.

2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist: Raichur-584 112.

Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.83/2015 and-etc.

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IN M.F.A. NO.200194/2022:BETWEEN:

Hutti Gold Mines Company Ltd.,  
 Represented by its General Manager,  
 Hutti Village, Tq. Lingasugur,  
 Dist. Raichur-584115.  
 Now Represented by I/c Sr. Manager (HR).

... Appellant.

(By Sri Veeranagouda Malipatil, Advocate)

AND:

1. Moulabee W/o Lalsab,  
 Age: 46 years, Occ: Agriculture,  
 R/o. Hutti village, Tq. Lingasugur,  
 Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
 Asst. Commissioner, Lingasugur  
 Dist. Raichur-584 112.

... Respondents.

(By Sri R.S.Sidhapurkar, Advocate for R1;  
 Sri Mallikarjun C. Basareddy, HCGP for R2 )

→ This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.79/2015 and etc.

IN M.F.A. NO.200195/2022:BETWEEN:

Hutti Gold Mines Company Ltd.,  
 Represented by its General Manager,  
 Hutti Village, Tq. Lingasugur,  
 Dist. Raichur-584115.  
 Now Represented by I/c Sr. Manager (HR).

... Appellant

(By Sri Veeranagouda Malipatil, Advocate)

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**AND:**

1. Mehaboob S/o Khasimsab,  
Age: 45 years, Occ: Agriculture,  
R/o. Hutti village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur  
Dist: Raichur-584 112.

Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1  
Sri Mallikarjun C. Basareddy, HCGP for R2 ;

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.72/2015 and etc.

**IN M.F.A. NO.200196/2022:**

**BETWEEN:**

Hutti Gold Mines Company Ltd.,  
Represented by its General Manager,  
Hutti Village, Tq. Lingasugur,  
Dist. Raichur-584115.

Now Represented by I/c Sr. Manager (HR)

Appellant

(By Sri Veeranagouda Malipatil, Advocate)

**AND:**

1. Holiyappa S/o Ningappa,  
Age: Major, Occ: Agriculture,  
R/o. Medinapur village, Tq. Lingasugur,  
Dist. Raichur-584115.
2. The Special Land Acquisition Officer/  
Asst. Commissioner, Lingasugur

Dist: Raichur-584 112.

Respondents

(By Sri R.S.Sidhapurkar, Advocate for R1;  
Sri Mallikarjun C. Basareddy, HCGP for R2 )

This Miscellaneous First Appeal is filed under Section 54(1) of the Land Acquisition Act, praying to allow the appeal by setting aside the Judgment and Award dated 9<sup>th</sup> April 2021 passed by the learned Senior Civil Judge & JMFC at Lingasugur in L.A.C.No.17/2015 and etc.

These appeals coming on for Admission, this day, *S.R.Krishna Kumar J.*, delivered the following:

### JUDGMENT

All these appeals arise out of the common judgments and awards passed by the Senior Civil Judge & JMFC at Lingasugur (for short, 'the reference court') in proceedings initiated by the respondents-claimants under Section 18(1) of the Land Acquisition Act, 1894 seeking enhancement of compensation awarded in their favour by the respondent-Special Land Acquisition Officer (for short, 'SLAO').

2. The details of the claim petitions and the corresponding appeals are as under;

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| Sl. No | MFA NOs.    | LAC Nos. |
|--------|-------------|----------|
| 1.     | 200098/2022 | 34/2015  |
| 2.     | 200105/2022 | 21/2015  |
| 3.     | 200106/2022 | 58/2015  |
| 4.     | 200107/2022 | 35/2015  |
| 5.     | 200108/2022 | 67/2015  |
| 6.     | 200109/2022 | 66/2015  |
| 7.     | 200110/2022 | 31/2015  |
| 8.     | 200111/2022 | 65/2015  |
| 9.     | 200152/2022 | 33/2015  |
| 10.    | 200153/2022 | 11/2015  |
| 11.    | 200154/2022 | 36/2015  |
| 12.    | 200156/2022 | 08/2015  |
| 13.    | 200155/2022 | 12/2015  |
| 14.    | 200157/2022 | 51/2015  |
| 15.    | 200158/2022 | 42/2015  |
| 16.    | 200166/2022 | 63/2015  |
| 17.    | 200167/2022 | 28/2015  |
| 18.    | 200176/2022 | 55/2015  |
| 19.    | 200177/2022 | 46/2015  |
| 20.    | 200178/2022 | 23/2015  |
| 21.    | 200179/2022 | 20/2015  |
| 22.    | 200180/2022 | 48/2015  |
| 23.    | 200181/2022 | 41/2015  |
| 24.    | 200184/2022 | 32/2015  |
| 25.    | 200186/2022 | 29/2015  |
| 26.    | 200188/2022 | 30/2015  |
| 27.    | 200189/2022 | 64/2015  |
| 28.    | 200192/2022 | 26/2015  |
| 29.    | 200196/2022 | 17/2015  |
| 30.    | 200195/2022 | 72/2015  |
| 31.    | 200190/2022 | 69/2015  |
| 32.    | 200183/2022 | 70/2015  |
| 33.    | 200182/2022 | 71/2015  |
| 34.    | 200191/2022 | 73/2015  |
| 35.    | 200185/2022 | 74/2015  |
| 36.    | 200187/2022 | 75/2015  |
| 37.    | 200194/2022 | 79/2015  |
| 38.    | 200193/2022 | 83/2015  |



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3. Before the reference court, respondent-SLAO filed an application in I.A.No.II under Order VII Rule 10 of CPC seeking transfer of all the cases to the authorities constituted under the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Re-settlement Act, 2013 ( for short, 'the said Act of 2013'). By order dated 12.10.2017, the reference court allowed I.A.No.II and transferred the reference to the authorities under the said Act of 2013.

4. Aggrieved by the aforesaid order passed by the reference court, the State and M/s. Hutti Gold Mines Company Limited (appellant herein) jointly approached this court in W.P.No 203169/2019 and connected matters. By final order dated 18.02.2020, this court allowed the said petitions and set aside the said order dated 12.10.2017 passed on I.A.No.II by the reference court and accordingly directed the reference court itself to proceed with the claim petitions filed by the claimants and conclude the proceedings in accordance with law.

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5. Pursuant to the aforesaid order dated 18.02.2020 passed by this court in W.P.No.203169/2019 and connected matters, the reference court proceeded further in the matter and passed the impugned judgments and awards re-determining and enhancing the compensation in favour of the claimants. Under the impugned judgments and awards, the reference court noticed that though the State Government had contested the claim petitions, the appellant herein M/s. Hutti Gold Mines Company Limited had not filed any objections nor contested the proceedings and did not participate in the proceedings before the reference court. Accordingly, the reference court proceeded to consider and appreciate the material on record and has passed the impugned judgments

and awards in all the matters re-determining and enhancing the compensation in favour of the claimants. Aggrieved by the impugned judgments and awards of the reference court, the beneficiary M/s. Hutti Gold Mines Company Limited is before this court by way of all the present appeals.

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6. In addition to reiterating the various contentions urged in the appeals and referring to the material on record, the learned counsel for the appellant, M/s. Hutti Gold Mines Company Limited submits that apart from the fact that the compensation fixed by the reference court was highly exorbitant and excessive, the appellant could not file its objections and contest the proceedings due to the

unavoidable circumstances, bonafide reasons and sufficient cause and on account of the Covid-19 pandemic as well as the untimely demise of learned counsel for the appellant before the reference court on 31.08.2020 and as such, it was not possible for the appellant to file their objections or cross-examine the claimants and/or their witnesses or adduce oral and documentary evidence on behalf of the appellant. It is contended that the inability and omission on the part of the appellant to file its objections to the claim petitions and contest the proceedings was not deliberate and the same was unintentional. It is also submitted that the appellant is ready and willing to abide by the terms and conditions to be imposed

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by this court. It is therefore submitted that if one more opportunity is granted in favour of the appellant by setting aside the impugned judgments and awards and remitting the matter back to the reference court for reconsideration afresh by permitting the appellant to file its objections and contest the proceedings, the appellant would henceforth diligently contest the proceedings before the reference court without protracting the proceedings.

7. *Per contra*, learned counsel for the claimants submits that the conduct of the appellant in not contesting the matter even after disposal of W.P.No.203169/2019 and connected matters vide order dated 18.02.2020 would clearly

indicate that the appellant was not diligent in contesting the proceedings and consequently, no indulgence is to be shown in favour of the appellant. It is submitted that in the event this court were to show some indulgence in favour of the appellant by granting one final opportunity, it is necessary that the appellant be put on terms by directing them to deposit a portion of the compensation and also directing the reference

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court to dispose of the proceedings within a stipulated time frame by directing the appellant to file their objections and cross-examine the claimants and their witnesses and also lead evidence at the earliest.

8. So also, learned High Court Government Pleader appearing for respondent-State submits that if the matter is remitted back to the reference court, an opportunity is to be granted to the State also to adduce evidence on its side in addition to cross-examining the claimants and their witnesses.

9. We have given our anxious consideration to the rival considerations and perused the material available on record.

10. The material on record clearly indicates that the appellant M/s. Hutti Gold Mines Company Limited was petitioner No.2 in W.P.No.203169/2019 and connected matters which was allowed by this court vide order dated 18.02.2020 thereby directing the reference court to proceed further in the matter. Despite the appellant herein being a

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party to the aforesaid writ petitions wherein, this court remitted the matter back to the reference court, the appellant has not taken any steps to contest the proceedings as is clear from the impugned judgments and awards wherein the reference court has noticed that the appellant has not filed objections nor contested the proceedings.

11. However, in the light of the specific assertion made by the appellant that its earlier counsel expired on 31.08.2020 after the matter was remanded by this court on 18.02.2020 coupled with the Covid-19 pandemic which commenced during March, 2020, we are of the considered opinion that one last opportunity is to be granted in favour of the appellant to contest the proceedings by setting aside the impugned judgments and awards and remitting the matter back to the reference court for re-consideration afresh in accordance with law. We make it clear that no further opportunity would be granted in favour of the appellant to contest the proceedings and this indulgence is being shown only on account of the prevailing Covid-19 pandemic and the

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untimely demise of the learned counsel appearing for the appellant before the reference court and by adopting justice oriented approach and by imposing certain terms and conditions on the appellant and by directing the reference court to dispose of the proceedings within a stipulated time frame.

12. In the result, we pass the following:

**ORDER**

- i) All the appeals are hereby allowed.
- ii) The judgments and awards dated -09.04.2021 passed by the Senior Civil Judge & JMFC, Lingasugur in LAC Nos.34/2015, 21/2015, 58/2015, 35/2015, 67/2015, 66/2015, 31/2015, 65/2015, 33/2015, 11/2015, 36/2015, 08/2015, 12/2015, 51/2015, 42/2015, 63/2015, 28/2015, 55/2015, 46/2015, 23/2015, 20/2015, 48/2015, 41/2015, 32/2015, 29/2015, 30/2015, 64/2015, 26/2015, 17/2015, 72/2015, 69/2015, 70/2015, 71/2015, 73/2015, 74/2015, 75/2015, 79/2015 and 83/2015 are hereby set aside and the

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matters are remitted back to the reference court for reconsideration afresh in accordance with law.

- iii) The appellant undertakes to appear before the reference court on 14.02.2022 on which date other matters arising out of the very same notification are posted and pending adjudication before the reference court.
- iv) The appellant is directed to file statement of objections in the cases where they have already not filed statement of objections on or before 23.02.2022 without seeking any further extension of time/adjournment in this regard.
- v) After the appellant files its statement of objections on or before 28.02.2022 as directed *supra*, the appellant shall take necessary steps to cross-examine the claimants and their witnesses before the reference court; so also, in the event the claimants adduce any additional/further oral and documentary evidence on their side after remand, the appellant shall be entitled to cross-examine them in this regard also.



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- vi) The State is also reserved liberty to cross-examine the claimants and their witnesses.
- vii) The cross-examination of the claimants and their witnesses by the appellant as well as by the State shall be completed on or before 01.04.2022; this would however be subject to the claimants and their witnesses being available and being tendered for cross-examination and in the event it is not possible for the aforesaid cross-examination to be completed on or before 01.04.2022 the same shall be completed on or before 22.04.2022.
- viii) Upon completion of cross-examination of the claimants and their witnesses as stated *supra*, the appellant and the State are reserved liberty to adduce oral and documentary evidence on their behalf on or before 15.06.2022; needless to say that the claimants would be entitled to cross-examine the witnesses examined on behalf of the appellant and State.
- ix) After completion of evidence of both sides, the reference court shall proceed to dispose of the

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claim petitions forthwith and at any rate not later than 15.07.2022.

x) All parties are directed to co-operate with the reference court for expeditious disposal of the matters and without seeking unnecessary adjournments before the reference court.

xi) The appellant is directed to deposit a sum of Rs.7,00,000/- (Rupees Seven Lakh) per acre on or before 31.03.2022 in all the pending cases before the reference court in relation to the preliminary notification dated 08.08.2012; it is made clear that this deposit which is directed to be made by the appellant before the reference court would be without prejudice to the rights and contentions of the parties and would be subject to ~~the final outcome of the proceedings before the~~ reference court; immediately upon such deposit being made by the appellant, the reference court shall direct the amount shall be invested in fixed deposit for an initial period of three months and renewed subsequently, if required as directed by the reference court.

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- xii) All rival contentions on merits on all aspects of the matters are kept open and no opinion is expressed on the same.
- xiii) The registry is directed to refund the court fee paid on all the appeals back to the appellant forthwith in accordance with law.

In view of disposal of main appeals, pending interlocutory applications do not survive for consideration, accordingly they stand disposed of.

Sd/-  
JUDGE

Sd/-  
JUDGE

BL

LAC NO : 21/2015 C/w LAC No 08/2015, LAC No.11/2015,  
LAC No.12/2015, LAC No 17/2015 LAC NO 20/2015,  
LAC NO 23/2015, LAC NO 26/2015, LAC NO 28/2015,  
LAC NO.29/2015, LAC NO.30/36/2015, LAC NO 41/2015,  
LAC NO.42/2015, LAC NO 46/2015, LAC NO 48/2015,  
LAC NO.51/2015, LAC NO 55/2015, LAC NO 58/2015,  
LAC NO 63 to 67/2015, LAC NO 69/2015 to 75  
LAC NO.79/2015 AND LAC NO.83/2015

KARC300002242015



Annexure D

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Presented on : 08-04-2015

Registered on : 08-04-2015

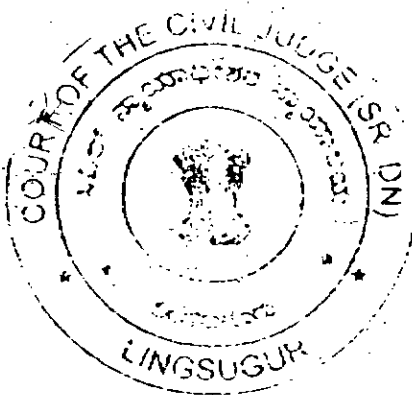
Decided on : 07-07-2022

Duration : 7 years, 2 months, 29 days

**IN THE COURT OF THE SENIOR CIVIL JUDGE & JMFC.,  
AT LINGASUGUR**

**Present :- Sri. Chandrashekar P. Diddi B.A., LL.M.,  
Senior Civil Judge & JMFC**

**: LAC NO : 21/2015 C/w LAC NO.08/2015,  
LAC NO.11/2015, LAC NO.12/2015,  
LAC NO.17/2015, LAC NO.20/2015,  
LAC NO.23/2015, LAC NO.26/2015,  
LAC NO.28/2015, LAC NO.29/2015,  
LAC NO.30/2015, LAC NO.31/2015,  
LAC NO.32/2015, LAC NO.33/2015,  
LAC NO.34/2015, LAC NO.35/2015,  
LAC NO.36/2015, LAC NO.41/2015,  
LAC NO.42/2015, LAC NO.46/2015,  
LAC NO.48/2015, LAC NO.51/2015,  
LAC NO.55/2015, LAC NO.58/2015,  
LAC NO.63/2015, LAC NO.64/2015,  
LAC NO.65/2015, LAC NO.66/2015,  
LAC NO.67/2015, LAC NO.69/2015,  
LAC NO.70/2015, LAC NO.71/2015,  
LAC NO.72/2015, LAC NO.73/2015,  
LAC NO.74/2015, LAC NO.75/2015,  
LAC NO.79/2015 AND LAC NO.83/2015, :**



72/1 Certified copy contains 72-20000  
deposited in cash

copy of the original. All the matter  
appearing in the original has been  
faithfully copied with no modification

LAC NO. 21/2015 C/w LAC No 08/2015, LAC No 11/2015,  
LAC No. 12/2015, LAC No 17/2015 LAC NO 20/2015,  
LAC NO. 23/2015, LAC NO 26/2015, LAC NO. 27/2015,  
LAC NO. 29/2015, LAC NO 30 to 36/2015, LAC NO. 41/2015,  
LAC NO. 42/2015, LAC NO. 46/2015, LAC NO 48/2015,  
LAC NO. 51/2015, LAC NO 55/2015, LAC NO. 58/2015,  
LAC NO. 63 to 67/2015, LAC NO 69/2015 to 75  
LAC NO. 79/2015 AND LAC NO 83/2015

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**Dated this the 07<sup>th</sup> day of July 2022**

PETITIONER IN N. Swamy S/o Bheemeshappa  
LAC NO. 21/2015 Age: 50 years, Occ: Agri.,  
R/o Hutti village, Tq. Lingasugur  
Dist. Raichur.

PETITIONER IN Kashibai W/o Eshwarayya Shastrimat  
LAC NO. 08/2015 Age: Major, Occ: Agri.,  
R/o Kota village, Tq. Lingasugur  
Dist. Raichur.

PETITIONER IN Gundappa S/o Gangappa (Dead by LRs)  
LAC NO. 11/2015 Honnamma W/o Gundappa  
Age: 51 years, Occ: Agri.,  
R/o Hutti village, Tq. Lingasugur  
Dist. Raichur.

PETITIONER IN Sharanabasava S/o Devappa  
LAC NO. 12/2015 Age: 35 years, Occ: Agri.,  
R/o Hutti village, Tq. Lingasugur  
Dist. Raichur.

PETITIONER IN Holiyappa S/o Ningappa  
LAC NO. 17/2015 Age: Major, Occ: Agri.,  
R/o Medinapur village, Tq. Lingasugur  
Dist. Raichur.

PETITIONER IN Shanthamma W/o Rachayya  
LAC NO. 20/2015 Age: Major, Occ: Agri.  
R/o Medinapur village, Tq. Lingasugur  
Dist. Raichur.

  
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LAC NO : 21/2015 C/w LAC No 08/2015, LAC No 11/2015,  
LAC No 12/2015, LAC No 17/2015 LAC NO 20/2015,  
LAC NO 23/2015, LAC NO.26/2015, LAC NO 28/2015,  
LAC NO.29/2015, LAC NO 30to36/2015, LAC NO 41/2015,  
LAC NO 42/2015, LAC NO 46/2015, LAC NO 48/2015,  
LAC NO 51/2015, LAC NO.55/2015, LAC NO 58/2015,  
LAC NO.63 to 67/2015, LAC NO 69/2015 to 75  
LAC NO 79/2015 AND LAC NO 83/2015

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PETITIONER IN  
LAC NO.23/2015

Raghavendra S/o Venkoba  
Age:Major, Occ: Agri.  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO.26/2015

Rudrayya S/o Shivalingayya  
Age:Major, Occ: Agri.  
R/o Kota village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO.28/2015

Amarayya S/o Rachayya  
Age:Major, Occ: Agri.  
R/o Kota village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO.29/2015

Laxmi W/o Hobaleppa  
Age:Major, Occ: Agri.  
R/o Kota village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO.30/2015

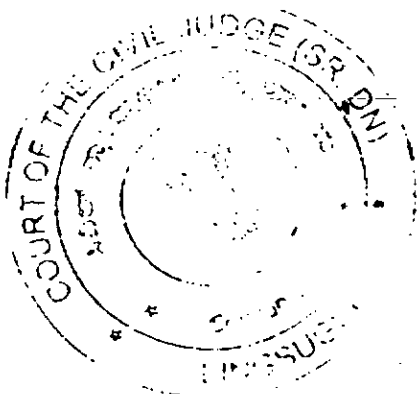
Veeresh S/o Shivalingayya  
Age:Major, Occ: Agri.  
R/o Medinapur village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO.31/2015

Sanna Hanumanthappa S/o Bheemappa  
Age:Major, Occ: Agri.  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO.32/2015

Sharanabasava S/o Basappa  
Age:Major, Occ: Agri.  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.



2015

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PETITIONER IN Nagaraj S/o Gundappa (Dead by LRs)  
 LAC NO.33/2015 Honnamma W/o Gundappa  
 Age:Major, Occ: Agri.  
 R/o Kota village, Tq.Lingasugur  
 Dist. Raichur.

PETITIONER IN Narasimha Nayak S/o Shivalingappa Nayak  
 LAC NO.34/2015 Age: 65 years, Occ: Agri.  
 R/o Hutti village, Tq.Lingasugur  
 Dist. Raichur.

PETITIONER IN B. Doddappa S/o Amarappa  
 LAC NO.35/2015 Age: 55 years, Occ: Agri.  
 R/o Hutti village, Tq.Lingasugur  
 Dist. Raichur.

PETITIONER IN Kotrayya S/o Shivalingayya  
 LAC NO.36/2015 Age:Major, Occ: Agri.  
 R/o Kota village, Tq.Lingasugur  
 Dist. Raichur.

PETITIONER IN Hussainappa S/o Sagarappa (Dead by LRs)  
 LAC NO.41/2015 Hanumavva W/o Hussainappa.  
 Age: 62 years, Occ: Agri.  
 R/o Medinapur village, Tq.Lingasugur  
 Dist. Raichur.

PETITIONER IN Gouramma W/o Nagappa  
 LAC NO.42/2015 Age:Major, Occ: Agri.  
 R/o Medinapur village, Tq.Lingasugur  
 Dist. Raichur.

(S.D.)  
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LAC NO : 21/2015 C/w LAC No.08/2015, LAC No.11/2015,  
LAC No.12/2015, LAC No.17/2015 LAC NO 20/2015,  
LAC NO.23/2015, LAC NO 26/2015, LAC NO 28/2015,  
LAC NO.29/2015, LAC NO.30to36/2015, LAC NO 41/2015,  
LAC NO 42/2015, LAC NO 46/2015, LAC NO 48/2015,  
LAC NO.51/2015, LAC NO 55/2015, LAC NO 58/2015,  
LAC NO 63 to 67/2015, LAC NO 69/2015 to 75  
LAC NO.79/2015 AND LAC NO.83/2015

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PETITIONER IN  
LAC NO.46/2015

Sharanabasava S/o Basappa  
Age:Major, Occ: Agri.  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO.48/2015

Ayyamma W/o Amarappa  
Age:Major, Occ: Agri.  
R/o Kotha village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO.51/2015

Veeresh S/o Amarayya  
Age:Major, Occ: Agri.  
R/o Medinapur village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO.55/2015

Shantamma W/o Rachayya  
Age:Major, Occ: Agri.  
R/o Medinapur village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO.58/2015

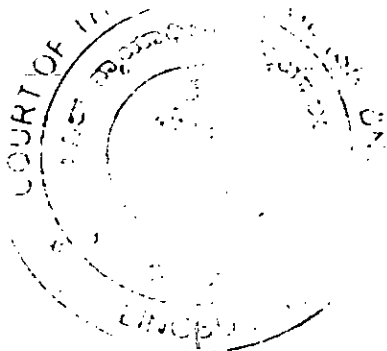
Hulugemma W/o Mallayya  
Age: 51 years, Occ: Agri.  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO.63/2015

Prashanth N S/o Amarappa @ Ambayya  
Age:Major, Occ: Agri.  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO.64/2015

Seethanna S/o Ranganath Nayak  
Age:Major, Occ: Agri.  
R/o Kotha village, Tq.Lingasugur  
Dist. Raichur.



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LAC NO : 21/2015 C/w LAC No 08/2015, LAC No 11/2015,  
 LAC No.12/2015, LAC No.17/2015 LAC No.20/2015,  
 LAC NO 23/2015, LAC NO 26/2015, LAC NO 28/2015,  
 LAC NO.29/2015, LAC NO 30to36/2015, LAC NO.41/2015  
 LAC NO.42/2015, LAC NO 46/2015, LAC NO 48/2015  
 LAC NO.51/2015, LAC NO 55/2015, LAC NO 58/2015  
 LAC NO.63 to 67/2015, LAC NO.69/2015 to 75  
 LAC NO 79/2015 AND LAC NO.83/2015

PETITIONER IN Jyoti D/o Hobaleppa Nayak  
 LAC NO.65/2015 Age: 25 years, Occ: Agri.  
 R/o Hutti village, Tq.Lingasugur  
 Dist. Raichur.

PETITIONER IN Kanakappa S/o Gangappa  
 LAC NO.66/2015 Age: 58 years, Occ: Agri.  
 R/o Hutti village, Tq.Lingasugur  
 Dist. Raichur.

PETITIONER IN Ramanna S/o Gundappa  
 LAC NO.67/2015 Age: 57 years, Occ: Agri.  
 R/o Hutti village, Tq.Lingasugur  
 Dist. Raichur.

PETITIONER IN Babu S/o Late Khajasab  
 LAC NO.69/2015 Age: 52 years, Occ: Agri.  
 R/o Hutti village, Tq.Lingasugur  
 Dist. Raichur.

PETITIONER IN Mehaboob Ali S/o Rajasab  
 LAC NO.70/2015 Age: 68 years Occ: Agri.  
 R/o Hutti village, Tq.Lingasugur  
 Dist. Raichur.

PETITIONER IN Rajmahammed S/o Hasansab  
 LAC NO.71/2015 Age: 40 years, Occ: Agri.  
 R/o Hutti village, Tq.Lingasugur  
 Dist. Raichur.

PETITIONER IN Mehaboob S/o Khasimsab  
 LAC NO.72/2015 Age: 39 years, Occ: Agri.  
 R/o Hutti village, Tq.Lingasugur  
 Dist. Raichur.

LAC NO : 21/2015 C/w LAC No.08/2015, LAC No 11/2015,  
LAC No.12/2015, LAC No.17/2015 LAC NO 20/2015,  
LAC NO.23/2015, LAC NO 26/2015, LAC NO.28/2015,  
LAC NO.29/2015, LAC NO 30to36/2015, LAC NO 41/2015,  
LAC NO 42/2015, LAC NO.46/2015, LAC NO 48/2015,  
LAC NO 51/2015, LAC NO.55/2015, LAC NO 58/2015,  
LAC NO.63 to 67/2015, LAC NO.69/2015 to 75,  
LAC NO.79/2015 AND LAC NO.83/2015

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PETITIONER IN  
LAC NO.73/2015

Abdul Rehamansab S/o Lalsab  
Age: 35 years, Occ: Agri.  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO.74/2015

Ramjan Ali @ Ramansab S/o Allisab  
Age: 48 years, Occ: Agri.  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO.75/2015

1. Mehaboobsab S/o Khasimsab  
Age: 39, Occ: Agri.
2. Shahirabegum W/o Mehaboobsab  
Age: 34 years, Occ: Household & Agri.,  
both R/o Hutti village, Tq. Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO.79/2015

Moulabee W/o Lalsab  
Age: 40 years, Occ: Agri.  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.

PETITIONER IN  
LAC NO:83/2015

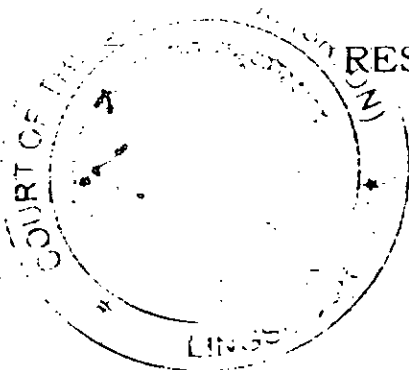
Hasanbee W/o Lalsab  
Age:62 years, Occ: Agri.  
R/o Hutti village, Tq.Lingasugur  
Dist. Raichur.

(Represented by Sri. H.M. Advocate)

-V/s-

RESPONDENTS:-

- 1) The Special Land Acquisition  
Officer/Asst. Commissioner,  
Lingasugur.



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 2) The General Manager,  
 Hutti Gold Mines Company  
 Hutti village, Tq. Lingasugur  
 Dist. Raichur.

(R1 By:-Addl. Govt. Pleader)

(R2 By:- Sri. M.R.R, Advocate)

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**: COMMON JUDGMENT:**

1. The petitioners have filed the applications under section 18 of Land Acquisition Act, 1894 (herein after referred as " L A Act") before respondent No.1.

The petitioners prays for refer the matter to the Civil court for determination of reasonable compensation.

The Respondent No.1 referred the cases to this court. The notice was issued to the petitioners and respondents. The Petitioners and Respondents appeared through their counsel. On perusal of the order dated 12-10-2017 in LAC no No3/2015 to 60/2015, LAC no No63/2015 to 67/2015, LAC no

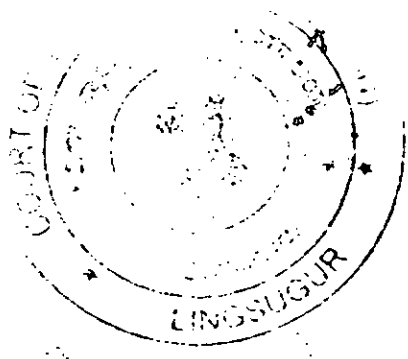
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No69/2015 to 79/2015 and LAC no 83/2015, this court ordered that The Right To Fair Compensation And Transparency in Land Acquisition Rehabilitation And Re-Settlement Act, 2013 is applicable to the all the cases and directed the respondent No.1 i.e., SLAO, Lingasugur to determine the compensation under the above said Act.

2. The said order was challenged before Hon'ble High Court Kalaburgi bench in the W.P.No.203169-203238/2019 & W.P.No.205872-75. The Hon'ble High Court set aside the order passed by the reference court and directed the reference court to re-consider the LAC No.03/2015 to LAC No.60/2015, LAC No.63/2015 to LAC No.67/2015, LAC No.69/2015 to LAC No.79/2015 and LAC No.83/2015 as per L.A. Act

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3. Thereafter this court passed the judgment in LAC  
 No.72/2015, LAC NO.69/2015, LAC NO.70/2015,  
 LAC No.71/2015, LAC NO.73/2015, LAC  
 NO.74/2015, LAC NO.75/2015 LAC  
 NO.79/2015, AND LAC NO.83/2015 on 09-04-2021.

The respondent No.2 challenged the common  
 judgment before the Hon'ble High Court of  
 Karnataka, Kalaburgi bench in MFA  
 No.200098/2012 (LAC) C/w other MFAs. The  
 Hon'ble High Court of Karnataka, Kalaburgi bench  
 set aside the judgment and award passed by the  
 reference court. The Hon'ble High Court of  
 Karnataka directed to this court to dispose of  
 pending cases on or before 05-07-2022 in respect all  
 pending cases in relation to the 4(1) notification  
 dated 08/08/2012.

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LAC NO : 21/2015 C/w LAC No 08/2015, LAC No 11/2015,  
LAC No.12/2015, LAC No.17/2015 LAC NO.20/2015,  
LAC NO 23/2015, LAC NO 26/2015, LAC NO 28/2015,  
LAC NO 29/2015, LAC NO 30to36/2015, LAC NO.41/2015,  
LAC NO.42/2015, LAC NO.46/2015, LAC NO 48/2015,  
LAC NO.51/2015, LAC NO.55/2015, LAC NO 58/2015,  
LAC NO.63 to 67/2015, LAC NO.69/2015 to 75  
LAC NO.79/2015 AND LAC NO.83/2015

4. The LAC cases in relation the 4(1) notification dated 08-08-2012 clubbed in four batches I. LAC No.21/2015 is main case, LAC NO.08/2015, LAC NO.11/2015, LAC NO.12/2015, LAC NO.17/2015, LAC NO.20/2015, LAC NO.23/2015, LAC NO.26/2015, LAC NO.28/2015, LAC NO.29/2015, LAC NO.30/2015, LAC NO.31/2015, LAC NO.32/2015, LAC NO.33/2015, LAC NO.34/2015, LAC NO.35/2015, LAC NO.36/2015, LAC NO.41/2015, LAC NO.42/2015, LAC NO.46/2015, LAC NO.48/2015, LAC NO.51/2015, LAC NO.55/2015, LAC NO.58/2015, LAC NO.63/2015, LAC NO.64/2015, LAC NO.65/2015, LAC NO.66/2015, LAC NO.67/2015, LAC NO.69/2015, LAC NO.70/2015, LAC NO.71/2015, LAC NO.72/2015, LAC NO.73/2015, LAC NO.74/2015, LAC NO.75/2015, LAC NO.79/2015 AND LAC NO.83/2015 clubbed with LAC No.21/2015.

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II. The LAC No.05/2018 c/w other 52 LAC cases.

III. The LAC No.19/2018 c/w other 13 LAC cases.

IV. The LAC No.05/2022 c/w other 11 LAC cases.

**5. The brief of the facts of the LAC No.21/2015**  
**c/w other LACs as stated above are as follows:**

The petitioners were owners of the acquired land.

The notification under section 4(1) of L.A Act was issued on 08/08/2012. The said notification was

published in Karnataka Gazette on 09.08.2012. The

notification under section 6(1) of LA Act was

issued on 10/09/2013. The said notification was

published in Karnataka Gazette on 12.09.2013. The

final award was passed on 15/12/2013. The details

of the properties and compensation paid by the

respondent No.1 are shown in below table :-

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LAC NO. 21/2015 C/w LAC No.08/2015, LAC No.11/2015,  
LAC No.12/2015, LAC No.17/2015 LAC No.20/2015,  
LAC No.23/2015, LAC No.26/2015, LAC No.28/2015,  
LAC No.29/2015, LAC No.30to36/2015, LAC No.41/2015,  
LAC No.42/2015, LAC No.46/2015, LAC No.48/2015,  
LAC No.51/2015, LAC No.55/2015, LAC No.58/2015,  
LAC No.63 to 67/2015, LAC No.69/2015 to 75  
LAC NO 79/2015 AND LAC NO 83/2015

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| Sl.No. | Case No. | Sy.No.   | Extent | Village | Compensation paid by the Respondent No.1 |
|--------|----------|----------|--------|---------|------------------------------------------|
| 01     | 21/2015  | 473/5/A  | 2.32   | Kotha   | ₹.2,31,353.00                            |
| 02     | 08/2015  | 531/*/*  | 05-00  | Kotha   | ₹.4,13,134.00                            |
| 03     | 11/2015  | 464/*/*B | 03-19  | Kotha   | ₹.3,20,300.00                            |
| 04     | 12/2015  | 530/*/*1 | 09-00  | Kotha   | ₹.7,43,636.00                            |
| 05     | 17/2015  | 473/*/*4 | 01-19  | Kotha   | ₹.1,21,874.00                            |
| 06     | 20/2015  | 530/*/*1 | 03-00  | Kotha   | ₹.2,47,879.00                            |
| 07     | 23/2015  | 478/*/*4 | 03-00  | Kotha   | ₹.2,47,879.00                            |
| 08     | 26/2015  | 470/*/*4 | 02-25  | Kotha   | ₹.2,16,894.00                            |
| 09     | 28/2015  | 530/*/*2 | 04-21  | Kotha   | ₹.3,73,884.00                            |
| 10     | 29/2015  | 480/*/*A | 02-00  | Kotha   | ₹.1,65,252.00                            |
| 11     | 30/2015  | 470/*/*3 | 02-25  | Kotha   | ₹.2,16,894.00                            |
| 12     | 31/2015  | 324/*/*  | 2.06   | Kotha   | ₹.1,77,646.00                            |
| 13     | 32/2015  | 472/*/*B | 04-27  | Kotha   | ₹.3,86,278.00                            |
| 14     | 33/2015  | 464/*/*B | 02-00  | Kotha   | ₹.1,65,252.00                            |
| 15     | 34/2015  | 481/*/*9 | 3.00   | Kotha   | ₹.2,47,879.00                            |
| 16     | 35/2015  | 482/*/*4 | 2.00   | Kotha   | ₹.1,65,252.00                            |
| 17     | 36/2015  | 470/*/*5 | 02-28  | Kotha   | ₹.2,23,091.00                            |
| 18     | 41/2015  | 473/*/*1 | 04-00  | Kotha   | ₹.3,30,505.00                            |
| 19     | 42/2015  | 531/*/*  | 04-00  | Kotha   | ₹.3,30,505.00                            |
| 20     | 46/2015  | 472/*/*B | 5.03   | Kotha   | ₹.4,19,328                               |
| 21     | 48/2015  | 532/*/*1 | 0.36   | Kotha   | ₹.74,364.00                              |
| 22     | 51/2015  | 470/*/*6 | 03-00  | Kotha   | ₹.2,47,879.00                            |
| 23     | 55/2015  | 470/*/*1 | 03-00  | Kotha   | ₹.2,47,879.00                            |

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LAC NO : 21/2015 C/w LAC No.08/2015, LAC No 11/2015,  
 LAC No.12/2015, LAC No 17/2015 LAC No 20/2015,  
 LAC NO.23/2015, LAC NO.26/2015, LAC NO.28/2015,  
 LAC NO 29/2015, LAC NO 30to36/2015, LAC NO 41/2015,  
 LAC NO.42/2015, LAC NO 46/2015, LAC NO 48/2015,  
 LAC NO.51/2015, LAC NO 55/2015, LAC NO 58/2015,  
 LAC NO.63 to 67/2015, LAC NO.69/2015 to 75  
 LAC NO 79/2015 AND LAC NO 83/2015

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|    |         |               |       |       |               |
|----|---------|---------------|-------|-------|---------------|
| 24 | 58/2015 | 532/*/6       | 3.00  | Kotha | ₹.2,47,879.00 |
| 25 | 63/2015 | 473/*/5<br>/A | 02-29 | Kotha | ₹.2,25,156.00 |
| 26 | 64/2015 | 472/*/B       | 4.33  | Kotha | ₹.3,98,672.00 |
| 27 | 65/2015 | 480/*/A       | 2.00  | Kotha | ₹.1,65,252.00 |
| 28 | 66/2015 | 464/*/B       | 1.04  | Kotha | ₹.90,889.00   |
| 29 | 67/2015 | 323/*/A       | 0.20  | Kotha | ₹.41,313.00   |
| 30 | 69/2015 | 471/*/        | 4.11  | Kotha | ₹.3,53,227.00 |
| 31 | 70/2015 | 471/*/        | 4.12  | Kotha | ₹.3,55,293.00 |
| 32 | 71/2015 | 471/*/        | 4.06  | Kotha | ₹.3,42,899.00 |
| 33 | 72/2015 | 315/*/        | 1.08  | Kotha | ₹.99,151.00   |
| 34 | 73/2015 | 477/*/        | 3.20  | Kotha | ₹.2,89,192.00 |
| 35 | 74/2015 | 471/*/        | 4.12  | Kotha | ₹.3,55,293.00 |
| 36 | 75/2015 | 316/*/1       | 1.20  | Kotha | ₹.1,23,939.00 |
| 37 | 79/2015 | 471/*/        | 4.06  | Kotha | ₹.3,42,899.00 |
| 38 | 83/2015 | 471/*/        | 4.10  | Kotha | ₹.3,51,161.00 |

6. The above said petitioners in the application filed under Sec.18(1) of LA Act submitted that the respondent No.1 acquired land as stated in the above table and paid the compensation amount of ₹.56,500/- per acre. The petitioners have accepted the compensation amount under protest. The petitioners have submitted that the respondent No.1

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Awarded the very lessor amount compare to the market value of the land. The acquired land situated near Hutti mines company. The Hutti company notified the area for gold mining. The adjoining lands to the said acquired land are also NA lands.

Therefore, the acquired land has also got NA potentiality. The present market value of the acquired land is more than ₹40 to 50 lakh/- per acre. The petitioners of LAC no 69/2015 to 75/2015, 79/2015 and 83/2015 submits that the acquired land value is more than 15 to 20 lakh per acre, respondent No.1 not considered all relevant facts before passing the award. On these grounds the petitioners prays for determination of the correct compensation amount.

7. The respondent No.1 filed objection. In the objection the respondent No.1 submitted that the applications are not maintainable either in law or on



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(20)  
facts of the case. The land acquisition officer personally inspected the land. Considering all the attending circumstances, the respondent No.1 fixed the market value. The respondent No.1 fixed the market value on the basis of Government rate prevailing in the notified area. The claimants/petitioners have not made definite claim before the land acquisition officer. There is no reasonable grounds to enhance the compensation. Since the possession is not taken the claimants are not entitled for interest. The claim made by the petitioners is excessive without any basis. On these grounds, the respondent No.1 prayed for dismissal of the petition.

8. The respondent No.2 filed the objection in all the cases. The respondent No.2 submitted that the petition averments are not true and correct. The

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applications are not maintainable. The land has been acquired for the purpose of industrial establishment and for using tail dump. Therefore the claimants not entitle to value the land as NA potential land. The Hon'ble high court arrived the conclusion that 25,000/- per acre in Ooty area. Therefore the claimants not entitle for compensation. The land acquired in the year 2011-12. The compensation was paid long back. The applications under Sec.18(1) of the L.A. Act not referred to the Hon'ble court within stipulated time. The claimants have not filed the applications before the Hon'ble court under Sec.18(3) (b) of the LA Act within limitation. Therefore, the applications are barred by limitation. The claimants have made their claim in vague manner. The award passed by the SLAO is valid. On these grounds prays for dismissal of petitions.

26/11/2015

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9. In order prove the case, the petitioner in LAC No.21/2015 was examined as PW-1. The Ex.P1 to 71 marked. The respondents' counsel cross examined. The respondent No.2 manager was examined as RW-1, Ex.R1 to Ex.R7 marked. The petitioner counsel cross examined R.W.1.

10. Heard the argument of claimant's counsel. The claimant counsel relied on decision passed in 2018 AIR (Civil) 671. Heard the argument of respondent counsel. The respondent's counsel Sri.M.R.R

submitted the judgment passed by the Hon'ble High Court in MFA No.3705/2006, The judgment passed by the Hon'ble Supreme Court in Civil Appeal No.4332-4403 of 2011 and decisions reported in passed AIR SCW3359, 2019 AKR 395, 2020 AKR 390, 2017 AIR 390 SCW 5811, 2018(2) KCCR SN 172, 2018(2) SC 278.

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11. Perused the entire materials on record. The following points arise for my consideration.

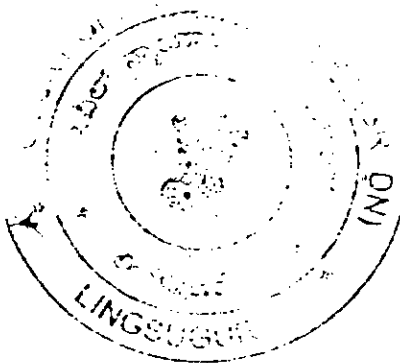
1. Whether the references under Sec.18(1) of LAC Act made by the respondent No.1/SLAO are valid and in time?
2. Whether the petitioners prove that market value of the properties determined by the respondent No.1 is not reasonable and adequate?
3. Whether the petitioners prove that, they are entitled for enhancement of compensation?
4. What order or award?

My findings to the above points are as follows:-

POINT NO.1: Affirmative  
 POINT NO.2: Affirmative  
 POINT NO.3: Affirmative  
 POINT No.4: As per the final order for the following reasons:

### **REASONS**

12. **POINT NO.1:-** In order to prove the case, the petitioner in LAC No. 21/2015 by name N. Swamy



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 was examined as PW-1. Ex.C1 to Ex.C21 and Ex.P1  
 to Ex.P71 marked. Ex.C1 to 8 are 18(1) Applications.  
 Ex.C9 to 16 are 12 (2) notices Ex.C17 is 4(1)  
 notification. Ex.C18 is 6(1) notification. Ex.C19 is  
 Award passed by SLAO. Ex.C20 is Award approval.  
 Ex.C21 is 4(1) notification. Ex.P1 to 8 are RTC  
 extracts. Ex.P9 is Sale deed. Ex.P10 is NA order.  
 Ex.P11 is Rough sketch. Ex.P12 is Certified copy of  
 compromise decree. Ex.P13 is Sale deed. Ex.P14 is NA  
 order. Ex.P15 is Rough sketch. Ex.P16 & 17 are NA  
 order. Ex.P18 is NA order. Ex.P19 is NA order. Ex.P20  
 is NA order. Ex.P21 to 32 are NA orders. Ex.P33 is NA  
 order. Ex.P34 is NA order. Ex.P35 is Approval order.  
 Ex.P36 is NA order. Ex.P37 is Approval order. Ex.P38  
 is NA order. Ex.P39 is Approval order. Ex.P40 is NA  
 order. Ex.P41 is Photographs. Ex.P42 is CD. Ex.P43  
 is Village map. Ex.P44 is Google map. Ex.P45 is 12(2)  
 notification. Ex.P46 is Tonch map. Ex.P47 is NA

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order. Ex.P48 is 06 photographs. Ex.P49 is 12(2)

notice. Ex.P50 is Notice dated 16-07-1958. Ex.P51

is Letter issued by Asst. Commissioner. Ex.P52 is

Certified copy of judgment and award in LAC

No.82/2015. Ex.P53 is Village map. Ex.P54 is Paper

publication. Ex.P55 is Certified copy of judgment in

LAC No.50/07. Clubbed with LAC No.45/2007.

Ex.P56 is Certified copy of judgment and award in

LAC No.50/2007 C/w LAC No.270/2006 to LAC

No.54/2007. Ex.P57 is Simple mortgage deed. Ex.P58

is CD. Ex.P59 is Sale deed dated 01-08-2011. Ex.P60

is Letter dated 19-10-2016. Ex.P61 is Letter dated

05-10-2016. Ex.P62 is Letter issued by Dist. Court

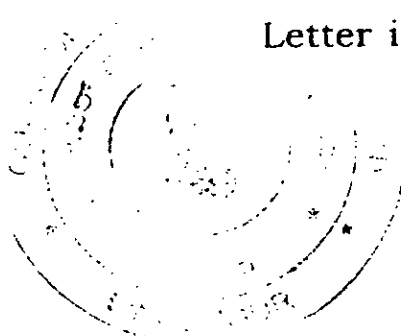
Raichur. Ex.P63 is Letter issued by this court.

Ex.P64 is Letter dated 28-01-2021. Ex.P65 is

Vakalath. Ex.P66 is Letter dated 04-03-2020. Ex.P67

is Order passed by Deputy Secretary. Ex.P68 is

Letter issued by Hutti Gold Mines. Ex.P69 is Gazette



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notification. Ex.P70 is Certified copy of village map.

Ex.P71 is Document pertaining to MFA No.201870/204 pending in High Court of Karnataka.

13. Initially before clubbing the case with LAC 21/2015, in the petitioner in LAC No.72/2015 examined as PW-1. 74 documents were marked as Ex.P1 to 74 marked. The respondent No.1 and 2 counsel cross examined. Thereafter the LAC no 72/2015 clubbed with LAC No.21/2015. Ex.P1 is 4(1)

~~notification, Ex.P2 is 6(1) notification, Ex.P3 is~~

Award, Ex.P4 is Award confirmation order, Ex.P5 is 18(1) application in LAC No.72/2015, Ex.P6 is 12(2) notice, Ex.P7 is 18(1) application in LAC No.69/2015, Ex.P8 is 12(2) notice, Ex.P9 is 18(1) application in LAC No.70/2015, Ex.P10 is 12(2) notice, Ex.P11 is 18(1) application in LAC No.71/2015, Ex.P12 is 12(2) notice, Ex.P13 is 18(1)

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application in LAC No.73/2015, Ex.P14 is 12(2)

notice, Ex.P15 is 18(1) application in LAC

No.74/2015, Ex.P16 is 12(2) notice, Ex.P17 is 18(1)

application in LAC No.75/2015, Ex.P18 is 12(2)

notice, Ex.P19 is 18(1) application in LAC

No.79/2015, Ex.P20 is 12(2) notice, Ex.P21 is 18(1)

application in LAC No.83/2015, Ex.P22 is 12(2)

notice, Ex.P23 is ROR, Ex.P24 is Map, Ex.P25 is

ROR, Ex.P26 is Map, Ex.P27 is ROR, Ex.P28 is Map,

Ex.P29 is ROR, Ex.P30 is Map, Ex.P31 is village

map, Ex.P32 is NA order dated 08-02-2005, Ex.P33 is

NA order, Ex.P34 is Annexure-5 dated 08-12-2011,

Ex.P35 is Conversion order dated 02-03-2012 in LAC

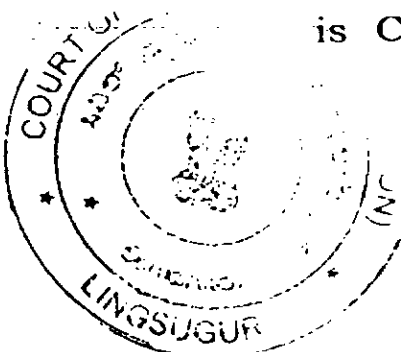
No.72/2015, Ex.P36 is Approval map, Ex.P37 is

Annexure -5 dated 29-09-2011, Ex.P38 is Conversion

order dated 01-12-2011, Ex.P39 is Approval map,

Ex.P40 : Annexure-5 dated 23-01-2013, Ex.P41

is Conversion order dated 27-10-2000, Ex.P42 is



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Annexure-5 dated 08-11-2011, Ex.P43 is Conversion order dated 03-02-2012, Ex.P44 is Approval map, Ex.P45 is Conversion order dated 18-06-2014, Ex.P46 is Map, Ex.P47 is Annexure-5 dated 08-12-2011, Ex.P48 is Map, Ex.P49 is Annexure-5 dated 06-03-2013, Ex.P50 is Conversion order dated 03-02-2012, Ex.P51 is Map, Ex.P52 is Annexure-5 dated 14-03-2012, Ex.P53 is Conversion order dated 28-09-2012, Ex.P54 is Annexure-5 dated 08-11-2011, Ex.P55 is Conversion order dated 15-03-2012, ~~Ex.P56 is Map, Ex.P57 is Annexure-10 dated 25-06-2007,~~ Ex.P58 is Copy of registered sale deed dated 01-08-2011, Ex.P59 is Copy of registered sale deed dated 08-04-2011, Ex.P60 is Copy of registered sale deed dated 20-04-2011, Ex.P61 is Annexure issued by D.C Raichur, Ex.P62 is Conversion order, Ex.P63 is Map, Ex.P64 is Annexure-5, Ex.P65 is Conversion order, Ex.P66 is Map, Ex.P67 is Annexure-10, Ex.P68

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is Conversion order, Ex.P69 is Map, Ex.P70 is

Annexure-10, Ex.P71 is Conversion order, Ex.P72 is

Map, Ex.P73 is Order passed by Asst. Commissioner,

Lingasugur, Ex.P74 is Map. The Respondent No.1

submitted the applications filed by the petitioners

under Sec.18(1) of LA Act barred by law of limitation.

I have carefully perused above documents, the date of

receipt of notice and date of filing of applications

under Sec. 18(1) of LA Act are shown in below table

| Sl.No. | Case No. | 12(2) notice<br>received dated | 18(1)<br>application<br>filing date |
|--------|----------|--------------------------------|-------------------------------------|
| 01     | 21/2015  | 25-02-2014                     | 05-05-2014                          |
| 02     | 08/2015  | 28-02-2014                     | 24-05-2014                          |
| 03     | 11/2015  | 28-02-2014                     | 27-03-2014                          |
| 04     | 12/2015  | 04-03-2014                     | 26-03-2014                          |
| 05     | 17/2015  | 25-02-2014                     | 26-03-2014                          |
| 06     | 20/2015  | 04-03-2014                     | 24-03-2014                          |
| 07     | 23/2015  | 28-02-2014                     | 06-05-2014                          |
| 08     | 26/2015  | 25-02-2014                     | 24-03-2014                          |
| 09     | 28/2015  | 04-03-2014                     | 24-03-2014                          |
| 10     | 29/2015  | 28-02-2014                     | 25-03-2014                          |

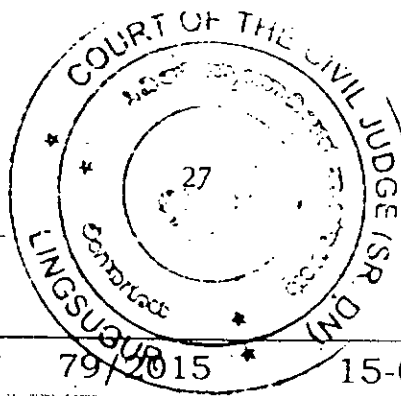
ASD 267

LAC NO : 21/2015 C/w LAC No 08/2015, LAC No 11/2015,  
 LAC No 12/2015, LAC No 17/2015 LAC NO 20/2015,  
 LAC NO.23/2015, LAC NO 26/2015, LAC NO 28/2015,  
 LAC NO.29/2015, LAC NO.30to36/2015, LAC NO 41/2015,  
 LAC NO 42/2015, LAC NO.46/2015, LAC NO.48/2015,  
 LAC NO 51/2015, LAC NO.55/2015, LAC NO 58/2015,  
 LAC NO.63 to 67/2015, LAC NO 69/2015 to 75  
 LAC NO.79/2015 AND LAC NO.83/2015.

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|    |         |            |            |
|----|---------|------------|------------|
| 11 | 30/2015 | 25-02-2014 | 24-03-2014 |
| 12 | 31/2015 | 04-02-2014 | 27-03-2014 |
| 13 | 32/2015 | 25-02-2014 | 21-05-2014 |
| 14 | 33/2015 | 21-02-2014 | 27-03-2014 |
| 15 | 34/2015 | 04-03-2014 | 25-03-2014 |
| 16 | 35/2015 | 28-02-2014 | 25-03-2014 |
| 17 | 36/2015 | 25-02-2014 | 24-03-2014 |
| 18 | 41/2015 | 25-02-2014 | 25-03-2014 |
| 19 | 42/2015 | 28-02-2014 | 24-05-2014 |
| 20 | 46/2015 | 25-02-2014 | 21-05-2014 |
| 21 | 48/2015 | 25-02-2014 | 24-03-2014 |
| 22 | 51/2015 | 25-02-2014 | 24-03-2014 |
| 23 | 55/2015 | 28-02-2014 | 25-03-2014 |
| 24 | 58/2015 | 05-02-2014 | 24-03-2014 |
| 25 | 63/2015 | 25-02-2014 | 05-05-2014 |
| 26 | 64/2015 | 25-02-2014 | 25-03-2014 |
| 27 | 65/2015 | 28-02-2014 | 25-03-2014 |
| 28 | 66/2015 | 13-02-2014 | 24-03-2014 |
| 29 | 67/2015 | 13-02-2014 | 24-03-2014 |
| 30 | 69/2015 | 15-02-2014 | 30-04-2014 |
| 31 | 70/2015 | 15-02-2014 | 30-04-2014 |
| 32 | 71/2015 | 15-02-2014 | 30-04-2014 |
| 33 | 72/2015 | 13-02-2014 | 30-04-2014 |
| 34 | 73/2015 | 13-02-2014 | 30-04-2014 |
| 35 | 74/2015 | 15-02-2014 | 30-04-2014 |
| 36 | 75/2015 | 13-02-2014 | 30-04-2014 |

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LAC NO : 21/2015 C/w LAC No.08/2015, LAC No.11/2015,  
LAC No.12/2015, LAC No 17/2015 LAC NO 20/2015,  
LAC NO 23/2015, LAC NO 26/2015, LAC NO 28/2015,  
LAC NO. 29/2015, LAC NO.30to36/2015, LAC NO 41/2015,  
LAC NO.42/2015, LAC NO 46/2015, LAC NO 48/2015,  
LAC NO.51/2015, LAC NO 55/2015, LAC NO 58/2015,  
LAC NO 63 to 67/2015,, LAC NO 69/2015 to 75  
LAC NO.79/2015 AND LAC NO.83/2015

|    |         |            |            |
|----|---------|------------|------------|
| 37 | 79/2015 | 15-02-2014 | 30-04-2014 |
| 38 | 83/2015 | 15-02-2014 | 30-04-2014 |

As per the above discussion, the petitioners have filed applications under Sec.18(1) of LA Act within limitation. In respect of LAC no 75/2015 and LAC no 72/2015 Smt Johan bee was owner of the land Sy n 315/\*/\* and 316/\*/1 of Kotha village. The Johan bee died thereafter Katha transferred in the name Mahaboo Sab S/o kasimasab in respect of Land sy no 315/\*/\* on the basis of Puthi. In respect of Land Sy no 316/\*/1 after death of the Johan bee Katha transferred in the name Mahaboo sab S/ kasimasab and Sahirabegum W/o Mahiboobsab in respect of Land sy no 316/\*/1. On behalf Johan bee, the petitioner of LAC no 75/2015 received the amount in respect Sy no. 316/\*/1. The petitioners of LAC no 72/2015 received the amount from the Respondent No.1 in respect of land Sy no 315/\*/\* In respect of

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LAC no 83/2015 original owner by name Lalsab died,  
 the Huasainbee W/o Lalsab received the amount  
 from the Respondent No.1.

14. After filing of the reference applications by the  
 petitioners in relation to 4(1) notification dated 08-  
 08-2012. The respondent No.1 referred the some of  
 the cases to this court. The said cases are numbered  
 as LAC No.03/2015 to 60/2015, LAC No.63/2015 to  
 LAC No.83/2015. This court ordered that The  
Right to Fair Compensation and Transparency in

Land Acquisition Rehabilitation and Re-settlement  
 Act, 2013 applicable and directed the respondent  
 No.1 to re-determine the compensation under above  
 Act. The said order challenged in WP No.203169-  
 203238/2019 & WP No.205872-75/2019 C/w WP  
 No.202271/2019 (LA-RES). The Hon'ble High court  
 set aside the order passed by this court. The Hon'ble

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High court ordered that LA Act is applicable and directed to reference court to reconsider the compensation under the LA Act. In the said judgment, the Hon'ble High Court of Karnataka, Kalaburgi bench in para No.5 observed as under;

5. The Gazette Notification under Sec.4(1) under the Old Land Acquisition Act was issued on 16-08-2012 and Final Notification was issued on 12-09-2013 and the award in all these cases came to be passed on 15-12-2013 as per the Land Acquisition Act, 1984.

The New Act came into effect on 01-01-2014.

If all these dates are taken into consideration, there is not much a quarrel that the reference applications which were pending before the Reference Court were very much maintainable.



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 As per the observation of the Hon'ble High

Court as stated supra, the reference applications filed by the petitioners within limitation.

15. Further, the respondent No.2 challenged the order passed by this court in LAC No.72/2015 in MFA No.200098/2012. The Hon'ble High Court of Karnataka Kalaburgi bench set aside the judgment and permitted to the respondent No.2 to contest the case. Further Hon'ble High Court directed the respondent no 2 to deposit ₹. 7,00,000/- per acre in relation to land acquired under 4(1) notification date 08-08-2012.

16. As per 4(1) notification, totally 444-10 acres acquired by the respondent No.1. Thereafter, the petitioners have filed applications before the respondent No.1 within limitation. The respondent

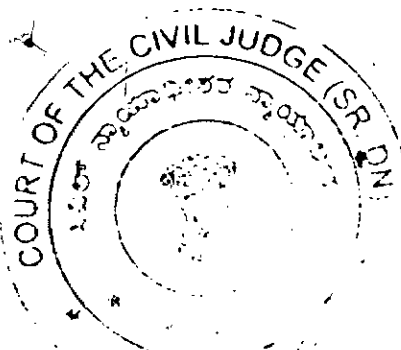
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No.1 authority referred the some of the reference applications and not referred the some of the applications to the reference court. The Hon'ble Supreme Court in the decision reported in (2015) 15 SCC 343 between Chandra Bhan (dead) through

legal representatives and others Vs. Ghaziabad Development Authority and others held as under;

We are of the opinion that in cases where a large number of claimants are involved, there will always be a few claimants who may accept the award passed by the Collector. If they are precluded from making a reference for enhancement of compensation, it could lead to an anomalous situation where out of very large number of landowners, some of them, located in scattered pockets would be entitled to the compensation only as awarded by the Collector while some of them in other scattered pockets would be entitled to claim enhancement of compensation. There would,



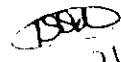
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therefore, be two distinct class of land owners similarly located and placed but receiving different amounts of compensation for the acquisition of the same land. Surely, this cannot be the intention of Section 18 of the Act.

As per the observation of the Hon'ble supreme court in the above decision, in case where large number of claimants/ petitioners are involved, if some of the claimants have filed reference applications, and get the enhanced compensation, the said benefit is to be extended to the other

claimants also. Here in this case as per the above discussion, the petitioners have filed the applications within limitation before the Respondent No.1. It is duty of the respondent No.1 to refer the applications to the reference court. By applying the above said decision of Hon'ble Supreme Court to the present case. Further as per observation of our own



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Hon'ble High Court as stated supra, this court opines that the references applications are within limitation. Accordingly, I answer point No.1 in the Affirmative.

17. **POINT NO.2 and 3:-** Both the points taken together for common discussion to avoid the repetition. The respondent's counsel by relying the Hon'ble High Court judgment passed in MFA No.3705/2006 C/w other MFAs and The judgment passed by the Hon'ble Supreme Court in Civil Appeal No.4332-4403 of 2011 dated 18/2/2016 argued that the acquired lands are agricultural lands. I have carefully perused the above said decisions, the acquired land situated Ooty Village of Devadurga Taluka. In the present case the acquired lands are situated in Hutti and Kota village of Lingasugur Taluka. Therefore with due respect to the above said



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decisions, the said decisions are not applicable to the present cases. The respondent's counsel argued that the petitioners entered agreement with company. On the basis of agreement the company provided job to the land loser. Therefore the petitioners not entitle to for compensation. I have carefully perused the Ex.R2 i.e., agreement marked in LAC no 5/2018. In the said agreement the applicant by name Basavarj not stated that he will not file application for enhancement of compensation. The respondent No.2 not produced all the agreements executed by the land losers. For sake of discussion, the statutory right of the petitioners can not be restricted on the basis of the agreements. Therefore, the respondent No.2 argument is not tenable. For determination of enhancement of compensation three methods are generally adopted i.e., (1) opinion of expert, (2) sales statistics method and (3) capitalization method. In

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this case, the petitioners' relied on the sale deeds.

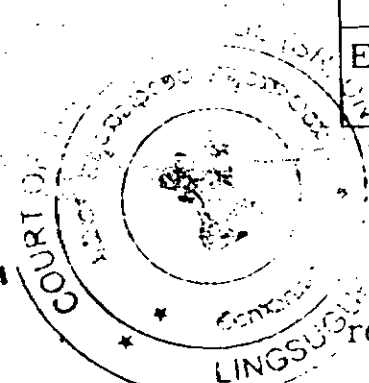
Therefore petitioners claiming compensation on the basis of sales statistic method. The petitioners counsel argued that the acquired lands are NA potential lands. The details of the sale deeds relied by the petitioners of LAC 19/2018 are as under:

| The documents marked | Sale deeds dated | Measure ment | Amount       | Rupees per Sq. feet. |
|----------------------|------------------|--------------|--------------|----------------------|
| Ex.P8                | 14-02-2008       | 1500 Sq.ft   | ₹.3,50,000/- | 233 Sq.ft            |
| Ex.P9                | 15-05-2010       | 1200 Sq.ft   | ₹.1,57,000/- | 131 Sq.ft            |

The petitioners of LAC No. 5/2018 and 21/2015

relied on the following sale deeds

| The documents marked                       | Sale deeds dated | Measure ment | Amount       | Rupees per Sq. feet. |
|--------------------------------------------|------------------|--------------|--------------|----------------------|
| Ex.P22 in LAC No.05/2018                   | 08-04-2011       | 2500 Sq.ft   | ₹.3,00,000/- | 120 Sq.ft            |
| Ex.P23 in LAC No.05/2018<br>( Ex.P9 in LAC | 20-04-2011       | 400 Sq.ft    | ₹.80,000/-   | 200 Sq.ft            |



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|------------------------------------------------------------------|------------|-----------------|-------------|----------|
| No. 21/2015)                                                     |            |                 |             |          |
| Ex.P24 in LAC<br>No.05/2018<br>(Ex.P57 in<br>LAC No.<br>72/2015) | 01-08-2011 | 5000.<br>Sq.ft. | ₹.4,35,000- | 87.Sq.ft |

18. The petitioner also relied on the simple mortgage deed dated 18-04-2012. The said mortgage deed marked as Ex.P25 in LAC No.05/2018. By relying above said documents, Sri H.M. and KKV Adv argued that the acquired lands are NA potential lands. On the contrary the learned counsel for the respondent No. 1 and 2, Sri.MRR and AGP submit

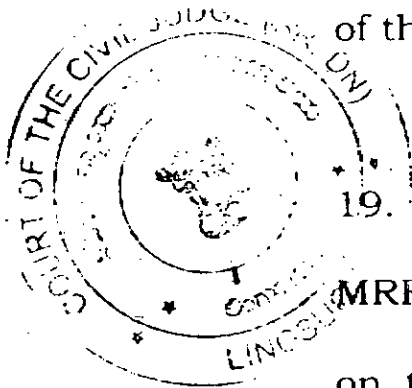
that the acquired lands are dry lands. The petitioners have not entitled for the amount as stated in the sale deeds. The learned counsel for respondent No.2 Sri.MRR by relying on the decision reported in 2019 AIR SCW 3359, 2019 AKR 395, 2020 AKR 390 argued that if the sale deeds are produced in respect of small plot of land before the reference court, the

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said plot rates can not be considered for the large quantity of the acquired lands. Further, learned counsel for respondent No.2 argued that without examination of the vendor or vendee, the sale deed produced by the petitioners cannot be considered.

The respondent's counsel relied on the decision reported in 2020 AKR 390 between Shivanagouda Kadlur v/s D.C. Haveri. As per the decision of the Hon'ble high court to rely the sale deed examination of the vendor and vendee is necessary.



19. The learned counsel for the respondent Sri MRR vehemently argued that the petitioners relied on the corner sites sale deeds. Therefore, the said sale deeds cannot be considered for large area of acquired lands. Once again I have perused the sale deed dated 14-02-2008 and 15/05/2010( both sale deed marked as Ex.P8 and 9 respectively in LAC no

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 19/2018), sale deed dated 08-04-2011 and

20/04/2011 ( both sale deed marked as Ex.P22 and

24 respectively in LAC No.5/2018), all sale deeds are

corner sites sale deeds.

20. In this case, the petitioners not examined vendor or vendee. As per our own Hon'ble high court decision as stated supra, the sale deeds and mortgage deed produced by the petitioners can not be considered for determination of the compensation.

21. The counsels for the petitioners argued that the acquired lands are NA potential lands. On the contrary the respondent's counsel argued that acquired lands are not NA potential lands. I have carefully perused L.A. Act, Potential not defined in the Act. As per Oxford dictionary potential defined as

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capable of coming into being possibility. In Black's

law dictionary it is defined that extending in

possibility but not in act. Naturally and probably

expected to come into existence as some future of

time though not know existing. As per dictionary

meaning as stated above potential means at the time

of acquisition, the lands are not converted non

agricultural lands but in future the acquired land

may be converted into non agricultural lands. The

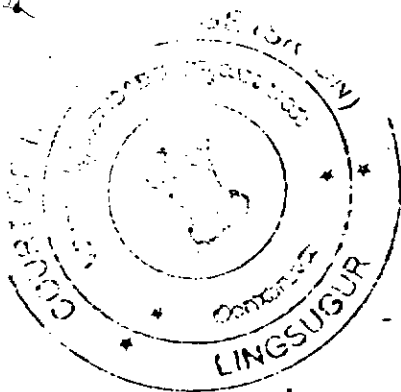
Hon'ble supreme court in the decision reported in

(2008)2 SCC 568 between Atma Singh Vs. State of

Haryana observed as under :

" For ascertaining the market value of the land, the potentiality of the acquired land should also be taken into consideration.

Potentiality means capacity or possibility for changing or developing into state of actuality. It is well settled that market value of a property has to be determined having due regard to its existing condition



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 with all its existing advantages and its potential possibility when led out in its most advantageous manner. The question whether a land has potential value or not, is primarily one of fact depending upon its condition, situation, uses to which it is put or is reasonably capable of being put and proximity to residential, commercial or industrial areas or institutions. The existing amenities like water, electricity, possibility of their further extension, whether near about town is developing or has prospect of development have to be taken into consideration."

By applying the decision of the Hon'ble supreme court, I would like to discuss whether the acquired lands are NA potential lands or not. Learned counsel for the petitioner Sri.HM vehemently argued that the acquired lands are within 2 k.m. from Hutti company. The petitioners counsel Sri.KKV argued that the acquired lands are adjacent to the Hutti

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Mines company.-Therefore, the acquired lands are

NA potential lands. On the contrary the respondents

counsel argued that the acquired lands are

agricultural lands.

22. I would like to discuss the acquired land

boundaries stated in the 6(1) notification. In

Sy.No.316, Sy.No.323, Sy.No.324, Sy.No.325,

towards souther side Nala is in existence. In

Sy.No.450 and Sy.No.463 towards north side tailing

dumb(company property) is situated. In Sy.No.464

towards southern side tailing dumb(company

property) is situated. In Sy.No.464 towards

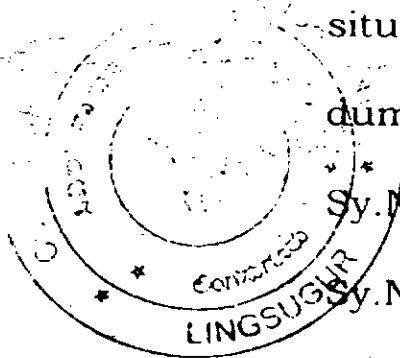
southern side tailing dumb(company property) is

situated. In Sy.No.478 towards western side tailing

dumb(company property) north Nala are situated. In

Sy.No.479 towards North Nala situated. In

Sy.No.61 towards North tailing dump, East: PWD



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road are situated. In Sy.No.66 towards North-  
 compound situated. In Sy.No.67 towards North-  
 compound, East-tailing dump, are situated. On the  
 basis of acquired land boundaries it is clearly  
 forthcoming that the company property or compound  
 is existence towards one of the corner of acquired  
 properties. Learned counsel for petitioners Sri H.M.  
 by relying on the village map argued that acquired  
 lands adjacent to the company land. Therefore, the  
 acquired lands are NA potential lands. The  
 petitioners have produced the plan showing

proposed Huti Industrial Township and Hutti Town  
 Panchayat as per Ex.P43 marked in LAC  
 No.21/2015. On perusal of the map i.e., Ex.P26  
 Hutti Mines Gold Company the acquired lands are  
 shown in green colour. The mining lease boundary  
 shown as a red colour. Once again I have perused  
 the 4(1) notification. the respondent No.1 has

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acquired the land Sy.No.315, Sy.No.316, Sy.No.323,

Sy.No.325, Sy.No.450, Sy.No.463, Sy.No.471,

Sy.No.472, Sy.No.477, Sy.No.480, Sy.No.481,

Sy.No.537, Sy.No.531, Sy.No.470, Sy.No.473,

Sy.No.479, Sy.No.478, Sy.No.530, Sy.No.482,

Sy.No.469, Sy.No.324 of Kotha village. The Sy.No.60,

Sy.No.66 & Sy.No.67 of Hutti village. On perusal of

the map, the acquired lands are adjacent to the

mining lease boundary. Learned counsel for the

petitioners Sri.HM by relying on the Ex.P29 marked

in LAC No.05/2018 argued that road was formed in

the acquired land. Further, the petitioner has

produced document issued by the PWD as per

Ex.P31 in LAC No.05/2018. On perusal of Ex.P31,

the petrol bunk is in existence at the distance of

2.8km from Hutti company main gate. Further, in

Ex.P31 it is specially mentioned that within 2.8 km

there is existence of central school and KEB main

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office. On the basis of Ex.P31, it is forthcoming that the Hutti village extended upto 2.8 km. The petitioners produced the Gazette notification as per Ex.P32 in LAC No.05/2018. On perusal of Gazette notification, in the year 2017 the Hutti Gram Panchayat is declared as Town Panchayat. It reveals that the village panchayat is converted into Town panchayat i.e., semi urban area. It is relevant to note that within 5 year from the dated of 4(1) notification village panchayat is converted into Town panchayat. Apart from that on perusal of Ex.P45 in LAC No.05/2018 in Sy.No.335/3 one acre land is converted into non agricultural land on 11-06-2013. On the basis of documentary evidence it is clearly forthcoming that the acquired lands are adjacent to the company land.

23. Now I would like to discuss the oral evidence led before this court, in LAC No.19/2018 the

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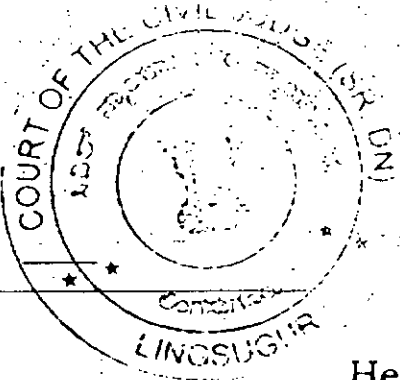
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petitioner examined as PW-1. In the cross examination he deposed that

ನಮ್ಮ ಜಮೀನಿಗೆ ಹೊಂದಿಕೊಂಡು ಬಿನ್ ಕೆತ್ತಿ ಆದ ಜಮೀನು ಇಲ್ಲ ಎಂದರೆ ಸರಿ. ನಮ್ಮ ಜಮೀನಿನಿಂದ 3-4 ಹೊಲ ದಾಟಿ ಬಿನ್ ಕೆತ್ತಿ ಆದ ಜಮೀನು ಎಂದು ನುಡಿಯುತ್ತಾರೆ.

Further he deposed as under;

ನಮ್ಮ ಜಮೀನು ಸರ್ವೆ ನಂ. 463 ಹಿಸ್ಸಾ 1 ಅ ಅದಕ್ಕೆ ಬಾಲ್ತಿಯ ಪಹಣಿಯನ್ನು ಕೊಟ್ಟಿದ್ದೇನೆ. ಹಟ್ಟಿ ಗ್ರಾಮದಿಂದ ಸ್ವಾಧೀನ ಪಡಿಸಿಕೊಂಡ ಜಮೀನು ಅರ್ಧ ಕಿಲೋ ಮೀಟರ್ ದೂರದಲ್ಲಿ ಇದೆ. ಕಂಪನಿಯ ಪಶ್ಚಿಮ ದಿಕ್ಕಿಗೆ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನು ಇದೆ.



He has categorically deposed that acquired land situated within half K.M.from Hutti company.

Further the respondent No.2 cross examined the PW-

1. In the cross examination he deposed as under;

ನಮ್ಮ ಕೋಠಾ ಸೀವಾರ ಜಮೀನು 1 ಕಿಲೋ ಮೀಟರ್ ಒಳಗೆ ಇರುತ್ತದೆ. ನಮ್ಮ ಸ್ವಾಧೀನತೆಗೆ ಒಳಪಟ್ಟ ಜಮೀನು ಬಿನ್ ಕೆತ್ತಿ ಆಗಿಲ್ಲ ಎಂದರೆ ಸರಿ. ನಾವು ಕೂಡ ಬಿನ್ ಕೆತ್ತಿ ಮಾಡಿಲ್ಲ ಎಂದರೆ

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 ಸರಿ. ನಮ್ಮ ಜಮೀನಿನ ಅಕ್ಕ ಪಕ್ಕ ಬಿನ್ ಕೆತ್ತಿ ಜಮೀನು ಇಲ್ಲ

ಎಂದರೆ ಸರಿ. ಸಾಕ್ಷಿಯು ಮುಂದುವರಿದು ನಮ್ಮ

ಜಮೀನಿನನಿಮದ 2-3 ಜಮೀನು ಬಿಟ್ಟು ಬಿನ್ ಕೆತ್ತಿ ಆಗಿದೆ

ಎಂದು ನುಡಿಯುತ್ತಾರೆ

As per-deposition of PW-1 in LAC No.19/2018 it

is clearly forthcoming that the Kotha village lands

and Hutti village lands are adjacent to each other.

Further, on perusal of map also it is forthcoming

that the Kotha lands and Hutti lands are adjacent to

each other.

24. Further I would like to discuss the PW-1  
 evidence in EAC No.21/2015. The P.W.1 in cross  
 examination deposed as under;

ನಿ.ಜಿ. 59 ರಲ್ಲಿ ಹೇಳಿದಂತಹ ಜಮೀನು ನಮ್ಮ ಜಮೀನು ,

ಪರ್ಲಾಂಗ್ ದೂರ ಇದೆ. ನಮ್ಮ ಜಮೀನು ಹಟ್ಟಿ ಕಂಪನಿಯ

ಪಶ್ಚಿಮ ಭಾಗದಿಂದ ಮೇದಿನಾಪುರದ ಜಮೀನಿನ

ಮಧ್ಯಭಾಗದಲ್ಲಿ ಇರುತ್ತದೆ. ಲಿಂಗಸೂಗೂರಿನಿಂದ ಹಟ್ಟಿಗೆ

(ಸಹಿ)

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ಹೋಗುವ ಮುಖ್ಯ ರಸ್ತೆ ನನ್ನ ಜಮೀನಿನಿಂದ 1 ವರೆ ಕಿ ಮೀ  
 ದೂರ ಇದೆ.

25. Further, at the time of cross examination by the  
 respondent No.2 this witness deposed as under;

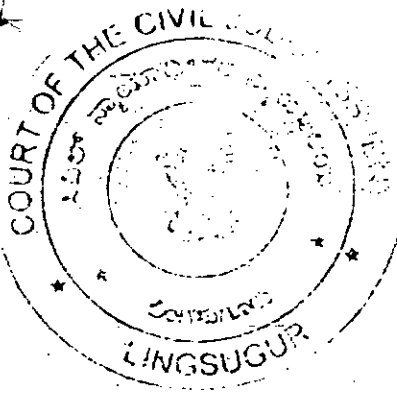
ಹೆಚ್ಚಿ ಗ್ರಾಮದಿಂದ ಪೆಟ್ರೋಲ್ ಬಂಕ್ 2 ಕಿ ಮಿ ದೂರ ಇದೆ.

ಪೆಟ್ರೋಲ್ ಬಂಕ್ ನಿಂದ ನಮ್ಮ ಜಮೀನು 1 ವರೆ ಕಿ ಮೀ  
 ದೂರದಲ್ಲಿದೆ. ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡಂತಹ ಜಮೀನುಗಳು ಎನ್  
 ಎ ಆದೇಶಕ್ಕೆ ಒಳಪಡುವುದಿಲ್ಲ ಎಂದರೆ ಸರಿ. ನಿ ಪಿ 11 ರಲ್ಲಿ  
 ಸ್ಟೇಜ್ ನಲ್ಲಿರುವ ಎನ್ ಎ ಜಮೀನು ನಮ್ಮ ಜಮೀನಿಗೆ  
 ಹೊಂದಿಕೊಂಡಿಲ್ಲ ಎಂದರೆ ಸರಿ. ಸಾಕ್ಷಿ ಮುಂದುವರಿದು ಅದರ  
 ಅಕ್ಕ ಪಕ್ಕ ಬರುತ್ತದೆ ಎಂದು ನುಡಿಯುತ್ತಾರೆ.

On the basis of deposition of PW-1, the acquired  
 lands are within 3kms from the Hutti company.

26. The PW-1 in LAC No.05/2018 deposed as under;

ನಿ.ಪಿ. 26 ರಲ್ಲಿ ನನ್ನ ಜಮೀನಿನ ಸರ್ವೆ ನಂಬರ ಇಲ್ಲ ಎಂದರೆ  
 ಸರಿ. ನಾನು ಹಾಜರು ಪಡಿಸಿದ ಪೋಟೋಗಳು ಹೆಚ್ಚಿ  
 ಗ್ರಾಮದಲ್ಲಿರುವಂತಹವು ಎಂದರೆ ಸರಿ. ಕೋಠಾ ಕ್ರಾಸ್ ನಿಂದ  
 ನನ್ನ ಜಮೀನು ಅರ್ಧ ಕಿ ಮಿ ದೂರ ಇದೆ. ಪೆಟ್ರೋಲ್ ಬಂಕ್



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 ನಮ್ಮ ಜಮೀನಿನಿಂದ ಅರ್ಧ ಕಿ ಮಿ ದೂರ ಇದೆ.

ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನಿನಲ್ಲಿ ಸ್ಥಳಾಧೀನ ಇದೆ ಎಂದರೆ ಸರಿ.

ನಾವು ನಮ್ಮ ಜಮೀನಿನಲ್ಲಿ ಕಡಲೆ ಬೆಳೆ ಬೆಳೆಯುತ್ತಿದ್ದೇವೆಂದರೆ

ಸರಿ.

On the basis of deposition of the P.W-1 it is categorically forthcoming that the acquired lands are within 3kms from the Hutti company. Further at the time of cross examination of respondent No.2 this witness deposed as under;

ಹಟ್ಟಿ ಗ್ರಾಮದಿಂದ ನಮ್ಮ ಜಮೀನುಗಳು ಅರ್ಧ ಕಿ ಮಿ ದೂರದಲ್ಲಿವೆ. ನಮ್ಮ ಜಮೀನಿನ ಪೂರ್ವ ದಿಕ್ಕಿಗೆ ಕಂಪನಿಯ ಕಾಪ್ಪೆ ಇದೆ ಮತ್ತು ಕಂಪನಿ ಸಿಬ್ಬಂದಿಯ ಮನೆಗಳಿವೆ. ನಮ್ಮ ಜಮೀನಿನ ಪಶ್ಚಿಮ ದಿಕ್ಕಿಗೆ ಗೌಡರ ಜಮೀನು ಇದೆ. ನಮ್ಮ ಜಮೀನಿನ ಉತ್ತರ ದಿಕ್ಕಿಗೆ - ಸೆ ನಂ 65 ಜಮೀನು ( ಎನ್ ಎ ಜಮೀನು ಇದೆ ) ಇದೆ. ನಮ್ಮ ಜಮೀನಿನ ದಕ್ಷಿಣ ದಿಕ್ಕಿಗೆ ಕಂಪನಿಯ ಮದ್ದಿನ ಮನೆಗಳು ಇವೆ.

On the basis of the evidence of the PW-1 in LAC No.19/2018, LAC No.21/2015 and LAC No.05/2018 it is clearly forthcoming that the acquired lands are

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within the 3kms from the Hutti company main gate.

Further on perusal of map also the acquired lands are adjacent to the Hutti company land. The

respondent No.2 Company manager examined as

R.W.1 in LAC 19/2018. The respondent No.1 and

respondent No.2 not produced the document to show

that the acquired lands are faraway from the

company. Apart from that the respondent No.1 also

produced the sale deeds as per ExR1 to Ex.R6 in

LAC No.19/2018. On perusal of the said sale deeds

the properties mentioned in the sale deeds are plots.

The Hon'ble supreme court in the decision reported

in AIR 2001 SC117 between Land Acquisition Officer

And others Vs. V. Narasaiah held that market

value- burden is on the state to prove market value of

lands acquired by it. Here in this case the

respondent No.1 not led the evidence and not

produced the documents to prove that acquired



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lands are not NA potential land. On the basis of documentary evidence coupled with oral evidences as discussed above, the petitioners proved that the acquired lands are NA potential lands.

27. The next question would be what is the just and proper compensation. As already discussed above, the sale deeds produced by the petitioners not hep full to determine compensation. The respondent No.2 produced the sale deeds. The petitioners not disputed the said sale deeds. The sale deeds

produced by the respondent No.2 are as under:

| Exhibits<br>LAC19/2018<br>LAC05/2018<br>LAC21/2015                               | Sale deed<br>dated | Amount        | Purchased<br>property<br>in Sqft | Amount<br>per Sq |
|----------------------------------------------------------------------------------|--------------------|---------------|----------------------------------|------------------|
| Ex.R1 in LAC<br>No.19/18<br>Ex.R8 in LAC<br>No.05/18<br>Ex.R2 in LAC<br>No.21/15 | 24-02-2020         | ₹.1,50,000.00 | 1150                             | 130.             |

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|                                                                                  |            |               |      |        |
|----------------------------------------------------------------------------------|------------|---------------|------|--------|
| Ex.R2 in LAC<br>No.19/18<br>Ex.R7 in LAC<br>No.05/18<br>Ex.R1 in LAC<br>No.21/15 | 11-08-2017 | ₹.1,30,000.00 | 1150 | 113.00 |
| Ex.R3 in LAC<br>No.19/18<br>Ex.R9 in LAC<br>No.05/18<br>Ex.R3 in LAC<br>No.21/15 | 03-04-2017 | ₹.1,08,000.00 | 1150 | 94.00  |
| Ex.R4 in LAC<br>No.19/18<br>Ex.R3 in LAC<br>No.05/18<br>Ex.R6 in LAC<br>No.21/15 | 14-02-2008 | ₹.3,50,000.00 | 1500 | 233.00 |
| Ex.R5 in 19/18<br>Ex.R6 in LAC<br>No.05/18<br>Ex.R7 in LAC<br>No.21/15           | 25-11-2004 | ₹.47,000.00   | 2100 | 22.00  |
| Ex.R6 in LAC<br>No.19/18<br>Ex.R4 in LAC<br>No.05/18<br>Ex.R4 in LAC<br>No.21/15 | 26-02-2009 | ₹.54,000.00   | 1680 | 32.00  |

Learned counsel for the petitioners in LAC

No.19/2018 Sri.KKV submitted that the respondent



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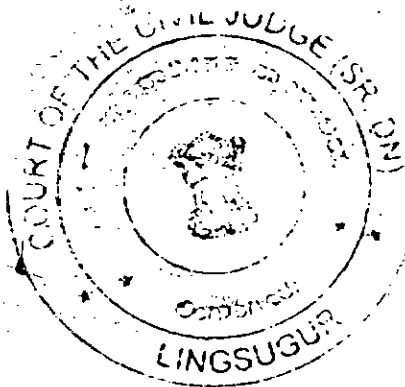
is also relied on Ex.R4, the said sale deed is registered in the year 2008, the said sale deed is to be consider for fixing the compensation. I have perused the Ex.R4 it is sale deed executed by the Gundappa Gurikar in favour of Amaresh Galag. In the said sale deed the property boundaries mentioned as towards East:15 feet road, West:Sy.No.407/2 land, North:PWD road, South: Plot No.3. The said site is corner site. Therefore, the sale deed i.e., Ex.R4 marked in LAC No.19/2018 cannot be considered for fixing the compensation.

28. The respondent No.2 produced Ex.R1 marked in LAC No.19/2018. The said sale deed registered in the year 2020. It is relevant to note the Hon'ble Supreme Court decision reported (2022) 1 SCC 284 between Ramesh Kumar Vs Bhatinda Integrated Coop. Cotton Spg. Mill held as under;

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It is true that increase in the market value should be at a cumulative rate and not at a flat rate. However, when market value is sought to be ascertained with reference to transactions which took place before the acquisition, the law adopted is to collect the year-to-year increase. Further, as the percentage of increase is always with reference to the previous year's market value, the appropriate method is to adopt the increase cumulatively and not applying a flat rate. However, at the same time it is reasonably safe to determine the market value by providing appropriate escalation over the approved market value of nearby lands in the previous years, when relied on sale transactions/acquisitions precede the subject acquisition by only a few years i.e.,



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up to 4-5 years. Beyond that it may be unsafe, even if it relates to a neighbouring land.

Normally, recourse is taken to the mode of determining the market value by providing appropriate escalation over the proved market value of nearby lands in previous years (as evidenced by sale transactions or acquisitions), where there is no evidence of any contemporaneous sale transactions or acquisition of comparable lands in the neighbourhood. The said method is reasonably safe where the relied-on sale transactions/acquisitions precedes the subject acquisition by only a few years, that is, up to four to five years. Beyond that if my be unsafe, even if it relates to a neighbouring land. What may be a reliable standard if the

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gap is- of only a few years, may become

unsafe and unreliable standard where the

gap is larger. For example, for determining

the market value of a land acquired in 1992,

adopting the annual increase method with

reference to a sale or acquisition in 1970 or

1980 may have many pitfalls. This is

because, over the course of years, the "rate of

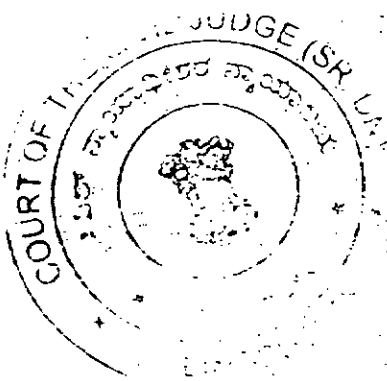
annual increase may itself undergo drastic

change apart from the likelihood -of

occurrence of varying periods of stagnation

in prices or sudden spurts in prices affecting

the very standard of increase.



As per decision of the Hon'ble Supreme Court, the sale deeds up to four to five years are taken into consideration for determining the compensation.

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29. The Hon'ble Supreme Court in full bench decision reported (2013) 16 SCC 392 between Himmat Singh and others Vs. State of M.P held as under market value-computation-comparable sales method- sale instances-Reliability-Registered sale deeds, authenticity whereof is undisputed-Held, cannot be ignored.

30. Here in this case, the petitioners have not disputed the sale deeds produced by the respondent No.2. By applying the Hon'ble supreme court decision

as stated supra to the present case, the Ex.R1, 3, and 4 marked in LAC No.21/2015 are taken in to consideration to ascertain the compensation.

31. On the basis of Ex.R4, as on 26-02-2009, the property rate was 32 per square feet. Admittedly the 4(1) notification issued on 08-08-2012. Therefore,

*[Signature]*  
 7/11

16/

there is a gap of 3 years, 5 months, 13 days. The petitioner's counsel argued that 10% escalation is to be considered per year for calculation of the amount. The Hon'ble Supreme Court in the full bench decision passed in 2010 SC 524 between K. Sharadha Rani Sreenivas Vs. SLAO and another held that 10% of the escalation per year is to be considered. Further the Hon'ble Supreme Court in the decision reported in 2019 (4) SCC 472 held that 10% of the escalation per year is permissible in semi urban area. In recent decision reported 2022 (1) SCC 284 as stated supra the Hon'ble Supreme Court considered 10% escalation per year. By applying the law laid down by the Hon'ble Supreme Court as stated supra to the present case, this court opines that 10% escalation per year is considered for enhancement of compensation.

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7/7

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32. There is gap of 3 years, 5 months, 13 days.

between acquired land and land mentioned in the

Ex. R6.

Amount for 1 Gunta as per Ex.R4 is of ₹ 34848/-

i.e.,  $32 \times 1089 = ₹ 34,848/-$

10% escalation per year on 34848/-

$34848 \times 10/100 = 3484.8$  to rounded off ₹ 3489/-per

year. Per month  $3489/12 = 290.7$  to rounded off ₹

291. Per day  $291./30 = 9.7$  to rounded off ₹ 10.

For 3 years  $3489 \times 3 = ₹ 10467$

For 5 month  $291 \times 5 = ₹ 1455$ .

For 13 days  $10 \times 13 = ₹ 130$ .

Total = 12052

$12052 + 34848 = 46,900$  per gunta

$46,890/1089 = ₹ 43/-$  Sq.ft

33. On perusal of Ex.R1, and ExR3, there is gap  
 in between the acquired lands and sale deeds.

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Our own Hon'ble high court Kalaburagi Bench  
 division bench in MFA No.200778/2018 (LAC)  
 between The Special Land Acquisition Officer Upper  
 Krishna Project v/s Karibasappa dated 17th Day Of  
 June, 2020 applied 5% de-escalation for one year.

34. On perusal of Ex.R1 marked in LAC  
 No.21/2015, the time gap is 5 year 3days in between  
 the sale deed dated 11-08-2017 and 4(1) notification  
 dated 08-08-2012.

Amount for 1 Gunta as per Ex.R1,  $113 \times 1089 =$   
 $\text{₹} 1,23,057.$

The 5% per year on 1,23,057 = 6152.85 to rounded  
 off 6153/- per year and per day 17

5 year 3days  $6153 \times 5 = 30765 + 51 = 30,816$

By deducting 30,816 in 1,23,057, the amount would  
 be 92241/- per gunta.  $92241/1089 = 84.7$  to



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rounded of 85 Per sq.feet. As per the Ex.R1 the  
 acquired land value is ₹.85 square feet.

35. On perusal of Ex.R3, the sale deed was  
 executed 03-04-2017. The 4(1) notification issued on  
 08-08-2012. The time gap is 4 year, 7 month, 26  
 days.

Amount for 1 Gunta as per Ex.R.3,  $94 \times 1089 =$   
 1,02,366.

The 5% per year on 1,02,366 = 5118.3 to rounded off

5118/- per year and per day 14

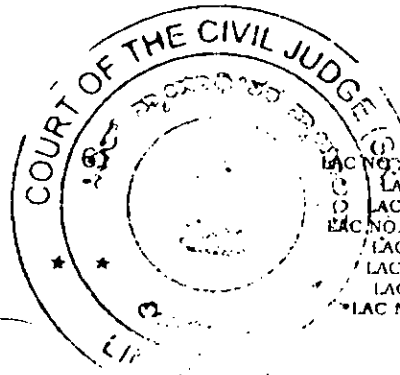
4 year  $5118 \times 4 = 20472$

7 month  $426.5 \times 7 = 2985$

26 days  $26 \times 14 = 364$

By deducting 23821 in 1,02,366, the amount  
 would be 78545/- per gunta and  
 $78545 / 1089 = 72.13/-$  to round of ₹72 per sq feet

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LAC NO. 21/2015 C/w LAC No 08/2015, LAC No. 11/2015,  
LAC No. 12/2015, LAC No. 17/2015 LAC No 20/2015,  
LAC NO. 23/2015, LAC NO. 26/2015, LAC NO 28/2015,  
LAC NO. 29/2015, LAC NO. 30 to 36/2015, LAC NO 41/2015,  
LAC NO. 42/2015, LAC NO 46/2015, LAC NO 48/2015,  
LAC NO 51/2015, LAC NO 55/2015, LAC NO 58/2015,  
LAC NO. 63 to 67/2015, LAC NO 69/2015 to 75  
LAC NO. 79/2015 AND LAC NO 83/2015

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36. As per the above discussion, as per Ex.R4 the land value is ₹ 43/- Sq.ft. Further as per Ex.R1 land value is ₹. 85 square feet. As per Ex.R3 land value is ₹.72 square feet. The average value of the

acquired land per sq feet is of rupees

$43+85+72=200/3=66.6$  to rounded off ₹.67 per Sq.ft.

37. The petitioner's counsel Sri.H.M by relying on the our owner Hon'ble High Court decision passed in (2014) 5 KCCR 751 argued that 33% is to be deducted for development charges. The Hon'ble Supreme Court in the decision reported in (2017) 14 SCC 332 between Satish Kumar Vs. State of Haryana full bench held that if there is acquisition of land in respect of agricultural or undevelopment potential value. The lands are acquired for commercial purpose then reference court has to be

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deduct 33% for development charges. Our own

Hon'ble high court in the division bench decision reported in(2014) 5 KCCR 751 between Executive

Engineer, minor Irrigation Kolar district vs S.N.

Jayaram held that in respect of agricultural or

undeveloped land which has potential value for

housing or commercial purpose, normally, 1/3rd

amount of compensation has to be deducted. Here in

this case the lands are acquired for commercial

purpose. By applying law laid down by the Hon'ble

Supreme Court as well as our own Hon'ble High

Court, this court come to the conclusion that 33% is

to be deducted in the acquired land for the purpose of

development charges. As per above discussion, the

petitioners in all the cases entitled for compensation

of ₹.67/- per Sq.ft. The acquisition is compulsory

nature. Hence, the petitioners are entitled for all

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statutory benefits. Accordingly, I answer point No.2  
 and 3 in affirmative.

38. **POINT NO.4** :- As per the above discussion, I  
 proceed to pass the following order.

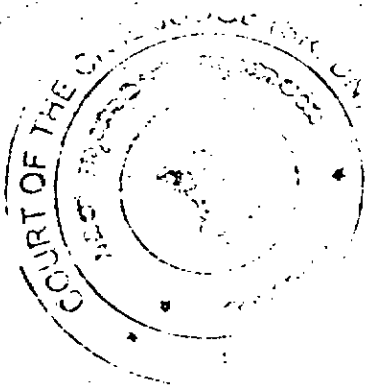
**: O R D E R :**

The references are allowed with cost  
 holding that award passed by the  
 respondent No.1 is modified in the  
 following terms:

The market value of the respective  
 acquired lands in these cases is fixed at  
 the rate of Rs.67/- (Rupees Sixty Seven  
 only) per square feet except pot kharab  
 and deduct land at the rate of 33% for  
 development charges.

The claimants are entitled to get  
 30% of solatium on the enhanced  
 market value and less the amount  
 received from the respondent.

The claimants are also entitled for  
 interest @ 9% p.a from the date of 4(1)  
 Notification for the period of one year  
 and 15%p.a. subsequent period till the



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date of realization of entire amount.

The claimants are also entitled for interest on solatium

Further, the petitioners are entitled for additional amount at rate of 12% p.a. on market value from the date of publication of 4(1) notification to the date of award or date of taking possession of land whichever is earlier.

The advocate fee is fixed at Rs.1000/-

Draw decree/award accordingly,

As the common judgment is passed,

keep the original judgment in LAC No.

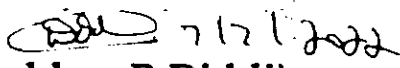
21/2015 and copies thereof in LAC NO.08/2015, LAC NO.11/2015, LAC NO.12/2015, LAC NO.17/2015, LAC NO.20/2015, LAC NO.23/2015, LAC NO.26/2015, LAC NO.28/2015, LAC NO.29/2015, LAC NO.30/2015, LAC NO.31/2015, LAC NO.32/2015, LAC NO.33/2015, LAC NO.34/2015, LAC NO.35/2015, LAC NO.36/2015, LAC NO.41/2015, LAC NO.42/2015, LAC

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LAC NO : 21/2015 C/w LAC No 08/2015, LAC No 11/2015,  
LAC No. 12/2015, LAC No 17/2015 LAC No 20/2015,  
LAC NO 23/2015, LAC NO 26/2015, LAC NO 28/2015,  
LAC NO.29/2015, LAC NO.30to36/2015, LAC NO.41/2015,  
LAC NO 42/2015, LAC NO 46/2015, LAC NO 48/2015,  
LAC NO 51/2015, LAC NO 55/2015, LAC NO 58/2015,  
LAC NO.63 to 67/2015, LAC NO.69/2015 to 75  
LAC NO.79/2015 AND LAC NO.83/2015

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NO.46/2015, LAC NO.48/2015, LAC  
NO.51/2015, LAC NO.55/2015, LAC  
NO.58/2015, LAC NO.63/2015 , LAC  
NO.64/2015, LAC NO.65/2015, LAC  
NO.66/2015, LAC NO.67/2015, LAC  
NO.69/2015, LAC NO.70/2015, LAC  
NO.71/2015, LAC NO.72/2015, LAC  
NO.73/2015, LAC NO.74/2015, LAC  
NO.75/2015, LAC NO.79/2015 AND  
LAC NO.83/2015.

(Dictated to Stenographer, transcribed by him and then mistakes are corrected and pronounced by me in the Open Court, this the 07<sup>th</sup> day of July 2022).

  
(Chandrashekhar P Diddi)  
Senior Civil Judge & J.M.F.C.,  
Lingasugur.

**ANNEXURE**

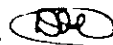
**IN LAC NO.21/2015**

**1. WITNESSES EXAMINED FOR THE CLAIMANT:**

PW1 : N.Swamy S/o Bheemashappa

**2. LIST OF DOCUMENTS MARKED FOR THE CLAIMANT:**

Ex.C1 to 8 : 18(1) applications  
Ex.C9 to 16 : 12 (2) notices  
Ex.C17 : 4(1) notification

  
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|              |   |                                     |
|--------------|---|-------------------------------------|
| Ex.C18       | : | 6(1) notification                   |
| Ex.C19       | : | Award passed by SLAO                |
| Ex.C20       | : | Award approval                      |
| Ex.C21       | : | 4(1) notification                   |
| Ex.P1 to 8   | : | RTC extracts                        |
| Ex.P9        | : | Sale deed                           |
| Ex.P10       | : | NA order                            |
| Ex.P11       | : | Rough sketch                        |
| Ex.P12       | : | Certified copy of compromise decree |
| Ex.P13       | : | Sale deed                           |
| Ex.P14       | : | NA order                            |
| Ex.P15       | : | Rough sketch                        |
| Ex.P16 & 17  | : | NA order                            |
| Ex.P18       | : | NA order                            |
| Ex.P19       | : | NA order                            |
| Ex.P20       | : | NA order                            |
| Ex.P21 to 32 | : | NA orders                           |
| Ex.P33       | : | NA order                            |
| Ex.P34       | : | NA order                            |
| Ex.P35       | : | Approval order                      |
| Ex.P36       | : | NA order                            |
| Ex.P37       | : | Approval order                      |
| Ex.P38       | : | NA order                            |
| Ex.P39       | : | Approval order                      |
| Ex.P40       | : | NA order                            |
| Ex.P41       | : | Photographs                         |
| Ex.P42       | : | CD                                  |
| Ex.P43       | : | Village map                         |
| Ex.P44       | : | Google maps                         |
| Ex.P45       | : | 12(2) notification                  |
| Ex.P46       | : | Tonch map                           |
| Ex.P47       | : | NA order                            |
| Ex.P48       | : | 06 photographs                      |
| Ex.P49       | : | 12(2) notice                        |

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LAC NO : 21/2015 C/w LAC No.08/2015, LAC No 11/2015,  
LAC No.12/2015, LAC No.17/2015 LAC NO.20/2015,  
LAC NO.23/2015, LAC NO.26/2015, LAC NO 28/2015,  
LAC NO.29/2015, LAC NO.30to36/2015, LAC NO.41/2015,  
LAC NO.42/2015, LAC NO.46/2015, LAC NO 48/2015,  
LAC NO 51/2015, LAC NO.55/2015, LAC NO 58/2015,  
LAC NO.63 to 67/2015, LAC NO.69/2015 to 75  
LAC NO.79/2015 AND LAC NO 83/2015

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|        |   |                                                                                             |
|--------|---|---------------------------------------------------------------------------------------------|
| Ex.P50 | : | Notice dated 16-07-1958 -                                                                   |
| Ex.P51 | : | Letter issued by Asst. Commissioner                                                         |
| Ex.P52 | : | Certified copy of judgment and award in LAC No.82/2015                                      |
| Ex.P53 | : | Village map                                                                                 |
| Ex.P54 | : | Paper publication                                                                           |
| Ex.P55 | : | Certified copy of judgment in LAC No.50/07 Clubbed with LAC No.45/2007 -                    |
| Ex.P56 | : | Certified copy of judgment and award in LAC No.50/2007 C/w LAC No.270/200 to LAC No.54/2007 |
| Ex.P57 | : | Simple mortgage deed                                                                        |
| Ex.P58 | : | CD                                                                                          |
| Ex.P59 | : | Sale deed dated 01-08-2011                                                                  |
| Ex.P60 | : | Letter dated 19-10-2016                                                                     |
| Ex.P61 | : | Letter dated 05-10-2016                                                                     |
| Ex.P62 | : | Letter issued by Dist. Court Raichur                                                        |
| Ex.P63 | : | Letter issued by this court                                                                 |
| Ex.P64 | : | Letter dated 28-01-2021                                                                     |
| Ex.P65 | : | Vakalath                                                                                    |
| Ex.P66 | : | Letter dated 04-03-2020                                                                     |
| Ex.P67 | : | Order passed by Deputy Secretary                                                            |
| Ex.P68 | : | Letter issued by Hutti Gold Mines                                                           |
| Ex.P69 | : | Gazette notification                                                                        |
| Ex.P70 | : | Certified copy of village map                                                               |
| Ex.P71 | : | Document pertaining to MFA No.201870/204 pending-in High Court of Karnataka                 |

### 3. WITNESSES EXAMINED FOR THE RESPONDENT:

RW-1 :: Yamanurappa S/o Basappa

### 4. LIST OF DOCUMENTS MARKED FOR THE RESPONDENT

Ex.R1 :: Sale deed of Suresh

Ex.R2 :: Sale deed of Basha

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- Ex.R3 : Sale deed of Mahammed Rafi  
 Ex.R4 : Sale deed of Hanumantha Reddy  
 Ex.R5 : Certificate issued by Gram Panchayat  
 Ex.R6 : Sale deed of Amaresh  
 Ex.R7 : Sale deed of Nagalingappa

### ANNEXURE

#### IN LAC NO.72/2015

#### 2. WITNESSES EXAMINED FOR THE CLAIMANT:

PW1 : Mehaboobsab S/o Khasimsab

#### 2. LIST OF DOCUMENTS MARKED FOR THE CLAIMANT:

- |        |   |                                      |
|--------|---|--------------------------------------|
| Ex.P1  | : | 4(1) notification,                   |
| Ex.P2  | : | 6(1) notification,                   |
| Ex.P3  | : | Award,                               |
| Ex.P4  | : | Award confirmation order,            |
| Ex.P5  | : | 18(1) application in LAC No.72/2015, |
| Ex.P6  | : | 12(2) notice,                        |
| Ex.P7  | : | 18(1) application in LAC No.69/2015, |
| Ex.P8  | : | 12(2) notice,                        |
| Ex.P9  | : | 18(1) application in LAC No.70/2015, |
| Ex.P10 | : | 12(2) notice,                        |
| Ex.P11 | : | 18(1) application in LAC No.71/2015, |
| Ex.P12 | : | 12(2) notice,                        |
| Ex.P13 | : | 18(1) application in LAC No.73/2015, |
| Ex.P14 | : | 12(2) notice,                        |
| Ex.P15 | : | 18(1) application in LAC No.74/2015, |
| Ex.P16 | : | 12(2) notice,                        |
| Ex.P17 | : | 18(1) application in LAC No.75/2015, |
| Ex.P18 | : | 12(2) notice,                        |
| Ex.P19 | : | 18(1) application in LAC No.79/2015, |
| Ex.P20 | : | 12(2) notice,                        |
| Ex.P21 | : | 18(1) application in LAC No.83/2015, |
| Ex.P22 | : | 12(2) notice,                        |
| Ex.P23 | : | ROR,                                 |

*(Signature)*  
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LAC NO : 21/2015 C/w LAC No.08/2015, LAC No 11/2015,  
 LAC No 12/2015, LAC No.17/2015 LAC NO 20/2015,  
 LAC NO.23/2015, LAC NO.26/2015, LAC NO 28/2015,  
 LAC NO.29/2015, LAC NO.30to36/2015, LAC NO 41/2015,  
 LAC NO 42/2015, LAC NO.46/2015, LAC NO 48/2015,  
 LAC NO.51/2015, LAC NO 55/2015, LAC NO 58/2015,  
 LAC NO 63 to 67/2015, LAC NO 69/2015 to 75,  
 LAC NO 79/2015 AND LAC NO 83/2015

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|        |   |                                                         |
|--------|---|---------------------------------------------------------|
| Ex.P24 | : | Map,                                                    |
| Ex.P25 | : | ROR,                                                    |
| Ex.P26 | : | Map,                                                    |
| Ex.P27 | : | ROR,                                                    |
| Ex.P28 | : | Map,                                                    |
| Ex.P29 | : | ROR,                                                    |
| Ex.P30 | : | Map,                                                    |
| Ex.P31 | : | village map,                                            |
| Ex.P32 | : | NA order dated 08-02-2005,                              |
| Ex.P33 | : | NA order,                                               |
| Ex.P34 | : | Annexure-5 dated 08-12-2011,                            |
| Ex.P35 | : | Conversion order dated 02-02-2012 in<br>LAC No.72/2015, |
| Ex.P36 | : | Approval map,                                           |
| Ex.P37 | : | Annexure -5 dated 29-09-2011,                           |
| Ex.P38 | : | Conversion order dated 01-12-2011,                      |
| Ex.P39 | : | Approval map,                                           |
| Ex.P40 | : | Annexure-5 dated 23-01-2013,                            |
| Ex.P41 | : | Conversion order dated 27-10-2000,                      |
| Ex.P42 | : | Annexure-5 dated 08-11-2011,                            |
| Ex.P43 | : | Conversion order dated 03-02-2012,                      |
| Ex.P44 | : | Approval map,                                           |
| Ex.P45 | : | Conversion order dated 18-06-2014,                      |
| Ex.P46 | : | Map,                                                    |
| Ex.P47 | : | Annexure-5 dated 08-12-2011,                            |
| Ex.P48 | : | Map,                                                    |
| Ex.P49 | : | Annexure-5 dated 06-03-2013,                            |
| Ex.P50 | : | Conversion order dated 03-02-2012,                      |
| Ex.P51 | : | Map,                                                    |
| Ex.P52 | : | Annexure-5 dated 14-03-2012,                            |
| Ex.P53 | : | Conversion order dated 28-09-2012,                      |
| Ex.P54 | : | Annexure-5 dated 08-11-2011,                            |
| Ex.P55 | : | Conversion order dated 15-03-2012,                      |
| Ex.P56 | : | Map,                                                    |
| Ex.P57 | : | Annexure-10 dated 25-06-2007,                           |
| Ex.P58 | : | Copy of registered sale deed<br>dated 01-08-2011,       |
| Ex.P59 | : | Copy of registered sale deed<br>dated 08-04-2011,       |
| Ex.P60 | : | Copy of registered sale deed<br>dated 20-04-2011,       |



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LAC NO. 21/2015 C/w LAC No 08/2015, LAC No. 11/2015,  
LAC No. 12/2015, LAC No. 17/2015 LAC No. 20/2015,  
LAC No. 23/2015, LAC No. 26/2015, LAC No. 28/2015,  
LAC No. 29/2015, LAC No. 30 to 36/2015, LAC No. 41/2015,  
LAC No. 42/2015, LAC No. 46/2015, LAC No. 48/2015,  
LAC No. 51/2015, LAC No. 55/2015, LAC No. 58/2015,  
LAC No. 63 to 67/2015, LAC No. 69/2015 to 73  
LAC No. 79/2015 AND LAC No. 83/2015

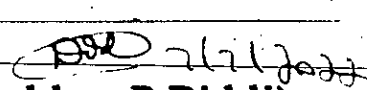
Ex.P61 : Annexure issued by D.C Raichur,  
Ex.P62 : Conversion order,  
Ex.P63 : Map,  
Ex.P64 : Annexure-5,  
Ex.P65 : Conversion order,  
Ex.P66 : Map,  
Ex.P67 : Annexure-10,  
Ex.P68 : Conversion order,  
Ex.P69 : Map,  
Ex.P70 : Annexure-10,  
Ex.P71 : Conversion order,  
Ex.P72 : Map,  
Ex.P73 : Order passed by Asst.  
Commissioner, Lingasugur,  
Ex.P74 : Map.

3. WITNESSES EXAMINED FOR THE RESPONDENT:

-NIL-

4. LIST OF DOCUMENTS MARKED FOR THE RESPONDENT

-NIL-

  
(Chandrashekhar P Diddi)  
Senior Civil Judge & J.M.F.C.,  
Lingasugur.

CERTIFIED TRUE COPY  
Copyist Examiner  
Civil Judge: (Sr. Dn.) &  
J.M.F.C. Court, Lingasugur.

Copy applied for on 2-8-2015  
Filing charges required to be  
produced on 16-8-2015  
3. Copying charge produced on 2-8-2015  
4. Affidavit required produced on 16-8-2015  
5. Affidavit taken on 16-8-2015  
6. Copy ready on 16-8-2015  
7. Copy delivered on 16-8-2015  
8. Copied by XEROX  
9. Examined by PP

To,

Amesure E

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The Special Land Acquisition-officer/  
Assistant Commissioner, LINGSUGUR

Respected Sir,

Subject: Passing of the 28(A) award as per the Judgment and award passed in LAC No.69/ 2015 by the Senior Civil Judge, Lingsugur. reg.,

Reference: 28(A) applications in Office File NoLAQ/GN/1/  
2011-12 (28-A)

\*\*\*

With reference to the above subject I the undersigned Advocate for the Petitioners most respectfully submits this application as follows:-

That, I have produced herein the certified copy of the recent Judgment passed in LAC No.69/2015 and other series of cases by the Hon'ble Senior Civil Judge, Lingsugur on 07/07/2022 which is within the knowledge of the Officer. This Judgment shall be made applicable to the following 28-A applications pending before the Hon'ble Officer viz.,

1. 28-A application of Gundappa Gurikar, R/o Hutti, Tq:-Lingsugur
2. 28-A application of Kanakappa, R/o Hutti, Tq:-Lingsugur
3. 28-A application of Amarappa Hunasgi, R/o Hutti, Tq:-Lingsugur
4. 28-A application of Shivalingappa, R/o Hutti, Tq:-Lingsugur
5. 28-A application of Ningappa Hunsagi, R/o Hutti, Tq:-Lingsugur
6. 28-A application of Manjunath, R/o Hutti, Tq:-Lingsugur
7. 28-A application of Devamma, R/o Hutti, Tq:-Lingsugur
8. 28-A application of Ambamma, R/o Hutti, Tq:-Lingsugur
9. 28-A application of Batulbee, R/o Hutti, Tq:-Lingsugur

Hence it is humbly prayed that the Hon'ble Officer may kindly be pleased to pass the 28-A award as early as possible.

Place:- Lingsugur  
Date:- 31-10-2022

Advocate for Petitioners,

K.K. Vishwanath Advocate,

31/10/22  
Office of the  
Assistant Commissioner  
Lingsugur

To,

Ambar E-2

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The Special Land Acquisition officer/  
Assistant Commissioner, LINGSUGUR

Respected Sir,

Subject: Early passing of the 28(A) awards as per the  
Judgment and award passed in LAC No.69/ 2015 by  
the Senior Civil Judge, Lingsugur. reg.,

Reference: 28(A) applications in Office File NoLAQ/GN/1/  
2011-12 (28-A)(9 Applications with documents).

\*\*\*

With reference to the above subject we the undersigned Claimants/  
Petitioners most respectfully submits this Representation as follows:-

1. That, We have filed 9 Applications U/Sec.28 (A) of L.A. Act in the  
month of June 2021 for passing of Awards as per the Judgment passed in  
LAC No.69/2015 and other series of cases by the Hon'ble Senior Civil  
Judge, Lingsugur on 09.04.2021 which is within the knowledge of the  
Officer.

2. That the above applications are filed before the Hon'ble Officer before  
about one and half years back, but Award has been not passed by the  
Hon'ble Officer up till this day. The Hon'ble Senior Civil Judge was  
passed another Judgment and Award in the said cases after remand and  
after thorough enquiry in matter which is also with in the knowledge of the  
Hon'ble Officer. The claimants in the above cases have produced the said  
recent another judgment and award on 31-10-2022 before the Hon'ble  
Officer.. Therefore it is just and necessary to pass the Awards in the  
pending 28 (A) Applications of the present Claimants/Petitioners.

3. That the HGM Company, Hutti was preferred an Appeal against the  
above referred Judgment in LAC No.69/2015 and other series of cases.

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before the Hon'ble High Court of Karnataka which is within the knowledge of the Hon'ble Officer. The said Appeals are allowed by the Hon'ble High Court of Karnataka and remanded the matter to original court with specific conditions for fresh disposal of the matter which is also within the knowledge of Hon'ble Officer. In the said remand order the Hon'ble High Court was directed the Appellant/ HGM Co.Ltd.Hutti to deposit the amount a sum of Rs.@ 7/- Lacs per Acre in all the pending cases before the Reference Court in relation to the Preliminary Notification Dated:- 08-08-2012. The present Applications are pertaining to the same preliminary notification. For this purpose the Hon'ble Officer shall be considered as Reference Court. The Hon'ble Officer is also empowered to direct the HGM Company to deposit the above said amount in the present applications as per the orders of Hon'ble High Court of Karnataka for the present claimants/petitioners are entitled.

Hence under the above circumstances, it is humbly prayed that the Humble Officer may kindly be pleased to pass the Awards in the 28 (A) Applications of the present Claimants/Petitioners at an earlier date in The interest of justice and equity.

Place:- Lingsugur.

Claimants/Petitioners

Date :- 22-12-2022

Through:-

K.K.Vishwanath Advocate,

Lingsugur.

178 ಕರ್ನಾಟಕ ಸರ್ಕಾರ  
ಸಂ:ಭೂಸ್ವಾ.ಸಾಮಾನ್ಯ:01:2011-12/28(ಎ) | 954

Amrutesh F.  
ಸಹಾಯಕ ಅಯುಕ್ತರವರ ಕಾರ್ಯಾಲಯ  
ಲಿಂಗಸಗೂರು ದಿನಾಂಕ: 13.04.2023

**ತಿಳುವಳಿಕೆ ಪತ್ರ**

ವಿಷಯ: ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 1894 ರ ಕಲಂ. 28(ಎ) ರೀತ್ಯ ಸ್ವೀಕೃತವಾದ ಅರ್ಜಿಗಳ ವಿಷಯದಲ್ಲಿ ಎಲ್ ಎಸ್ ಸಂ: 21/15, 08/15, 11/15, 12/15, 17/15, 20/15, 23/15, 26/15, 28/15 ರಿಂದ 36/15, 41/15, 42/15, 46/15, 48/15, 51/15, 55/15, 58/15, 63/15 ರಿಂದ 67/15, 69/15, 75/15, 79/15 ಹಾಗೂ 83/15 ರ ದಿನಾಂಕ: 09.04.2021 ರ 28(ಎ) ಅರ್ಜಿಗಳ ಕುರಿತು.

ಉಲ್ಲೇಖ: ತಮ್ಮ ಅರ್ಜಿ ದಿನಾಂಕ: 17.06.2021, 18.06.2021, 23.06.2021, 24.06.2021, 23.06.2021, 08.07.2021, 31.10.2022, 22.12.2022

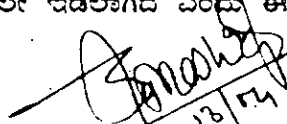
\*--\*--\*--\*

ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ, ಲಿಂಗಸಗೂರು ತಾಲೂಕಿನ ಹಟ್ಟಿ ಹಾಗೂ ಕೋತಾ ಗ್ರಾಮದ ಜಮೀನುಗಳನ್ನು ಹಟ್ಟಿ ಚಿನ್ನದ ಗಣಿಗಾಗಿ ಭೂಸ್ವಾಧೀನ ಪಡಿಸಿಕೊಳ್ಳಲಾಗಿರುತ್ತದೆ. ಅದರಂತೆ ಈ ಕೆಳಗಿನ ಭೂಮಾಲೀಕರು ಹೆಚ್ಚಿನ ಭೂಪರಿಹಾರ ಧನವನ್ನು ಪುನರ್ ನಿಗದಿಪಡಿಸುವಂತೆ ಉಲ್ಲೇಖಿತ ಮಾನ್ಯ ಓರಿಯ ಸಿವಿಲ್ ನ್ಯಾಯಾಧೀಶರು, ಲಿಂಗಸಗೂರು ಇವರ ಎಲ್ ಎಸ್ ಸಂ: 69/2015 ರಿಂದ 75/2015 ಮತ್ತು 79/2015, 83/2015 ರಲ್ಲಿನ ಆದೇಶ ದಿನಾಂಕ: 09.04.2021 ನ್ನು ಲಗತ್ತಿಸಿ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 1894 ರ ಕಲಂ. 28(ಎ) ಅಡಿಯಲ್ಲಿ ಈ ಕಾರ್ಯಾಲಯಕ್ಕೆ ನಿಗದಿತ 90 ದಿವಸದೊಳಗಾಗಿ-ಈ ಕೆಳಕಂಡ ಅರ್ಜಿದಾರರು ಅರ್ಜಿಯನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.

| ಕ್ರ.ಸಂ. | ಭೂಮಾಲೀಕರ ಹೆಸರು                                                                                   | ಸ.ಸಂ.   | ಕ್ರೀತ | ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ ದಿನಾಂಕ |
|---------|--------------------------------------------------------------------------------------------------|---------|-------|-----------------------|
| 1.      | ಶ್ರೀಮತಿ ದೇವಮ್ಮ ಗಂಡ-ಶರಣಪ್ಪ ಸಾ   ಹಟ್ಟಿ ತಾ   ಲಿಂಗಸಗೂರು                                              | 463/*/ಎ | 2-33  | 17.06.2021            |
| 2.      | ಶ್ರೀಮತಿ ಅಂಬಮ್ಮ ಗಂಡ ಶರಣಪ್ಪ ಸಾ   ಹಟ್ಟಿ ತಾ   ಲಿಂಗಸಗೂರು                                              | 463/*/ಕ | 2-33  | 18.06.2021            |
| 3.      | ಶ್ರೀ ಅಮರಪ್ಪ ತಂದೆ ಯಂಕಪ್ಪ ಹುಣಸಗಿ ಸಾ   ಹಟ್ಟಿ ತಾ   ಲಿಂಗಸಗೂರು                                         | 469/*/* | 4-00  | 23.06.2021            |
| 4.      | ಶ್ರೀ ಶಿವಲಿಂಗಪ್ಪ ತಂದೆ ಅಮರಪ್ಪ ಹುಣಸಗಿ ಸಾ   ಹಟ್ಟಿ ತಾ   ಲಿಂಗಸಗೂರು                                     | 469/*/* | 4-00  | 23.06.2021            |
| 5.      | ಶ್ರೀ ಗುಂಡಪ್ಪ ತಂದೆ ಬಸನಗೌಡ ಗುರಿಕಾರ ಸಾ   ಹಟ್ಟಿ ತಾ   ಲಿಂಗಸಗೂರು                                       | 67/*/*  | 2-03  | 23.06.2021            |
| 6.      | ಶ್ರೀ ಹಸನಸಾಬ್ ತಂದೆ ರಾಜಬಬಾನ್ ರವವಲಿಬಾನ್-ಮೃತ ವಾರಸುದಾರ ಬತುಲ್ ಸಾ   ಹಟ್ಟಿ ತಾ   ಲಿಂಗಸಗೂರು                | 480/*/ಎ | 9-03  | 24.06.2021            |
| 7.      | ಶ್ರೀ ಮಂಜುನಾಥ ತಂದೆ ಅಮರಪ್ಪ ಹುಣಸಗಿ ಸಾ   ಹಟ್ಟಿ ತಾ   ಲಿಂಗಸಗೂರು                                        | 469/*/* | 4-00  | 24.06.2021            |
| 8.      | ಶ್ರೀ ನಿಂಗಪ್ಪ ತಂದೆ ಯಂಕಪ್ಪ ಹುಣಸಗಿ ಸಾ   ಹಟ್ಟಿ ತಾ   ಲಿಂಗಸಗೂರು                                        | 469/*/* | 4-00  | 24.06.2021            |
| 9.      | ಶ್ರೀ ಕನಕಪ್ಪ ತಂದೆ ದುರುಗಪ್ಪ ಮೃತ ವಾರಸುದಾರ ಶ್ರೀಮತಿ ದುರುಗಮ್ಮ ಗಂಡ ಮೃತ ಕನಕಪ್ಪ ಸಾ   ಹಟ್ಟಿ ತಾ   ಲಿಂಗಸಗೂರು | 67/*/*  | 9-38  | 23.06.2021            |

ತತ್ಸಂಬಂಧ ಪರಿಶೀಲಿಸಲಾಗಿ, ಸದರಿ ಪ್ರಕರಣದಲ್ಲಿ ಮಾನ್ಯ ಉಚ್ಚನ್ಯಾಯಾಲಯ ಕಲಮರಗಿ ಇಲ್ಲಿ ಮೇಲ್ಮನವಿ ಪ್ರಕರಣ ಎಂ.ಎಫ್.2 ಸಂ:202357/2022ರಂತೆ ವಿಚಾರಣೆ ಹಂತದಲ್ಲಿರುತ್ತದೆ. ಅದರಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 1894 ರ ಕಲಂ. 28(ಎ) ಪ್ರಕರಣಗಳಲ್ಲಿ ಈ ಕಾರ್ಯಾಲಯದಿಂದ ವಿಚಾರಣೆ ಕೈಗೊಂಡು, ಹೆಚ್ಚುವರಿ ಭೂಪರಿಹಾರ ನಿಗದಿಪಡಿಸುವ ಸಂಬಂಧ ವಿಶೇಷ ರಚನೆ ಮಾನ್ಯ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು ರಾಯಚೂರು ಇವರಿಂದ ಅನುಮೋದನೆ ಪಡೆಯಬೇಕಾಗಿರುತ್ತದೆ.

ಕಾರಣ ಮಾನ್ಯ ಉಚ್ಚನ್ಯಾಯಾಲಯ ಕಲಮರಗಿ ಇಲ್ಲಿ ಮೇಲ್ಮನವಿ ಪ್ರಕರಣ ಇತ್ಯರ್ಥವಾಗಿದೆ. ಇರುವುದರಿಂದ ನಿಮ್ಮ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 1894 ರ ಕಲಂ. 28(ಎ) ಅರ್ಜಿಗಳನ್ನು ಇದೇ ಹಂತದಲ್ಲಿ ವಿಲೇ ಇಡಲಾಗಿದೆ ಎಂದು ಈ ಮೂಲಕ ತಿಳಿಸಲಾಗಿದೆ.

  
ಸಹಾಯಕ ಅಯುಕ್ತರು  
ಲಿಂಗಸಗೂರು

ಗೆ,  
ಮೇಲಿನ ಭೂಮಾಲೀಕರಿಗೆ  
✓ ಶ್ರೀ ಕೆ.ಕೆ.ವಿಶ್ವನಾಥ ವಕೀಲರು ಲಿಂಗಸಗೂರು ಇವರ ಪ್ಲಾಟ್‌ನಲ್ಲಿ

ಪ್ರತಿಯನ್ನು:  
1. ಮಾನ್ಯ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು ರಾಯಚೂರು ಇವರಿಗೆ ದಯಾಪರ ಮಾಹಿತಿಗಾಗಿ ಸಲ್ಲಿಸಲಾಗಿದೆ.  
2. ಉಪಪ್ರಧಾನ ವ್ಯವಸ್ಥಾಪಕರು, ಹಟ್ಟಿ ಚಿನ್ನದ ಗಣಿ ನಿಯಮಿತ, ಹಟ್ಟಿ ಇವರಿಗೆ ಮಾಹಿತಿಗಾಗಿ ಕಳುಹಿಸಿದೆ.

ತಿಳುವಳಿಕೆ ಪತ್ರ

ವಿಷಯ: ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 1894 ರ ಕಲಂ: 28(ಎ) ಲ್ಲಿ ಸ್ಥಾಪಿತವಾದ ಅರ್ಜಿಗಳ ವಿಷಯದಲ್ಲಿ ಮಾನ್ಯ ಉಪಸ್ವರ್ಧಾನ ಕಲಬುರಗಿ ಇಲಾಖೆಯ ಮುಖ್ಯ ಸಂ: 200193/2022 ರ ಮೇಲ್ಮನವಿ ಪ್ರಕರಣದಲ್ಲಿ ರ 28(ಎ) ಅರ್ಜಿಗಳ ಕುರಿತು

- ಉಲ್ಲೇಖ: 1. ತಮ್ಮ 28(ಎ) ರಲ್ಲಿ ಸಲ್ಲಿಸಿದ ಅರ್ಜಿ ದಿನಾಂಕ: 17.06.2021, 18.06.2021, 23.06.2021, 24.06.2021, 23.06.2021, 08.07.2021,  
2. ತಮ್ಮ ಅರ್ಜಿ ದಿನಾಂಕ: 31.10.2022, 22.12.2022, 24.04.2023  
3. ಈ ಕಾರ್ಯಾಲಯದ ತಿಳುವಳಿಕೆ ಪತ್ರ ಸಮಸಂಖ್ಯೆ ದಿನಾಂಕ: 13.04.2023

ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ, ಲಿಂಗನೂರು ತಾಲೂಕಿನ ಹುಬ್ಬಳ್ಳಿ ಹಾಗೂ ಕೋತಗಿಗೂಡು ಬ್ಲಾಕ್‌ಗಳಲ್ಲಿ ಹುಬ್ಬಳ್ಳಿ ಜಿಲ್ಲೆಯ ಗಣಿಗಾಗಿ ಭೂಸ್ವಾಧೀನ ಪ್ರಕರಣದಲ್ಲಿ ಭೂಮಾಲೀಕರು ಹುಬ್ಬಳ್ಳಿ ಭೂಸುಲುವಾರ ಘಟನಾ ಮಹಾ ನಿಗದಿಪಡಿಸಿದಂತೆ ಮಾನ್ಯ ವಿಲಂಬ ನಿವಾರಣಾ ಇಲಾಖೆಯಲ್ಲಿ ಲಿಂಗನೂರು ಇವರ ವಿಲಂಬ ಸಂ: 69/2015 ರಿಂದ 75/2015 ಮತ್ತು 79/2015, 83/2015 ರಲ್ಲಿನ ಆದೇಶ ದಿನಾಂಕ: 09.04.2021 ನ್ನು ಲಗತ್ತಿಸಿ ಲಿಂಗನೂರು ಗಂಡ ರವರನ್ನು ಕಾ ಹುಬ್ಬ ತಾ ಲಿಂಗನೂರು ಸಂಖ್ಯೆ: 463 - ಕ ಕ್ಷೇತ್ರ 2-33, ಲಿಂಗನೂರು ಅಂಬಮ್ಮ ಗಂಡ ರವರನ್ನು ಕಾ ಹುಬ್ಬ ತಾ ಲಿಂಗನೂರು ಸಂಖ್ಯೆ: 463 - ಕ ಕ್ಷೇತ್ರ 2-33, ಲಿಂಗನೂರು ತಂದೆ ಯಂಕಪ್ಪ ಹುಬ್ಬಳ್ಳಿ ಕಾ ಹುಬ್ಬ ತಾ ಲಿಂಗನೂರು ಸಂಖ್ಯೆ: 469 - ಕ ಕ್ಷೇತ್ರ 4-00 ಲಿಂಗನೂರು ತಂದೆ ಯಂಕಪ್ಪ ಹುಬ್ಬಳ್ಳಿ ಕಾ ಹುಬ್ಬ ತಾ ಲಿಂಗನೂರು ಸಂಖ್ಯೆ: 469 - ಕ ಕ್ಷೇತ್ರ 4-00, ಲಿಂಗನೂರು ತಂದೆ ಯಂಕಪ್ಪ ಹುಬ್ಬಳ್ಳಿ ಕಾ ಹುಬ್ಬ ತಾ ಲಿಂಗನೂರು ಸಂಖ್ಯೆ: 67 - ಕ ಕ್ಷೇತ್ರ 2-03, ಲಿಂಗನೂರು ತಂದೆ ಯಂಕಪ್ಪ ಹುಬ್ಬಳ್ಳಿ ಕಾ ಹುಬ್ಬ ತಾ ಲಿಂಗನೂರು ಸಂಖ್ಯೆ: 480 - ಕ ಕ್ಷೇತ್ರ 9-03, ಲಿಂಗನೂರು ತಂದೆ ಯಂಕಪ್ಪ ಹುಬ್ಬಳ್ಳಿ ಕಾ ಹುಬ್ಬ ತಾ ಲಿಂಗನೂರು ಸಂಖ್ಯೆ: 469 - ಕ ಕ್ಷೇತ್ರ 4-00, ಲಿಂಗನೂರು ತಂದೆ ಯಂಕಪ್ಪ ಹುಬ್ಬಳ್ಳಿ ಕಾ ಹುಬ್ಬ ತಾ ಲಿಂಗನೂರು ಸಂಖ್ಯೆ: 469 - ಕ ಕ್ಷೇತ್ರ 4-00, ಲಿಂಗನೂರು ತಂದೆ ಯಂಕಪ್ಪ ಹುಬ್ಬಳ್ಳಿ ಕಾ ಹುಬ್ಬ ತಾ ಲಿಂಗನೂರು ಸಂಖ್ಯೆ: 67 - ಕ ಕ್ಷೇತ್ರ 9-38 ನಿರ್ದಿಷ್ಟ ಭೂಮಾಲೀಕರು ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 1894 ರ ಕಲಂ: 28(ಎ) ಅಡಿಯಲ್ಲಿ ಈ ಕಾರ್ಯಾಲಯಕ್ಕೆ ಸಿಗುತ್ತ 90 ಲಿಂಗನೂರು ಉಲ್ಲೇಖ: 1) ರ ದಿನಾಂಕಗಳ ಲ್ಲಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದಾರೆ ಆದರಂತೆ ಉಲ್ಲೇಖ: 1) ರ ದಿನಾಂಕ: 13.04.2023 ಲ್ಲಿ ಈಗಾಗಲೇ ತಮಗೆ ತಿಳುವಳಿಕೆ ಪತ್ರವನ್ನು ನೀಡಲಾಗಿದ್ದು

ಮುಂದುವರೆದು ಮಾನ್ಯ ಉಪಸ್ವರ್ಧಾನ ಕಲಬುರಗಿ ಇಲಾಖೆಯ ಮುಖ್ಯ ಸಂ: 200193/2022 ರಲ್ಲಿ ಮಧ್ಯಂತರ ಆದೇಶದಂತೆ ಪರಿ ಎಕರೆಗೆ ರೂ 7,00,000/- ಗಳನ್ನು ನಿಗದಿಪಡಿಸಿ, ಮಹಾ ನಿಗದಿ ಕೈಗೊಳ್ಳುವಂತೆ ಮಾನ್ಯ ವಿಲಂಬ ನಿಗದಿಪಡಿಸಿದ ಲಿಂಗನೂರು ಇಲಾಖೆಯಲ್ಲಿ ಮಹಾ ನಿಗದಿಪಡಿಸಿದ ಆದೇಶದಂತೆ ಮಾನ್ಯ ವಿಲಂಬ ನಿಗದಿಪಡಿಸಿದ ಲಿಂಗನೂರು ಇಲಾಖೆಯಲ್ಲಿ ಮಹಾ ನಿಗದಿ ಕೈಗೊಂಡು ಪರಿ ಎಕರೆಗೆ ರೂ 67/- ಗಳನ್ನು ನಿಗದಿಪಡಿಸಿ ಆದೇಶಿಸಿದ್ದು ಆದರಂತೆ ಹುಬ್ಬ ಜಿಲ್ಲೆಯ ಗಣಿ ಕಂಪನಿಯವರು ಮಾನ್ಯ ಉಪಸ್ವರ್ಧಾನ ಕಲಬುರಗಿ ಇಲಾಖೆಯ ಮೇಲ್ಮನವಿ ಪ್ರಕರಣ ಎಂ.ಎಫ್.1, ಸಂ: 202357/2022 ರಂತೆ ವಾಪಸ್‌ಪಡಿಸಿದ್ದು ಸಮಸಂಖ್ಯೆ ಮಹಾ ನಿಗದಿಪಡಿಸಿದ್ದು

ಆದರಂತೆ ಮಾನ್ಯ ಉಪಸ್ವರ್ಧಾನ ಕಲಬುರಗಿ ಇಲಾಖೆಯ ಮುಖ್ಯ ಸಂ: 200193/2022 ರಲ್ಲಿ ಮಧ್ಯಂತರ ಆದೇಶದಂತೆ ಪರಿ ಎಕರೆಗೆ ರೂ 7,00,000/- ಗಳನ್ನು ನಿಗದಿಪಡಿಸಿದಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ ಕಲಂ: 28(ಎ) ರಲ್ಲಿ ಸಲ್ಲಿಸಿದ ಅರ್ಜಿಯಲ್ಲಿನ ಭೂಮಾಲೀಕರಿಗೂ ಹುಬ್ಬಳ್ಳಿ ಭೂಸುಲುವಾರ ವಿಲಂಬದಂತೆ ಕೋರಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದಾರೆ

ತತ್ಸಂಬಂಧ ಮಾನ್ಯ ಉಪಸ್ವರ್ಧಾನ ಕಲಬುರಗಿ ಇಲಾಖೆಯ ಮೇಲ್ಮನವಿ ಎಂ.ಎಫ್.1, ಸಂ: 202357/2022 ರ ಪ್ರಕರಣ ಲ್ಲಿ ಸ್ಥಾಪಿತವಾದ ನಂತರ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 1894 ರ ಕಲಂ: 28(ಎ) ಅರ್ಜಿಗಳನ್ನು ಸಂಗ್ರಹಿಸಲಾಗುವುದೆಂದು ಈ ಮೂಲಕ ತಿಳಿಸಲಾಗಿದೆ

ಸಹಾಯಕ ಅಯುಕ್ತರು  
ಲಿಂಗನೂರು

ಗೌ.  
ಮೇಲಿನ ಭೂಮಾಲೀಕರಿಗೆ  
(ಶ್ರೀ ಕೆ.ಕೆ.ವಿಶ್ವನಾಥ ಸಹಿಲರು ಲಿಂಗನೂರು ಇವರ ಮುಖಾಂತರ)

- ಪ್ರತಿಯನ್ನು:
1. ಮಾನ್ಯ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು ರಾಯಚೂರು ಇವರಿಗೆ ದಯಾಪರ ಮಾಡಿತಿಗಾಗಿ ಸಲ್ಲಿಸಲಾಗಿದೆ.
  2. ಉಪಸ್ವರ್ಧಾನ ವ್ಯವಸ್ಥಾಪಕರು, ಹುಬ್ಬ ಜಿಲ್ಲೆಯ ಗಣಿ ನಿರ್ದೇಶಕರು, ಹುಬ್ಬ ಇವರಿಗೆ ಮಾಡಿತಿಗಾಗಿ ಕಳುಹಿಸಿದೆ.